



सत्यमेव जयते



44th ANNUAL REPORT

April 1, 2022 to March 31, 2023

PRESS COUNCIL OF INDIA, NEW DELHI

PRESS COUNCIL OF INDIA

Annual Report
(April 1, 2022 to March 31, 2023)

New Delhi

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Press Council of India
 Soochna Bhawan, 8 C.G.O. Complex, Lodhi Road, New Delhi-110003
Chairperson: Smt. Justice Ranjana Prakash Desai*

XIV Term

MEMBER	ORGANISATION NOMINATED BY	NEWSPAPERS
Editors of Indian Languages Newspapers (Clause (a) of Sub-Section (3) of Section 5)		
Shri Ankur Dua	Hindi Samachar Patra Sammelan and Editors Guild of India	Editor, Muzaffarnagar Bulletin, Hindi Daily, Uttar Pradesh
Dr. Baldev Raj Gupta	Hindi Samachar Patra Sammelan and Editors Guild of India	Group Editor, Express News, Hindi Daily, Madhya Pradesh
Dr. Khaidem Athouba Meitei	Editors Guild of India and Hindi Samachar Patra Sammelan	Resident Editor, Hueiyen Lanpao, Manipuri Daily, Manipur
Shri Prakash Dubey	Editors Guild of India and Hindi Samachar Patra Sammelan	Group Editor, Dainik Bhaskar, Hindi Daily, Maharashtra
Dr. Suman Gupta	Hindi Samachar Patra Sammelan and Editors Guild of India	Editor, Janmorcha, Hindi Daily, Uttar Pradesh
Vacant**		
Working Journalists other than Editors (Clause (a) of Sub-Section (3) of Section 5)		
Shri Ansu Chakraborty	Press Club, Kolkata	Working Journalist, AajKaal, Bengali Daily, West Bengal
Shri Jaishankar Gupta	Press Association	Correspondent, Deshbandhu, Hindi Daily, New Delhi
Shri Kingshuk Pramanik	Press Club, Kolkata, Odisha Union of Journalists, West Bengal Union of Journalist, Mumbai Press Club, Indian Association of Press-N-Mediamen, Chandigarh Punjab Union of Journalist	Working Journalist, Sangbad Pratidin, Bengali Daily, West Bengal

**Notified vide Gazette Notification dated 17.06.2022*

***Shri Vinod K. Jose was notified as member of the Council, vide Gazette Notification dated 06.10.2021. He tendered his resignation on 23.10.2021, same was accepted by the then Hon'ble Chairman in pursuance of Section 6(5) of the Press Council Act, 1978 on 25.10.2021.*

MEMBER	ORGANISATION NOMINATED BY	NEWSPAPERS
Shri Prajnananda Chaudhuri	West Bengal Union of Journalist, Odisha Union of Journalists, Press Club, Kolkata, Mumbai Press Club, Indian Association of Press-N-Mediamen, Chandigarh Punjab Union of Journalist	Working Journalist, Anandabazar Patrika, Bengali Daily, Kolkata
Shri Vinod Kohli	Chandigarh Punjab Union of Journalist, Odisha Union of Journalists, Press Club, Kolkata, West Bengal Union of Journalist, Mumbai Press Club, Indian Association of Press-N-Mediamen	Working Journalist, Utkal Mail, Hindi Daily, New Delhi
Shri Gurbir Singh	Mumbai Press Club, Odisha Union of Journalists, Press Club, Kolkata, West Bengal Union of Journalist, Indian Association of Press-N-Mediamen, Chandigarh Punjab Union of Journalist	Working Journalist, The New Indian Express, English Daily, Tamil Nadu
Shri Prasanna Kumar Mohanty	Odisha Union of Journalists, Press Club, Kolkata, West Bengal Union of Journalist, Mumbai Press Club, Indian Association of Press-N-Mediamen, Chandigarh Punjab Union of Journalist	Working Journalist, Indus Valley Times, English Fortnightly, Odisha

**Owners and Managers of Big, Medium and Small Newspapers
(Clause (b) of Sub-Section (3) of Section 5)**

Vacant*

Vacant*

Shri Gurinder Singh	All India Small & Medium Newspapers Federation and Small-Medium-Big Newspapers Society	Indian Observer, English Fortnightly, New Delhi
Shri L.C Bhartiya	All India Small & Medium Newspapers Federation	Akash Deep, Hindi Weekly, Jaipur, Rajasthan
Ms. Aarti Tripathi	All India Small Newspapers Associations (AISNA) and Association of Small and Medium Newspapers of India	Jai Pradesh, Hindi Weekly, Uttar Pradesh
Shri Shayam Singh Panwar	Association of Small and Medium Newspapers of India and All India Small Newspapers Associations (AISNA)	Jan Saamna, Hindi Weekly, Uttar Pradesh

** The only notified Association in the said category i.e. The Indian Newspapers Society, did not choose to file the panel of names, under section 5 (4) of the Press Council Act, 1978, thereby, resulting in two vacancies under the said category.*

MEMBER	ORGANISATION NOMINATED BY	NEWS AGENCY
Managers of News Agencies (Clause (c) of Sub-Section (3) of Section 5)		
Shri G. Sudhakar Nair	Press Trust of India (PTI)	Executive Editor, Press Trust of India (PTI), New Delhi
Nominees of University Grants Commission, Bar Council of India and Sahitya Akademi (Clause (d) of Sub-Section (3) of Section 5)		
Prof. J.S. Rajput	University Grants Commission	
Shri Shailendra Dubey	Bar Council of India	
Shri Madhav Kaushik	Sahitya Akademi	
Members of Parliament Nominated by Speaker, Lok Sabha and Chairman, Rajya Sabha (Clause (e) of Sub-Section (3) of Section 5)		
Vacant*	Lok Sabha	
Vacant*	Lok Sabha	
Vacant*	Lok Sabha	
Shri Rakesh Sinha	Rajya Sabha	
Vacant**	Rajya Sabha	
Secretary: Shri Nungsanglemba Ao		

* Notification in this category is awaited.

**Dr. K Keshava Rao ceased to be member of the Council under Section 6(4) of the Press Council Act, 1978

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Foreword

I took charge as the Chairperson of the Press Council of India in June, 2022. Before coming to the Press Council, I did not have any direct association with the Press. The period I have spent here has made me aware of the tremendous strength of the Press. It plays a crucial role in upholding the freedom of speech and expression, informing the public about current events and issues, and promoting accountability and transparency in governance.

The profession of journalism is undeniably challenging and fraught with risks. Numerous journalists have suffered injuries and even lost their lives while covering and reporting incidents of terror attacks, natural disasters, and even protests. The risks associated with the profession of journalism extend beyond physical harm as well. Witnessing and reporting on these traumatic events can take a toll on the mental well-being of the journalists. The Council, in order to mitigate the risks to life while covering natural disaster by journalists, during the period under review has constituted a Sub-Committee to frame guidelines for the safety of media persons/reporters covering news amidst natural disaster. The Council also took *Suo-Motu* cognizance of incidents of attacks on journalists and notified the concerned Governments condemning such incidents.

The Press Council of India is tasked with addressing complaints against the press and by the press. However, there are numerous issues plaguing journalism today, such as paid news, fake news, sensationalism, and obscene/vulgar advertisements, as well as news that incites communal tensions. As the Press Council, we strive to improve the standards of journalism and hold the press accountable for ethical violations through our adjudicating and advisory role. Guidelines and advisories to promote responsible journalism during elections in various states and Union territories were issued during the period under review.

To celebrate free and responsible Press in India, November 16 is observed as National Press Day throughout the country. This significant occasion serves as a reminder of the crucial role played by the media in democratic society like India. The National Press Day, 2022 was celebrated on the theme, “The Media’s Role in Nation Building”. The Norms of Journalistic Conduct, 2022 Edition, updated by the Council based on adjudications rendered by it was also released on the occasion.

It is crucial to recognize and celebrate the remarkable contributions of journalists, fostering a culture of truth seeking, unwavering integrity and ethical reporting in the media industry. The Press Council of India conducts National Awards for Excellence in Journalism every year with the aim of honouring such exceptional journalistic work across the country. Due to the unprecedented circumstances caused by the COVID-19 pandemic, the National Awards for Excellence in Journalism for the year 2020 could not be conferred as scheduled. However, it was decided to conduct the awards during the period under review. Eleven journalists were honoured with National Awards for Excellence in Journalism, 2020 in various fields of journalism, from rural journalism to sports reporting.

This Annual Report outlines the work undertaken by the Council during the period under review. I hope and believe that readers will find this report detailing the Council's work throughout the financial year to be informative and valuable.

New Delhi

Dated : 31.03.2023

Justice Ranjana Prakash Desai
Chairperson
Press Council of India

Highlights of the year

The Press Council of India celebrated National Press Day, 2022 at SCOPE Convention Centre, New Delhi on November 16, 2022 on the theme ***“The Media’s Role in Nation Building”***.

Hon’ble Minister of Information & Broadcasting and Youth Affairs & Sports, Shri Anurag Singh Thakur was the Chief Guest and Dr. L. Murugan, Hon’ble Minister of State for Information & Broadcasting and Fisheries, Animal Husbandry & Dairying was the Guest of Honour on the occasion. Eminent Journalist, Shri Swapan Dasgupta delivered the Keynote Lecture and Hon’ble Chairperson, Press Council of India, Smt. Justice Ranjana Prakash Desai presided over the function.



Left to right: Shri Nungsanglemba Ao, Secretary, Press Council of India;
Smt. Justice Ranjana Prakash Desai, Hon’ble Chairperson, Press Council of India;
Shri Anurag Singh Thakur, Hon’ble Minister of Information & Broadcasting and
Youth Affairs & Sports; Dr. L. Murugan, Hon’ble Minister of State for Information
& Broadcasting and Fisheries, Animal Husbandry & Dairying;
Shri Swapan Dasgupta, Eminent Journalist



A glimpse of the lamp lighting ceremony



Shri Anurag Singh Thakur, Hon'ble Minister of Information & Broadcasting and Youth Affairs & Sports, releasing the Norms of Journalistic Conduct, 2022



Recipients of the National Awards for Excellence in Journalism, 2020. Award ceremony was conducted by the Press Council of India on February 28, 2023



Council meeting dated November 15, 2022, held at New Delhi



Council meeting dated February 28, 2023, held at New Delhi



Constitution Day Celebration: Employees of the Council taking the Preamble Pledge



Journalism students participated in the Winter Internship Programme, 2023 held from January 16, 2023 to February 14, 2023



Interactive Session with the delegation of the Maldives Media Council (MMC)



Students from Panjab University, Chandigarh, visited the Secretariat on March 7, 2023



Yoga Day, 2022 celebration in the Secretariat of the Council



Hindi Diwas celebration in the Secretariat of the Council

Chapter - I

Role and Functions of the Council

The Press Council of India is a statutory quasi-judicial autonomous authority re-established in the year 1979 under an Act of Parliament, namely the Press Council Act, 1978 with the two-fold objects of preserving the freedom of the press and maintaining and improving the standards of newspapers and the news agencies in India. It was first set up in 1966 under the Indian Press Council Act, 1965, on the recommendations of the First Press Commission with the identical twin objects. The 1965 Act was, however, repealed in 1975 and the Press Council was abolished during emergency. Thereafter, a new Act was enacted on the similar lines as the Act of 1965 and the Press Council was re-established in the year 1979 under the Press Council Act, 1978.

The Council is a body corporate having perpetual succession comprising of Chairperson and 28 members. While the Chairperson has, by convention, been a retired judge of the Supreme Court of India who is nominated by a Committee consisting of Chairman of the Council of States (Rajya Sabha), Speaker of the House of People (Lok Sabha) and a person elected amongst themselves by the 28 members of the Council. Of the twenty eight (28) members, thirteen (13) represent the working journalists, of whom, six (6) are to be editors of newspapers and remaining seven (7) are to be working journalists other than editors. Six (6) members are from among persons who own or carry on the business of the management of the newspapers, two (2) each representing the big, medium and small newspapers. One (1) is from among persons who manage news agencies. It has five (5) members as representatives of the two Houses of Parliament, three (3) nominated by the Speaker of the Lok Sabha and two (2) nominated by the Chairman of the Rajya Sabha to represent readers' interest. It has three (3) members nominated from the University Grants Commission, Bar Council of India and Sahitya Akademi representing the fields of education and science, law and literature and culture respectively.

The objects of the Press Council of India as embodied in Section 13 of the Act are to preserve the freedom of the Press and to maintain and improve the standards of newspapers and news agencies in India. The Act also confers an advisory role on the Council in that it can, either *suo-motu* or on a reference made to it by the Government under Section 13 (2) of the Act, undertake studies and express its opinion in regard to any bill, legislation, law or other matters concerning the Press and convey its opinion to the Government or the persons concerned. Also, in the matters of public importance concerning its statutory responsibilities, the Council may *suo-motu* take cognizance and constitute a Special Committee to make an on the spot inquiry.

In furtherance of its objects defined under Section 13 of the Act, some of the important functions which the Press Council is required to perform are, to help newspapers and news agencies to maintain their independence; to build-up a code of conduct for newspapers, news agencies and journalists in accordance with high professional standards; to ensure on the part of the newspapers, news agencies and journalists the maintenance of high standards of public taste and foster a due sense of both the rights and responsibilities; keep under review any development likely to restrict the supply and dissemination of news of public interest and importance; to promote a proper functional relationship among all classes of persons engaged in the production or publication of newspapers or in news agencies; and to concern itself with development such as concentration of or other aspects of ownership of newspapers and news agencies which may affect the freedom of the press.

The *raison d'être* of this body is rooted in the concept that in a democratic society, the Press needs to be simultaneously free and responsible. Thus, it acts in a higher domain of ethical values and standards. In furtherance to this aspect, it has been framing up code of conduct for newspapers, news agencies and the journalists in conforming with high moral and professional standards which is published as Norms of Journalistic Conduct. Its purpose is not only to act as a watchdog of the press but also to enthuse a new perspective into journalistic fraternity. The Council constantly assays to keep the press devoid of unethical writings and also the Council expends its moral authority to instil ethics into the journalistic sodality which is always higher plane than law.

The Council discharges its functions primarily through adjudications on complaint cases received by it, either against the Press for violation of journalistic ethics or by the Press for interference with its freedom. Where the Council is satisfied, after inquiry, that a newspaper or a news agency has offended the standards of journalistic ethics or public taste or that an editor or working journalist has committed any professional misconduct, the Council may warn, admonish or censure them or disapprove of their conduct. The Council is also empowered to make such observations as it may think fit in respect of the conduct of any authority, including Government, for interfering with the freedom of the press so prescribed under Section 14 of the Press Council Act, 1978. The decisions of the Council under sub-section (1), or sub-section (2), as the case may be, shall be final and shall not be questioned in any court of law.

The Council being a body set up under an Act of Parliament gets a substantial part of its fund by way of Grants-in-Aid from the Central Government, after due appropriation by the Parliament, as also it has its own funds by way of the fee collected from newspapers on a graded structure and other receipts.

Chapter-II

An Overview

(April 1, 2022 – March 31, 2023)

Working of the Council

As per Regulation 3 of the Press Council (Procedure for Conduct of Meetings and Business) Regulations, 1979 there shall not be less than four ordinary meetings of the Council in any one year and the interval between any two ordinary meetings shall not be normally longer than four months. Accordingly, the Full Council held four (4) sittings, during the year to discharge its functions and discussed matters having a vital bearing on press freedom and its standards. According to Section 8(1) of the Press Council Act, 1978, the Council to perform its function under the Act, constitutes Committees from amongst its members for general and specific purposes from time to time keeping in view the requirement of the tasks assigned. To perform its function, the Council constitutes the Inquiry Committees for conducting the inquiries into the complaints filed with the Press Council and gives its recommendations accordingly. The Inquiry Committees are presided over by the Chairperson of the Council.

The Inquiry Committees I and II were constituted from amongst the members of the XIV term of the Council on October 26, 2021. The composition of the two Inquiry Committees is detailed below :-

Inquiry Committee - I	Inquiry Committee - II
1. Dr. K. Keshava Rao*	1. Prof. J. S. Rajput
2. Mr Kingshuk Pramanik	2. Mr Shailendra Dubey
3. Mr Madhav Kaushik	3. Dr. Baldev Raj Gupta
4. Mr Ankur Dua	4. Mr Prakash Dubey
5. Dr. Khaidem Athouba Meitei	5. Dr. Suman Gupta
6. Ms. Aarti Tripathi	6. Mr Ansu Chakraborty
7. Mr Jaishankar Gupta	7. Mr Gurinder Singh

**Dr. K. Keshava Rao ceased to be member of the Council under Section 6, Clause(4) of the Press Council Act, 1978 for not attending three consecutive meetings of the Council i.e. 26.10.2021, 16.11.2021 and 08.08.2022.*

Inquiry Committee - I	Inquiry Committee - II
8. Mr Gurbir Singh	8. Mr. Shyam Singh Panwar
9. Mr Prasanna Kumar Mohanty	9. Mr G. Sudhakar Nair
10. Mr L.C. Bhartiya	10. Mr Prajnananda Chaudhuri
	11. Mr Vinod Kohli
	12. Mr Rakesh Sinha (MP)

The Inquiry Committees assume the major quantum of the work of the Council by initiating inquiries in respect of the complaints received by the Council and also *suo-motu* cognizance is taken by the Council in the matter of grave significance about either the free functioning of the press or maintaining the ethical standards by the press. The proceedings of the Inquiry Committees are open to the general public. The parties to the cases are required to present/ furnish relevant evidence, oral or documentary and are allowed to be represented by lawyers/authorized representatives. The Inquiry Committees at the close of their respective inquiries consider the records and oral submissions advanced by the parties and place their recommendations, concerning the cases inquired into, to the Council for final ratification.

The Committees held nine (9) sittings in this financial year and have given their recommendations in forty (40) matters and reported it to the Council for adjudicating the said matters.

The important sub-committees which were constituted during the period under review –

1. Sub-Committee on Accreditation constituted on 22.09.2022
2. Sub-Committee regarding formulation of guidelines for media persons/reporters covering news amidst natural disaster constituted on 22.09.2022

Report of the Council

- 1) Report on State of the Media in Jammu and Kashmir : The Report has been adopted by the majority of the Council on 22.09.2022 while the dissent of the Hon'ble Chairperson and two members i.e. Professor J.S. Rajput and Shri Prajnananda Chaudhuri were recorded (The report is covered in Chapter-IV).

Suo-Motu Cognizance

The Chairperson, Press Council of India, took *Suo-Motu* cognizance of the incidents of violence against media persons and threats to press freedom in the following cases during the year:

1. On the incident of Police assault on Media persons in Odisha's Nabarangpur district.
2. On the incident of alleged murder of Journalist, Mr Shashikant Warishe, Ratnagiri, Maharashtra.
3. On the incident of arrest of Journalist, Mr Sanjay Rana, Sambhal, Uttar Pradesh.
4. On the purported action of the district administration prohibiting the entry of the media persons at the Counting Venue during the counting of votes for 'Block Graduate and Shikshak MLC' election in Kanpur region.

The Chairperson, Press Council of India also took *Suo-Motu* Cognizance against the Newspapers/News Agencies and Journalists for offending the standards of journalistic ethics and public taste in the following cases during the year:

1. On the publication of derogatory remarks against the President of India appeared in the Kannada Daily Newspaper 'Vishvavani'.
2. On the publication of highly misleading news headlines and content concerning Council's Adjudication dated 15.11.2022 appeared in several editions of The Times of India.
3. Against the Dina Thanthi newspaper, Madurai Edition for purportedly violating Press Council's Model Guidelines for publishing Overseas Advertisements in Accordance with Emigration Act, 1983.
4. On the publication of obscene and vulgar advertisements appeared in various issues of Hindustan, Delhi Edition.

Reference Matters Considered by the Council during the year 2022-2023

1. **Reference from Ministry of Information & Broadcasting regarding CWP-OIL-79/2019 - Court on its own motion Vs. State of Punjab and**

others registered in Hon'ble High Court of Punjab and Haryana for framing guidelines for media reporting of violent mass agitation (File No. – 17/10/2022)

The Council observed that the comprehensive guidelines for media reporting of violent mass agitation are already in the Norms of Journalistic Conduct formulated by the Council and the Secretariat has forwarded them to Ministry of I&B on 12.05.2022. The Council took note of it and resolved to reiterate the same to Ministry.

2. Framing of guidelines for the safety of media persons/reporters covering news amidst natural disaster (File No. – 17/1/2022)

The Ministry of I&B forwarded reference received from National Human Rights Commission forwarding the complaint dated 25.09.2021 of Shri Radhakanta Tripathy regarding formulation of guidelines/SOP for media persons who lose their lives during the coverage of rescue operation from the Ground Zero.

On considering the matter, the Council felt the need to constitute a sub-committee to frame guidelines on the issue as it pertains to safety of journalists covering natural calamities. In the circumstances, a sub-committee comprising three Members of the Council was constituted. Report is awaited.

3. Reference received from Hon'ble Supreme Court of India regarding compliance of order dated 19.05.2022 in the matter of Criminal No. 135/2010 Budhadev Karmaskar Vs. State of West Bengal and Ors. concerning framing of appropriate guidelines for the media for reporting news on sex workers (File No. – 17/11/2022)

The Council deliberated and framed the following norm based on the relevant portion of the said order of Hon'ble Supreme Court of India:-

“The media to take utmost care not to reveal the identities of sex workers, during arrest, raid and rescue operations, whether as victims or accused and not to publish or telecast any photos that would result in disclosure of such identities. Besides, the newly introduced Section 354C, IPC which makes voyeurism a criminal offence, should be strictly adhered by the media, so as not to publish/telecast photos of sex workers with their clients in the garb of capturing the rescue operation.”

The above mentioned norm was incorporated in the Norms of Journalistic Conduct of PCI - 2022 which was released on the occasion of National Press Day, 2022 on November 16, 2022. Further, advisory was also issued based on the norm.

4. Communication received from Ministry of I&B regarding strategy and efforts to tackle fake news (File No.- 17/27/19-20)

On considering the communication of I&B regarding strategy and efforts to tackle fake news, a sub-committee was constituted during 13th Term of the Council. The Council on considering the minutes of the said sub-committee resolved to adopt the recommendations with certain modifications as mentioned below:-

- (i) There must be single organization specially to tackle the issue of fake news.
- (ii) There should be “Fact Checking mechanism” within the news media organization itself before publishing any news article.
- (iii) Government may be recommended to create awareness among the Media Community concerning repercussion of publication of fake news.
- (iv) Government may be recommended that the issue of fake news disseminated on electronic platform may be brought under the purview of the Press Council of India until formation of the Media Council.
- (v) Government may be recommended to implement mechanism to identify the generation/source point of fake news.
- (vi) Recommendation may also be forwarded to the HRD Ministry for inclusion of media studies in academic curriculum.

The inputs of the Council were forwarded to the Ministry of Information and Broadcasting on 08.12.2022.

5. Reference received from Shri Ganendra Nath Bandyopadhyay regarding deprivation of news contributors of newspapers and news channels from the welfare facilities extended by the Government to journalists/media persons (File No. – 17/12/2022)

The Council considered the matter forwarded to it by the Ministry of Labour & Employment, Government of India vide letter dated 20.05.2022. As the matter falls within the ambit of the Ministry of Labour and Employment, Government of India, it was forwarded to concerned Ministry along with the assurance that the Press Council of India will render such assistance as the Ministry of Labour and Employment may solicit in this exercise.

6. Communication received from M/o I&B concerning Private Members' Bill on "The Press (Amendment) Bill, 2022" by Mr. V. Vijayasai Reddy, M.P. (File No. – 17/18/2022)

In this connection, the Council reiterated its past resolution dated 03.06.2021 concerning the Press Council (Amendment) Bill, 2022 and forwarded the same to the Ministry. The resolution is as follows:-

"to suggest the Government to make amendments in the Press Council Act itself incorporating electronic, digital and other media. Whenever such legislation is proposed, views of the Council may be obtained".

7. Communication received from M/o I&B concerning Private Member Bill on the Prohibition of Publication and Dissemination of Objectionable Material on Religion Bill, 2022, by Shri Sunil Kumar Singh, M.P. (File No. – 17/17/2022)

In this connection, the erstwhile Council (13th Term) passed the following resolution on 27.05.2021 concerning similar Bill namely "Prohibition of publication and dissemination of Objectionable Material on Religion Bill, 2021", which was moved by Shri Ajay Bhatt, M.P.:

"The Council unanimously is of the view that the provision of the Bill shall undermine the freedom of the Press. Accordingly, it recommends that it be rejected".

The Council reiterated the same view and resolved to forward the same resolution to the Government. Accordingly, the recommendation of the Council was communicated to the Ministry of Information and Broadcasting on 29.11.2022.

8. Guidelines to regulate Child Participation in TV serials, reality shows, films and OTT platform (File No. – 17/16/2022)

Communication was received from M/o I&B vide its letter No. S-5011/8/2022-Press dated 27.07.2022 and 31.08.2022 forwarding therewith reference received from National Commission for Protection of Child Rights (NCPCR) regarding Guidelines for Child Participation in the Entertainment Industry or any Commercial Entertainment Activity for soliciting comments of PCI.

The matter was discussed by the Council and it concurred with the content of Section 18 and 19 of the Draft Regulatory Guidelines which concern “Children in News and Media” and “Use of Child in the advertisement”, respectively.

Advisories Issued by the Council

The Council during the period under review issued various advisories on the matters being forwarded to it by the Government or other authorities or on other matters concerning journalistic ethics. The following Advisories were issued to the Print media-

1. Advisory for print media to observe the direction laid in the ECI’s Advisory no. 491/Media Policy/2022/Communication dated 29.11.2022 concerning prediction of results.
2. Advisory issued to the Print Media to follow the Norms of Journalistic Conduct - 2022 on Paid News for observance during the Elections in various states.
3. Advisory issued to the print media not to breach Section 126A of the Representation of People Act, 1951.
4. Advisory to the media to refrain from publishing any information with regard to the identity of the victims and their depositions in terms of the Order dated 02.09.2022 of Hon’ble High Court of Madras.

Complaints before the Council

During the year under review, in total 1138 complaints were filed. Out of these 273 complaints were filed by the Press against authorities of the Government/police/individuals for curtailment of press freedom or attack on

the press/journalists/media persons and 865 complaints were directed against the press for breach of journalistic ethics. With 1146 matters pending from the last year, there were a total of 943 matters disposed of during the reported year, either by way of adjudication or through summary disposal by the Chairperson on account of settlement by the mediation of the Chairperson or due to lack of sufficient grounds for holding inquiries or non-pursuance; withdrawn or on account of matters having become sub-judice. 1 matter was directly placed before the Council. A detailed statement of the filing and disposal of complaints and the concerned graph of adjudications are in Annexure - A.

Winter Internship Programme, 2023

In discharge of Council's function rendered u/s 13 (2) (b), (c), and (d) of Press Council Act, 1978 for facilitating knowledge, promoting the sense of responsibility in the journalism professionals and creating awareness about the Council and its mandate, the Council inducts merit-based Internship Programme for Journalism Students. The Council invited the applications for 3rd Internship Programme from January 16, 2023 to February 14, 2023.

Students of journalism were encouraged to submit applications. Ten (10) interns for the Winter Internship Programme, 2023 were selected from various parts of the country based on their qualifications and compliance with the necessary conditions while also keeping in mind the opportunity to all and promoting the PAN India programme.

National Press Day, 2022

The Council celebrated National Press Day, 2022 at New Delhi. The Hon'ble Minister of Information & Broadcasting and Youth Affairs & Sports, Shri Anurag Singh Thakur and the Hon'ble Minister of State for Information & Broadcasting and Fisheries, Animal Husbandry & Dairying, Dr. L. Murugan graced the occasion as Chief Guest and Guest of Honour, respectively. Shri Swapan Dasgupta, Eminent Journalist delivered the Keynote lecture and Hon'ble Chairperson, Press Council of India, Smt. Justice Ranjana Prakash Desai, presided over the function. The theme for National Press Day, 2022 was "The Media's Role in Nation Building". Several states also commemorated the day in befitting manner.

Norms of Journalistic Conduct, Edition, 2022:

Section 13 (2) (b) of the Press Council Act, 1978 enjoins upon the Council to build up a code of conduct to help and guide the print media in maintaining and improving the professional standard.

With this view, the 2022 edition of Norms of Journalistic Conduct has been updated and released on November 16, 2022 on the occasion of National Press Day.

National Awards for Excellence in Journalism, 2020 conducted by Press Council of India on February 28, 2023

The Hon'ble Chairperson of the Press Council of India conferred the National Awards for Excellence in Journalism, 2020 in ten (10) categories:

1. The Prestigious **Raja Ram Mohan Roy** National Award for Excellence in Journalism was conferred upon Eminent Journalist and Author **Dr. Anne Bhavani Koteswara Prasad**.
2. The award in the category of '**Rural Journalism**' was conferred upon **Mr. Rohitashva Kumar Verma**.
3. The award in the category of '**Reporting from Conflict Area**' was conferred to **Mr. Rohan Dua**.
4. The award in the category of '**The Best Newspapers Art: Covering Cartoons, Caricatures and Illustrations**' was conferred upon **Mr. Shankar Pamorthy**.
5. The award in the field of **Photo Journalism in Single News picture category** was conferred upon **Mr. Izhar Alam**.
6. The award in the field of **Photo Journalism in Photo feature category** was conferred upon **Mr. Bhanu Prakash Chandra**.
7. The award in the category of '**Sports Reporting**' was conferred upon **Ms. Mini P. Thomas**.
8. The award in the category of '**Developmental Reporting**' was conferred jointly upon **Ms. Remya K H** and **Mr. Syed Fazil Hussain Parvez**.
9. The award in the category of '**Financial Reporting**' was conferred upon **Mr. Rudranna Harthikote**.

10. The award in the category of ‘**Gender Issue Reporting**’, was conferred upon **Ms. Nileena Atholi**.

Programmes held to promote usage of Hindi Language in office work

During the period under review, the Council paid particular attention to the promotion of Hindi Language in its official work. Regular (quarterly) meetings of the “Council’s Official Language Implementation Committee” were conducted in the office.

This year, Second All India Official Language Conference was organised on 14th-15th September, 2022 at Surat (Gujarat) by the Department of Official Language, Ministry of Home Affairs, Government of India. Assistant Director (Official Language), represented the Press Council of India. During the event, there were deliberations focused on encouraging individuals to work in Hindi language.

During the year under review, three (3) Workshops relating to the official language were organized for the benefit of employees of the Council. September 14th is celebrated as ‘Hindi Divas’ all over India. Like every year, to emphasise the use of Hindi as the official language, Hindi Fortnight (Pakhwada) was observed in the Secretariat of the Council from September 14, 2022 to September 28, 2022. The main function of Hindi Diwas was held on September 29, 2022. On this occasion, Shri Nungsanglemba Ao, Secretary, Press Council of India encouraged employees of the Council to carry out official work in Hindi. During the function, employees of the Press Council of India were given cash prizes & certificates for Slogan Writing Competition and under ‘Hindi Protsahan Yojana’ for their contribution in promoting use of Hindi in office work.

Besides the publication of Varshik Report (Hindi) on the pattern of Annual Report (English), publication of Quarterly in-house Hindi Journal ‘Press Parishad Samiksha’, Nyaynirnaya and pronouncement were recorded in Hindi and brought into the public domain.

To take stock of the implementation of Official Language Policy, an inspection was conducted by the Ministry of Information and Broadcasting.

The Ministry appreciated the progressive use of Hindi language by the Press Council of India in its inspection report.

Transparency Mechanism

The Secretary of the Press Council of India is the Chief Vigilance Officer of the office. The Vigilance set up of the Council, consisting of Deputy Secretary, Under Secretary (Admn.) and Section Officer (Admn.) functioned under the direct supervision of the Secretary (CVO) and Chairperson of the Council. It conducted regular and surprise checks to prevent/combat any corruption in the Secretariat. Vigilance Awareness Week, 2022 was observed in the Secretariat of the Council from October 31, 2022 to November 6, 2022.

Grievance Redressal Mechanism

The grievance redressal mechanism is in place at the internal and external level which comprises of Director of Grievances being the Secretary, PCI. Such general aggrieved public, who desires to meet the Director of Grievance in connection with their grievances, may do so on all Wednesdays between 4:00 p.m. and 5:00 p.m. in the office. **The staff related grievances are attended to by the Staff Grievance Officer of the Council.**

Right to Information Act, 2005

The Council received 180 applications under RTI Act, 2005 and all were disposed of during the period under review.

Ceasing of Membership

The Membership of Dr. K. Keshava Rao, MP, Rajya Sabha was ceased as per Section 6(4) of the Press Council Act, 1978.

Press and Registration Appellate Board

Section 8C of the Press & Registration of Books Act, 1867 entrusts the Press Council of India, the Appellate Jurisdiction over the Magisterial Orders of non-authentication of a Declaration under Section 6 or its subsequent cancellation under Section 8B of the said Act. The Board consists of a

Chairperson and another member to be nominated by the Press Council of India from among its members.

The two benches Board comprised of the Hon'ble Chairperson with Shri Jaishankar Gupta and Shri Gurinder Singh as alternate members. The Appellate Board held four (4) sittings during the period–April 1, 2022 to March 31, 2023 and eight (8) appeals were disposed of. Details of the Appeals are at **Annexure-D**.

Website of the Council

Newly revamped Website of the Council was relaunched on August 8, 2022 by Hon'ble Chairperson in the presence of all the Council members in the Conference Hall, 3rd Floor, Soochna Bhawan, New Delhi. The website is redeveloped in accordance with the Guidelines for Indian Government Websites (GIGW guidelines). The website was revamped with significant changes to make it user friendly.

Other Significant Activities undertaken by the Council in the period under review:

Interactive session with delegation of Maldives Media Council

At the behest of the Hon'ble Ministry of External Affairs, the Press Council of India organized an interactive session for editors and journalists associated with the Maldives Media Council (MMC). The session was conducted in collaboration with the Amity Institute of Training and Development, Amity University Campus, Noida and held in the Conference Hall of the Press Council of India on August 24, 2022.

Swachhta Campaign

The Swachhta Campaign 2.0 was organized in the Press Council of India from October 2, 2022 to October 31, 2022, wherein the Council undertook the exercise related to condemnation of old scrap materials, weeding out of files/old records. On October 2, 2022, a cleanliness drive was carried out by Press Council of India at Soochna Bhawan, Lodhi Road, New Delhi and the pictures were posted on twitter for wider publicity.

Observance of Yoga Day, 2022

The Council observed International Yoga Day on June 21, 2022. The day started with a session of yoga followed by an essay writing competition on the topic “Importance of Yoga in Daily Life”.

Observance of Constitution Day, 2022

The Constitution Day was observed in the Council on November 25, 2022. On this day, the Hon’ble Chairperson, Secretary, Officers and Staff of the Council assembled in the Conference Hall of the Council at 11:00 a.m. and took pledge to constitute India into Sovereign, Socialist, Secular, Democratic Republic and to secure to all its citizens, Justice, Equality, Liberty and Fraternity. The preamble of the Constitution of India has been affixed in both Hindi and English at prominent places on every floor in the Press Council of India premises.

Observance of World Blood Donor Day, 2022

World Blood Donor Day, 2022 was observed in the Council on June 14, 2022. Banners of “World Blood Donor Day” were affixed in the premises of Council. The employees took a pledge to donate their blood regularly and to create awareness amongst their families, friends, relatives, colleagues and public about the need for regular and voluntary blood donation. On this occasion, the pamphlets depicting the importance of donating blood were also distributed to all the employees of the Council for wider dissemination.

Chapter – III

State of the Press

Government and the Press

Strong Democracy can't survive without free Press: VP

Vice President, Shri M. Venkaiah Naidu on April 24, 2022 stressed that a strong and vibrant democracy cannot survive without a free, unfettered and fearless press.

Suggesting that India needs a robust, independent and vibrant media to strengthen the roots of democracy, Naidu cautioned against the erosion of values in the media.

Calling for unbiased and objective reporting, he said; “News should not be mixed with views”.

Addressing a gathering at the Press Club of Bangalore to mark the Club's 50th anniversary year, the Vice President observed that a free and fair press complements an independent judiciary when it comes to strengthening the constitutional rule of law.

Nothing that in the past, journalism was considered a mission in which news was sacrosanct, Naidu underscored the fact that good journalism hinges on unbiased and truthful coverage of events and in their credible transmission to the people.

Referring to several legendary news editors of yesteryears like Khasa Subba Rau, Frank Moraes and Nikhil Chakravarty, the Vice President said they never coloured news with their opinion and always respected the ‘Lakshman Rekha’ between news and opinion.

He suggested that news professionals today should take inspiration from journalism stalwarts who contributed immensely during the freedom struggle and during the Emergency.

Stressing that news must not be tampered with views, he advised media persons never to compromise on facts and to always present them without fear or favour.

Expressing concern over the steep decline in journalistic standards over the years, Naidu said that the recent rise of social media has only muddied the waters further. “Today, we find news constantly fused with opinion. So much so that sometimes one tends to feel that neither newspapers nor television channels give an accurate picture of some events,” he added.

Expressing concern over falling standards of public discourse, Naidu wanted political parties to self-regulate themselves by adopting a code of conduct for their members in legislatures and public life. He advised public representatives to refrain from making personal attacks on their political adversaries. He also called for a relook at the Anti-Defection Law to address any shortcomings. Stressing that members should debate, discuss and decide in a meaningful way in the legislatures, the Vice-President said the media should highlight constructive speeches in Parliament and legislatures instead of disruptions. He cautioned against sensationalising news and giving undue attention to disruptors in the Parliament and legislatures.

(The Statesman, April 25, 2022, New Delhi)

Role of media in promoting health lauded

Union Information and Broadcasting Minister Anurag Thakur on May 25, 2022, applauded the Indian media for its role during the COVID-19 pandemic.

At the 17th Asia Media Summit, via video conferencing, the Minister said that Indian media ensured that awareness messages on COVID-19, important government guidelines and free consultations with doctors reached everyone in the country.

Doordarshan and All India Radio significantly delivered on their mandate of public service by setting the trend through prompt coverage, ground reports and organising programmes on public health, he said.

Crediting the Press Information Bureau’s Fact Check Unit, he said the platform strongly fought against the menace of fake news and misinformation on a real time basis.

(The Hindu, May 26, 2022, Delhi)

Government doesn't agree with Press freedom Index: Centre to Parl

The BJP-led NDA government on July 21, 2022 informed Parliament that it does not agree with conclusions drawn by “Reporters Without Borders” in the World Press Index that ranked India 150th among 180 nations for various reasons including “very low sample size, little or no weightage to fundamentals of democracy, adoption of a methodology which is questionable and non-transparent.”

Information and Broadcasting Minister Anurag Thakur, in a written reply in the Rajya Sabha, was responding to separate questions put by Leader of the Opposition in the upper house Mallikarjun Kharge and AAP member Sanjay Singh on the issue.

The minister said the government was committed to ensuring the right to freedom of speech and expression enshrined under Article 19 of the Constitution.

Mr. Thakur said the Press Council of India (PCI) has been set up under the Press Council Act, 1978 mainly to preserve the freedom of the press and improve the standards of newspaper and news agencies in the country. He said the PCI looks into the complaints filed “by the Press” regarding curtailment of press freedom.

(The Asian Age, July 22, 2022, New Delhi)

Media needs to introspect role if wrong perceptions are created: Anurag Thakur

Union Minister for Information and Broadcasting Anurag Thakur said on July 21, 2022 that the media needs to introspect its role if wrong perceptions are being created.

Thakur was speaking at a function on the occasion of National Broadcasting Day, which is celebrated every year on July 23 to mark the first-ever radio broadcast in India that went on air from the Bombay Station under the Indian Broadcasting Company in 1927.

Sounding a cautious note to the media, Thakur said, “If somewhere a wrong perception is getting created about private media with utterances of ‘media trails’, we need to introspect about our functioning.”

(The Sunday Statesman, July 24, 2022, New Delhi)

Parl panel for statutory body to regulate media

The Parliamentary Committee on Petitions on August 2, 2022, backed the establishment of an umbrella body to regulate all news and non-news media in the country and asked the government to conduct a feasibility study for setting up a media commission equipped with statutory powers to enforce its directives.

In a report, the panel said existing legislative and institutional structures, most of them self-regulatory, could only exert moral pressure on media platforms, but could not take visible punitive action in case of any grave violation.

“The existing regulatory mechanisms, without adequate legal regulatory framework, would not be able to meet the current challenges being witnessed by society unless stringent panel provisions in respect of errant media houses were put in place. Considering the rapidly changing media landscape in the country, we feel that there is now a need to look into interrelated aspects with an entirely new perspective for the usefulness of a unified regulator that will facilitate an independent, impartial and responsible news and non-news media in the country,” the committee said.

It asked the Ministry of Information and Broadcasting to conduct a feasibility study for setting up a media commission and restructuring the Press Council of India.

The committee noted that even last year it had asked the government to assess the feasibility of a media commission, but the ministry, in its response, said the separate regulatory mechanisms as they exist today were unique and distinctive and merging them under one regulatory framework may not be desirable. The mechanisms comprise Press Council of India under the Press Council Act-1978 for Print Media; Cable TV Network Regulation Act-1995 for television and IT

(Intermediary Guidelines and Digital Media Ethics Code) Rules-2021 under the IT Act 2000 for digital news publishers and OTT platforms.

The committee expressed unhappiness on the ministry's reply and asked it again to conduct a study for the establishment of a unified regulatory statutory body for regulations of all media.

(The Tribune, August 3, 2022, Gurugram)

New Press Bill in process, No plan to include digital media yet, says Thakur

There is no discussion yet on including digital media under the upcoming draft legislation on press and periodicals, Union Information and Broadcasting Minister Anurag Thakur said. The central government has been working on the bill since 2019 to update a colonial era law overseeing the registration of newspapers and periodicals.

“There is no (such) idea until now to include digital media under the new bill,” Thakur said in an interview with HT. Indicating that the bill is still a work in progress, he said such clarity will only emerge after it is introduced. “We will only get to know once the bill comes.”

The Registration of Press and Periodicals Bill was first introduced in 2019. The Registration of Press and Periodicals Bill, 2022, was listed during the monsoon session of Parliament, but was not tabled. The new bill will replace the Press and Registration of Books (PRB) Act, 1867.

There are close to 140,000 newspapers and periodicals registered under the existing law, the minister said. The major focus of the new bill will be on increasing the ease of doing business and decriminalisation of earlier provisions, Thakur added.

(Hindustan Times, September 26, 2022, New Delhi)

Faced with protests, govt puts off PIB fact-check plan

The IT ministry has decided to defer its plans that would mandate social media companies and other platforms to take down information marked ‘fake or

false' by the fact-check unit of the Press Information Bureau (PIB), or any other agency authorised by the central government.

The reversal comes in the wake of protests by the Editors Guild of India, the Indian Newspaper Society as well as the New Broadcasters & Digital Association, which said that the move would give sweeping powers to the PIB while resulting in censorship of the Press.

Amid the outrage, junior IT minister Rajeev Chandrasekhar on January 25, 2023 said that the government would hold discussions with stake holders early February before the proposal was implemented. He also said that consultations on the Digital Personal Data Protection Act were over and it was being processed for notification.

(The Times of India, January 26, 2023, New Delhi)

PIB busted 1,100 cases of fake news in 3 yrs: Thakur in House

THE FACT-CHECK unit of the Press Information Bureau (PIB) had busted over 1,100 cases of fake news so far, said Union Information & Broadcasting Minister Anurag Singh Thakur in a written reply in the Lok Sabha on February 7, 2023. He said the PIB has countered over 37,000 complaints since its inception.

Thakur's statement was in response to a question on fake news by Kerala Congress MPs, K Muraleedharan and Benny Behanan on whether the government has taken cognizance of the increase in fake news cases as reflected in the data published by the NCRB. The government has statutory and institutional mechanisms in place to combat fake news, the minister said, adding that appropriate action is taken by the government and the Press Council in case of violations.

(The Indian Express, February 8, 2023, New Delhi)

Govt: Don't need a unified media council with statutory powers

THE GOVERNMENT has told a parliamentary committee that it may not be desirable to set up a unified media council as media platforms already have self-

regulatory mechanisms. However, the committee has reiterated its demand for such a framework with statutory powers to enforce advisories.

The Parliamentary Standing Committee on Communications and Information Technology, chaired by Shiv Sena member Pratap Jadhav, had suggested a media council to the I&B Ministry, saying there were limitations in enforcement of advisories issued by the Press Council of India (which covers print media) and News Broadcasting Standards Authority (which covers private news channels).

The committee had said the ministry should explore the possibility of establishing a media council encompassing print, electronic and digital media.

(The Indian Express, February 11, 2023, New Delhi)

Complete sensitivity towards dignity and safety of women in news, ads expected: Murmu

President Droupadi Murmu on March 12, 2023 said it is expected that the media would have “complete sensitivity” towards the dignity and safety of women in their advertisements, news and programmes.

In a video message while flagging off an All Women Bike Rally, organised by the Navbharat Times, the president said that according to the Constitution, it is the duty of every citizen of India to give up such practices which are against the dignity of women.

“To perform this fundamental duty, it is necessary that the thinking of every citizen should be respectful towards the women. The foundation of respectful conduct towards women can be laid in the family itself,” she said.

Mother and sisters should inculcate in their sons and brothers the values of giving respect to women and also asked teachers to strengthen the culture of respect and sensitivity towards women among the students, Murmu said.

“The President said that it is expected from the media that they would have complete sensitivity towards the dignity and safety of women in their advertisements, news and programmes,” according to a statement from the Rashtrapati Bhavan.

Murmu said the nature has given women the ability to become mothers; and the one who has the capability of motherhood, the capability of leadership naturally exists in her.

She said that despite all the limitations and challenges, women have set new records of success on the strength of their indomitable courage and skill.

(The Pioneer, March 13, 2023, New Delhi)

Media Welfare and Schemes

Govt. of Tripura introduces health insurance for journalists*

The Tripura government has decided to provide Health Insurance Scheme amounting to Rs 3 lakh to the accredited journalists of the state in which 80 per cent of the annual fee will be borne by the state and 20 per cent will have to be paid by the journalist. This decision was taken on April 21, 2022 during meeting of the Council of Ministers. Describing the decision as ‘historic’ and ‘indicative’ of the pro-media mindset of the ‘state government’, Shri Sushant Chaudhary, Minister of Information, stated that those Government-accredited journalists, aged 21 to 65, who are not enrolled in other health insurance schemes such as Ayushman Bharat, are eligible for this scheme. At present, there are 177 accredited journalists in the state, said Chaudhary.

(Rashtriya Sahara, April 22, 2022, New Delhi)

Pension of journalists in Uttarakhand increased to eight thousand*

Chief Minister Pushkar Singh Dhami announced that the amount of journalist pension being provided by the state government under Journalist Welfare Fund would be increased from Rs 5000 to Rs 8000 and further, accommodation would be provided by the Department of Information to the journalists, coming to Dehradun from different districts of the state, as per past practice. In the second provincial convention of Uttarakhand Journalist Union, held at IRDT Auditorium on June 19, 2022, the Chief Minister felicitated students, who got first place in High School and Intermediate in Uttarakhand Board along with the people, who have done excellent work in various fields like health, social

* Translated by PCI

service, etc. and awarded them with Uttarakhand Journalist Union Devbhoomi Ratna Award.

(Rashtriya Sahara, June 20, 2022, New Delhi)

At right talks, India & EU agree to shield freedom of journalists and activists

India and the European Union (EU) on July 15, 2022 held the 10th round of talks on human rights, agreeing to safeguard the freedom, independence and diversity of civil society actors, including human rights defenders and journalists. The two sides also discussed freedom of expression on both online and offline platforms, said the government in a statement.

India and the EU reiterated their commitment to protecting and promoting all human rights. In this context, as open and democratic societies, they emphasised the “universality, indivisibility, interdependence and interrelatedness of all human rights”.

According to the government, they both concurred on the importance of safeguarding the freedom, independence and diversity of civil society actors, including human rights defenders and journalists, and respecting freedom of association and peaceful assembly.

“The EU reiterated its opposition to capital punishment....without exception. India reiterated its stand on recognition of Right to Development as a distinct, universal, inalienable and fundamental human right that is applicable to all in all countries,” it said.

“India and the EU expressed the need to foster greater engagement on human rights issues, based on internationally recognised human rights laws and standards. Both sides recognised the importance of strengthening national and international human rights mechanisms for the protection and promotion of human rights and the important role of national human rights institutions, civil society actors and journalists,” said the government.

(The Times of India, July 16, 2022, New Delhi)

UN Chief's call for steps to protect journalist

More than 70 journalists have been killed this year and record number of media persons are incarcerated today while threats of imprisonment, violence and death against them keep growing, UN chief Antonio Guterres said on October 31, 2022 and called on governments and the international community to take the necessary steps to protect them.

Guterres' remarks came ahead of the International Day to End Impunity for Crimes Against Journalists on November 2.

"A free press is vital to a functioning democracy, exposing wrongdoing, navigating the complex world and advancing the Sustainable Development Goals," the Secretary-General said.

"Yet, more than 70 journalists have been killed this year simply for fulfilling this role in society. Most of these crimes go unsolved. Meanwhile, a record number of journalists are incarcerated today, while threats of imprisonment, violence and death keep growing," he said.

A surge in disinformation, online bullying and hate speech, particularly against women journalists, is contributing to the stifling of media workers around the world, he said.

"Intimidation by way of the abuse of legal, financial and other means is undermining efforts to hold the powerful accountable. These trends threaten not only journalists, but society as a whole," he said.

The United Nations Plan of Action on the Safety of Journalists aims to create a safe and free environment for all media workers.

(The Assam Tribune, November 1, 2022, Guwahati)

Print Media Ad Spends Likely to Rise 9% in 2023: Report

Advertising spends in print media in India is expected to grow 9% on year to reach Rs 20,133 crore in 2023 while overall advertising expenditure (adex) is set to cross Rs 1 Lakh crore, Pitch Madison Advertising Report (PMAR) 2023 has said.

Overall, advertising spends in the country is expected to grow 16% this calendar year against while globally, the advertising industry is expected to grow 3%, the report said.

In 2022, print advertising in the country grew 15% by volume and 11% by value at Rs 18,470 crore, as per PMAR. This “indicates that print offers a compelling option for marketers for new launches, topical communication and topical messaging”, the report said.

Print media contributes 21% to the overall adex in India against the global average of 4%.

In absolute terms, adex has grown to Rs 89,803 crore last year from Rs 74,231 crore in 2021, marking the second highest annual gain in two decades, the report said.

Digital advertising spends grew 35% last year against 14% increase in traditional (TV & print) media adex, PMAR said.

(The Economic Times, February 16, 2023, New Delhi)

Chhattisgarh passes Media Security Bill

Chhattisgarh Assembly on March 22, 2023 passed a bill ensuring security to media persons in the state. Chhattisgarh Media Person Security Bill 2023 saw the passage in the house after a debate late on March 22, 2023 evening. This was one of the key promises made by Congress in the run up to the 2018 Assembly polls in Chhattisgarh. “This is a historic day for the state and Legislative Assembly. It is an important day for our media friends too. We have delivered what we have promised”, Mr Baghel told the reporters after the bill was passed in the house. A six-member committee will be constituted at the state and district levels to examine the grievances of the journalists, the chief minister said while explaining the provisions of the bill. The committee will comprise retired bureaucrats and officers of state public relations department, besides media persons.

(The Asian Age, March 24, 2023, New Delhi)

Attack on Media

Press Club of India condemns attack on journalists

The Press Club of India has condemned the way five journalists were attacked during a Hindu Mahapanchayat meeting held on April 3 at Delhi's Burari Grounds.

"It seemingly smacks of preconceived nefarious designs of communal hooligans to force media persons to follow their hidden agenda. Going by the series of attacks on media persons in the recent past, it could be inferred that these people are hell-bent on gagging the press in its entirety," said a Press Club of India statement.

It said it was sad that the Delhi Police remained a mute spectator and did not arrest the culprits involved in the Burari attack. "Press Club of India demands immediate arrest of these hooligans to unearth sequence of events leading to the barbaric assault."

On another incident in Uttar Pradesh's Ballia, the Press Club said, "it is highly condemnable on the part of Ballia district administration to arbitrarily arrest those journalists who had exposed the leak of 12th examination English paper."

The Press Club of India demanded the immediate release of arrested journalists and action against those involved.

(The Hindu, April 6, 2022, Delhi)

Man held for mowing down journalist made similar attempt on an activist two years ago

Pandharinath Amberkar, arrested for allegedly mowing down journalist Shashikant Warishe on February 6, has a history of run-ins with persons opposed to the setting up of a refinery and petrochemicals factory in Maharashtra's Ratnagiri district. Police records show he had earlier too allegedly tried to run over an anti-refinery activist.

In April 2020, the activist, Manoj Mayekar, son of the then sarpanch of Kumbhavade village where Amberkar too hails from, was injured after allegedly being hit by Amberkar's SUV.

Amberkar is now in the custody of Rajapur police for his alleged role in the Warishe murder case.

A journalist with a local Marathi newspaper, Warishe died after being run over by a vehicle, allegedly being driven by Amberkar.

The incident took place on February 6, 2023 after Warishe wrote a report against Amberkar.

(The Indian Express, February 10, 2023, New Delhi)

Scribe ‘murder’ case: Maharashtra govt. to give 25 lakh to kin

The Maharashtra government on February 12, 2023 announced that a financial aid of Rs 25 lakh will be given to the family of journalist Shashikant Warishe who was mowed down by an SUV allegedly driven by a land dealer in Ratnagiri district.

The government will also give a permanent job to the son of the deceased, Ratnagiri District Guardian Minister Uday Samant said.

“A financial aid of Rs 25 lakh will be provided to journalist Warishe’s family. An amount of Rs 10 lakh will be given from the Chief Minister’s relief fund and Rs 15 lakh from other sources,” Mr. Samant said.

The Maharashtra government has already ordered a probe by a special investigation team (SIT) into the alleged murder.

(The Hindu, February 13, 2023, New Delhi)

Awards and Appointments

Assam to mark 100 years of sports journalism in State

A 1923 story on a three-day soccer event in eastern Assam’s Sivasagar has become the reason for celebrating the centenary of sports journalism in the State.

Asamiya, a weekly magazine published by Chandra Kumar Agarwalla, a native of Rajasthan, had carried a descriptive story on a series of football matches between the Sibsagar (earlier spelling) Town Club and Sibsagar High School in the issue of July 1, 1923. The two teams had shared the honours at the end of the event.

“It took more than seven decades for sports journalism to find space in news weeklies in Assam. And stepping into the 100th year of the publication of the first piece of sports news, which set the trend, calls for celebration,” Assam Sports Journalists’ Association (ASJA) president, Subodh Malla Baruah, told The Hindu.

The football story had an impact on the Asamiya’s business and circulation. A Kolkata-based company that manufactured footballs placed the first advertisement in the magazine on May 20, 1923.

And sports writers of that era – a rarity – began receiving a “bonus” in the form of bylines. The first was for Beliram Das, whose report on football match at Palasbari west of Guwahati, was published on July 29, 1923.

(The Hindu, April 1, 2022, Delhi)

Sahitya Akademi award for three from Assam

Senior journalist and writer Manoj Kumar Goswami has been chosen for the Sahitya Akademi award for 2022 in the Assamese language category for his collection of short stories, *Bhool Satya*.

A panel of jury comprising Prof Jyotsna Rout, Kula Saikia and Dr Pradip Jyoti Mahanta selected Goswami for the award.

In Bodo language, Rashmi Choudhury has been chosen for the Sahitya Akademi award 2022 for her poetry collection *Sansrini Modira*. Kharga Bahadur Nepali from Assam bagged the award for *Saino* (drama) in Nepali language. The Lumding-based writer used to publish a monthly Nepali magazine titled *Bindu*.

In Manipuri language, Koijam Shantibala bagged the award for the poetry collection *Leironnung*.

Meanwhile, Sahitya Akademi has named Jury Dutta as the winner of Sahitya Akademi prize for translation 2022 in Assamese language. Dutta, a faculty member of Tezpur University’s Assamese department, has been chosen for the award for the book *Kocharethi: Araya Nari*, which is a translation of Malayalam novel *Kocharethi* by Narayan.

In Bodo Language, Raja Devojit Basumatary won the award for the book *Kabuliwalani Bangali Biji*, which is a translation of Bengali novel *Kabuliwalar Bangali Bou* penned by Sushmita Bandyopadhyay.

In Nepali language, writer Purna Kumar Sarmah of Biswanath district was named the winner for translation of *Shantanukulanandan*, an Assamese novel written by Purabi Bormudoi. Sarmah, a retired teacher and chief secretary of Assam Nepali Natya Sammelan, has many books to his credit.

(The Assam Tribune, December 23, 2022, Guwahati)

Tribune's Kaziranga scribe feted

The Kaziranga Correspondent of The Assam Tribune, Debasish Baruah was felicitated by the Bokakhat subdivisional administration (civil) on January 26, 2023 during the celebration of Republic Day at Bokakhat General Field.

Baruah was felicitated with the traditional *xophura* along with a *gamusa* and a citation. He was felicitated for his sincerity and balanced news coverage with honesty.

Baruah has been associated with The Assam Tribune Group of Newspapers as their Kaziranga Correspondent since 2010.

(The Assam Tribune, January 28, 2023, Guwahati)

The Print, Saurabh Shukla win IPI-India Award for Excellence in Journalism

The India chapter of the International Press Institute, IPI India on February 10, 2023 conferred the Award for Excellence in Journalism 2022 jointly to *The Print* and *NDTV* correspondent Saurabh Shukla.

Shekhar Gupta, Founder-Editor of *The Print*, accepted the award which was given for the news portal's "stories which exposed how hospitals, local bodies and governments in various States mismanaged the support system for the fight against COVID".

Mr. Shukla was awarded for his coverage and exposure of hate speeches at a religious event in Haridwar in 2021. "The [TV news] channel not only

captured the speeches on video, but also interviewed some of them who justified their speeches. The expose also led to arrest of a few of the speakers,” IPI-India said. The winners received a cash prize of Rs 1 Lakh each, a trophy and a citation.

(The Hindu, February 11, 2023, New Delhi)

Good journalism will shape India’s destiny: PCI chief

Press Council of India (PCI) Chairperson Justice Ranjana Prakash Desai on February 28, 2023 lamented the trend of fake and sensational news, and made a strong pitch for practice of “good journalism”.

Good journalism will “undoubtedly” shape the destiny of India, she said while addressing an event organised by the Council to present National Awards for Excellence in Journalism for the year 2020.

Eleven journalists were given the award under various categories, including rural journalism, photo journalism and reporting from conflict area.

Justice Desai said that “as the Chairperson of the Press Council, I have to deal with complaints against the press, complaints by the press, and I must confess that there is so much negativity attached to it”.

“There are menaces of fake news, exaggeration of news, sensationalisation of news, vulgar advertisements.... news inciting communal passions. We make an effort to improve the standards of journalism,” she said.

“That doesn’t mean journalism is all bad. We (also) have some excellent journalists. But we must admit there are lows also. In some places journalism has stooped down to a certain level. We are making a Herculean effort to bring it to a particular standard,” the PCI Chairperson said.

Justice Desai said she was trying her best to improve the standards of journalism and called upon senior journalists to also contribute by teaching budding journalists the norms and ethics of the profession.

“As the fourth pillar, journalism will stand firm to support our democracy. It will protect us. One day, it will be a reality. That is because we have such journalists,” she said.

“But, we also must see what are the drawbacks and try to get over them,” Justice Desai added.

The PCI Chairperson presented the prestigious Raja Ram Mohan Award for 2020 to Anne Bhavani Koteswara Prasad, who is considered a doyen of vernacular journalism of Andhra Pradesh with his 65-year long career in the field.

(The Assam Tribune, March 1, 2023, Guwahati)

Tributes

Photojournalist Ashok Panda passes away

Senior photojournalist Ashok Panda died in a road mishap while he was on way to Puri to cover the rath yatra on July 1, 2022. He was 57.

Panda was heading towards Puri on his motorcycle when an unidentified vehicle hit his bike near Satsankha.

He was working for an Odia daily newspaper. Earlier he used to work for The Asian Age.

The media fraternity, political parties and people who knew him condoled his death.

(The Statesman, July 2, 2022, New Delhi)

Vepa Rao, Ex-HT Sunday Magazine Editor, Dies at 76

Professor Vepa Rao, senior journalist and professor of journalism for more than three decades, died in Hyderabad on October 31, 2022 after a brief illness, his family said. Rao was 76.

According to family members, Rao suffered a brain haemorrhage at his Shimla residence a few months back after a fall and had recovered. He went to Hyderabad to spend the winter, where he suffered another brain stroke on October 10, and went into a coma.

Rao worked as Editor of the Sunday Magazine of the Hindustan Times for close to a decade before he decided to join academics in 1987.

He also served as Professor at IIMC Dhenkanal in 1996-97.

(Hindustan Times, November 1, 2022, New Delhi)

Journalist M.S. Prabhakara passes away

M.S. Prabhakara, journalist, academic and author in English and Kannada, passed away at his residence in Kolar on December 29, 2022. He was 87.

He had served as correspondent for *The Hindu* for many decades in Assam and South Africa.

He was born in Kolar in Karnataka in 1936, and had lived for nearly three decades in Assam, first as a teacher in Gauhati University and later as a correspondent of *The Hindu*.

He lived for nearly a decade in South Africa, during its most turbulent years. He was *The Hindu's* first correspondent on the continent.

He resigned from Gauhati University in 1975, and joined *Economic and Political weekly*. He returned to Guwahati in June 1983 as the Special Correspondent of *The Hindu* and, later, also *Frontline*, covering developments in Assam and its neighbourhood in Northeast India, travelling widely in the region. He retired in 2002.

As per his wishes, the body has been donated to M.S. Ramaiah Memorial Hospital.

(The Hindu, December 30, 2022, Delhi)

Senior Journalist Sonny Abraham passes away

Sonny Abraham, 65, a prominent Delhi-based journalist, Founder of NetIndian and former Editor of United News of India (UNI), died of COVID-related complications late on January 24, 2023. Abraham was posted as UNI's Chief of Bureau of the Middle East at Dubai for seven years. A well-travelled journalist, he also reported on the PMO. He is survived by wife Rachel, son Vivek and daughter Vinita.

(The Hindu, January 26, 2023, Delhi)

Academic, former scribe Ramesh Goswami dead

Retired professor of Doomsdooma College, social activist and former Doomsdooma correspondent of *The Assam Tribune*, Ramesh Goswami, passed

away at his residence at Tapubon of Rupai Siding. He was 77 and was suffering from prostate cancer.

Born in Patrapur village of undivided Kamrup district on March 21, 1946, Goswami joined Doomdooma College as lecturer of Education on October 9, 1972 after completing his postgraduation in Education from Gauhati University. He retired from service in February 2007.

Goswami served *The Assam Tribune* as its Doomdooma correspondent during 1975-1976.

He leaves behind his wife, Major Geeta Goswami, and two sons, besides a host of relatives.

Goswami's death has been mourned by various individuals, institutions and organizations, including Doomdooma MLA Rupesh Gowala, Doomdooma College, Bir Raghav Moran Government Model College, Doomdooma, and Tinsukia College.

(The Assam Tribune, February 24, 2023, Guwahati)

World Media in Indian Press

French cartoonist Sempe, famous for New Yorker covers, dies

French Cartoonist Jean Jacques Sempe, who won international acclaim with a series of more than 100 drawings for the covers of the *New Yorker* magazine, has died at the age of 89.

His cartoons often showed small figures set in large urban landscapes, drawn in delicate lines and offering gentle social commentary on modern life.

“Tender irony, the delicatessen of intelligence, the jazz: we will not be able to forget Sempe. We will surely miss his view of the world and his pencil,” French President Emmanuel Macron wrote on Twitter.

One of France's most famous visual artists, Sempe drew scenes of daily life in elaborate detail, usually from an overhead or faraway perspective and in pastel colours.

Born August 17, 1932 in a village near Bordeaux, Sempe did not complete high school, drifted from job to job and briefly joined the army before moving to Paris in the 1950s and starting to earn a living with his drawings.

He had his first success in the late 1950s with the “Le Petit Nicolas” series of children’s books about a schoolboy, with Asterix writer Rene Goscinny.

His international breakthrough came in the late 1970s, when he started drawing covers for *The New Yorker*, sketching city life as seen by an outsider looking in, his characters often lost in big crowds or set against wide panoramas.

Most of the drawings had little or no dialogue, but short captions often subtly hint at the characters’ worries or hopes.

“There is a lot of silent emotion in the drawings of Sempe,” Le Monde cartoonist Plantu said on France Inter radio.

Sempe’s favourite subjects were children, trees, cats, musicians and life in Paris and New York. His cartoons rarely used text to make wry comment on big-city life.

People riding bicycles were one of Sempe’s favourite subjects.

“It’s always been one of my dreams – to have a group of friends who go for bike rides in the country every Sunday morning. In real life, it never happened. I kept trying to organise it but everyone was always too busy to slow down for it,” he told *The New Yorker* in a 2019 interview.

Sempe’s wife, Martine Gossieaux Sempe, announced the death to news agency Agence France-Presse.

His biographer, Marc Lecarpentier, said Sempe – as he signed his work and was known universally – died at a vacation home, but did not specify where that was, AFP reported. Sempe had a home and studio in Paris.

(The Indian Express, August 13, 2022, New Delhi)

Russian Court bans top newspaper

A Russian court on September 5, 2022 stripped investigative newspaper *Novaya Gazeta*, whose chief editor last year was co-awarded the Nobel Peace Prize, of its print licence, in the latest blow to the country’s independent media.

Another Moscow court on September 5, 2022 jailed respected former defence reporter Ivan Safronov for 22 years on treason charges for divulging state secrets.

Russian independent media have in recent years faced unprecedented pressure, with authorities further tightening the screws since Moscow's Ukraine offensive.

Novaya Gazeta chief editor Dmitry Muratov said after the hearing that the paper will appeal the verdict, calling it “political” and “without the slightest legal basis”, news website *Mediazona* reported.

(The Hindu, September 6, 2022, Delhi)

HK police arrest head of largest journalist group

The Chairman of Hong Kong's largest journalists' association was arrested on September 7, 2022 for allegedly obstructing police and public disorder while reporting.

Ronson Chan, chairman of the Hong Kong Journalists Association and an employee of news outlet Channel C, and a colleague had planned to report on a meeting of public housing apartment owners in the city's Mongkok district, Channel C reported.

The two were stopped by police and asked to present their identification cards. Chan was subsequently arrested. Police said they discovered two men “acting suspiciously” on September 7, 2022 and ordered them to produce identification. They said Li complied, while Chan refused.

Meanwhile, five speech therapists were convinced of sedition after they printed children's books about sheep and wolves that court said was aimed at inciting hatred against authorities.

(The Indian Express, September 8, 2022, New Delhi)

UAE newspaper shut down, its staff fired after fuel price report

The story about high fuel prices was safe, editors agreed, even under the strict press laws of the UAE. Instead, it unleashed a firestorm at Al Roeya newspaper

in Dubai. Within days, top editors were interrogated. Within weeks, dozens of employees were fired and the print paper declared dissolved.

The newspaper's publisher, Abu Dhabi-based International Media Investments, or IMI, said Al Roeya's closure stems only from its transformation into a new Arabic language business outlet with CNN. However, eight people with direct knowledge of the newspaper's mass firings said the layoffs came in the aftermath of the article on the gas prices. The story that staffers say set off the crisis came together earlier this summer, when high prices were the talk of the town. The story spread like wildfire on June 2. Within hours though, the article was deleted from the website and never made it to print. Several employees involved with the article were summoned, faced extensive questioning and were suspended. A week later, the group was given a choice: resign with additional benefits or be terminated and face repercussions. The eight compelled to resign included top editors.

(The Indian Express, September 14, 2022, New Delhi)

EU lawmakers condemn Myanmar's crackdown on media freedom

EU lawmakers on October 6, 2022 condemned the crackdown on media freedom in military-ruled Myanmar and called for the release of "every unfairly detained journalist."

Since the military seized power in February, 2021, it has forced at least 12 media outlets to shut down and arrested about 142 journalists, 57 of whom remain detained.

Most of those still detained are being held under an incitement charge for allegedly causing fear, spreading false news or agitating against a government employee.

In its resolution adopted by show of hands, the EU Parliament cited the cases of BBC freelance producer Htet Htet Khine; Sithu Aung Myint, a Frontier Myanmar columnist and contributor to Voice of America; and freelancer Nyein Nyein Aye.

“Strongly condemning the military junta’s violent and illegitimate rule in Myanmar, MEPs urge it to drop all politically motivated charges against the members of the press and media workers, and unconditionally release every unfairly detained journalist,” the EU Parliament said.

“They also call on the junta to immediately end its abuses, including arbitrary arrests and detention, torture, sexual violence and other ill-treatment as well as unfair trials against people working in the media.”

According to Reporters Without Borders, Nyein Nyein Aye was sentenced in July to three years in prison with hard labor on charges of “causing fear, spreading false news and agitating crime against a government employee.”

“We remain concerned for her safety and wellbeing in detention, and call for the release of Htet Htet Khine and other media workers who have been unjustly detained in Myanmar,” said BBC Media Action Chief Executive Officer Caroline Nurse.

Some of the closed media outlets have continued operating without a license, publishing online as their staff members dodge arrest. Others operate from exile.

The army’s takeover led to mass public protests that the military and police responded to with lethal force, triggering armed resistance and escalating violence that have led to what some UN experts characterise as a civil war.

EU lawmakers also called for restoration of the civilian government and the “unconditional release” of Myanmar’s former president, Win Myint, and former leader Aung San Suu Kyi.

(The Pioneer, October 7, 2022, New Delhi)

67 journalists, media workers killed in 2022

Russia’s war in Ukraine, chaos in Haiti and rising violence by criminal groups in Mexico contributed to a sharp spike in the number of journalists killed doing their work in 2022, according to a new report released.

The International Federation of Journalists (IFJ) says that 67 journalists and media staff have been killed around the world so far this year, up from

47 last year. The Brussels-based group also tallied 375 journalists currently imprisoned for their work, with the highest figures in China including Hong Kong, in Myanmar and in Turkey. The IFJ and other media rights groups have called on governments to take more concrete action to protect journalists and free journalism.

“The failure to act will only embolden those who seek to suppress the free flow of information and undermine the ability of people to hold their leaders to account, including in ensuring that those with power and influence do not stand in the way of open and inclusive societies,” IFJ General Secretary Anthony Bellanger said.

(The Sunday Statesman, December 11, 2022, New Delhi)

Iran, France spar over Khamenei toons published in Charlie Hebdo

Iran on January 5, 2023 shut down a decades-old French research Institute in response to cartoons published by the French satirical magazine Charlie Hebdo that mocked the country’s ruling clerics.

Iran’s foreign ministry called the closure of the French Institute for Research in Iran a “first step” in response to the cartoons, which the magazine had billed as a show of support for anti-government demonstrations that have convulsed Iran for nearly four months. The ministry said it would “seriously pursue the case and take the required measures” to hold France accountable. On January 4, 2023, Iran summoned the French ambassador to complain about the cartoons.

Iran’s foreign minister Hossein Amirabdollahian on January 4, 2023 vowed a “decisive and effective response” to the publication of the cartoons. French foreign minister Catherine Colonna accused Iran of following “bad politics.”

(The Times of India, January 6, 2023, New Delhi)

Media watchdog urges release of journalist detained in Kabul

Media watchdog Reporters Without Borders along with 14 French media outlets and production companies on February 6, 2023 called on Afghanistan’s Taliban rulers to release a journalist imprisoned for a month in Kabul.

In a joint statement, RSF and French media said journalist Mortaza Behboudi, with dual French and Afghan citizenship, was arrested on January 7 in the Afghan capital, two days after he arrived in the country as part of a reporting assignment. They said they decided to make the case public after trying in vain for a month to obtain his release.

RSF and French media called on Taliban authorities “to end this senseless situation” and that the “respected and appreciated” journalist was said to be “accused of spying.”

According to the statement, Behboudi, 28, began his career as a photojournalist at the age of 16 in Afghanistan, where he was born. He came as a refugee to Paris at 21 because he had been threatened in his home country and later worked as a freelance journalist for numerous French media.

Behboudi was awarded the Bayeux Prize for War Correspondents last year for a series of reports about life in Afghanistan under the Taliban regime.

(The Pioneer, February 7, 2023, New Delhi)

Reporter covering shooting shot dead

A gunman accused of killing a woman in the Orlando area returned to the same neighbourhood hours later and shot four more people, killing a journalist covering the original shooting and a 9-year-old child, Florida police said. Spectrum News 13 identified the slain reporter on February 23, 2023 as Dylan Lyons. Photographer Jesse Walden was also wounded. They were in an unmarked news vehicle on February 22, 2023 covering the first homicide when a man approached and shot them. The man then went to a nearby home where he fatally shot T’yonna Major and critically wounded the child’s mother. The sheriff said police have detained Keith Melvin Moses, 19, who they believe is responsible for all of the shootings.

(Hindustan Times, February 24, 2023, New Delhi)

Media drop Dilbert after creator’s Black ‘hate group’ remark

The creator of the Dilbert comic strip faced a backlash of cancellations on February 25, 2023 while defending remarks describing people who are Black as members of “a hate group” from which white people should “get away.”

Various media publishers across the U.S. denounced the comments by Dilbert creator Scott Adams as racist, hateful and discriminatory while saying they would no longer provide a platform for his work.

Andrews McMeel Syndication which distributes Dilbert, did not immediately respond on February 25, 2023 to requests for comment. But Adams defended himself on social media against those whom he said “hate me and are cancelling me.”

Dilbert is a long-running comic that pokes fun at office-place culture.

The Los Angeles Times cited Adams’ “racist comments” while announcing on February 25, 2023 that Dilbert will be discontinued from February 27, 2023 in most editions and that its final run in the Sunday comics – which are printed in advance – will be March 12.

The San Antonio Express News, which is part of Hearst Newspapers, said on February 25, 2023 that it will drop the Dilbert comic strip, effective March 1, 2023 “because of hateful and discriminatory public comments by its creator.”

The USA Today Network tweeted it also will stop publishing Dilbert “due to recent discriminatory comments by its creator.”

The Plain Dealer in Cleveland and other publications that are part of Advance Local media also announced that they are dropping Dilbert.

(The Statesman, February 27, 2023, New Delhi)

Courts and the Press

Top Court Pulls Up J’khand Over Midnight Arrest of Journalist

The Supreme Court on August 29, 2022 reproached the Jharkhand government for arresting a journalist in contravention of the settled procedural safeguards, commenting that there appears to be “complete lawlessness” in the state.

A bench of justices Dhananjaya Y Chandrachud and Hima Kohli took umbrage at the state police knocking on the doors of the journalist at midnight and dragging him away from his bedroom on July 17 while making arrest in an extortion case.

“You go to his house at 12 o’clock at night, pull him out of his bedroom... This is no way to treat a journalist. This is complete lawlessness,” said the bench, scrapping state’s appeal against bail to News 11 Bharat’s head, Arup Chatterjee.

(Hindustan Times, August 30, 2022, New Delhi)

SC Slams TV Channels for ‘Sensationalising News’

The Supreme Court on January 13, 2023 strongly disapproved the conduct of TV channels in sensationalising news and “serving an agenda”.

A division bench comprising justices KM Joseph and BV Nagarathna, while hearing a clutch of pleas seeking to curb hate speech incidents, asked the News Broadcasting and Digital Standards Authority (NBDSA) and the central government how such broadcasts could be controlled.

The bench minced no words in observing that such TV channels are creating divide in the society. It also suggested strict action be taken against news anchors indulging in promoting hate speech. The bench further suggested that if hefty penalties are imposed on offending news anchors, they will be aware that they will have to pay a price. “Anchors can be taken off (air) too”, the bench verbally remarked.

“If the anchors of TV programs are themselves part of the problem then what can be done?”, Justice Joseph, speaking for the bench, remarked. The court asked the counsel representing NBDSA as to how many times has it taken off anchors indulging in promoting hate speech. The bench said that the NBDSA should not be biased.

(The Economic Times, January 14, 2023, New Delhi)

Court says journalists not exempt from disclosing sources to investigating agencies

A Delhi court on January 17, 2023 said there is “no statutory exemption in India to journalists from disclosing their sources to investigating agencies”.

Chief Metropolitan Magistrate Anjali Mahajan at Patiala House Court made the observations while rejecting a closure report filed by the CBI, which was

tasked with investigating how certain news channels and a newspaper had aired and published reports related to a disproportionate assets case against late Mulayam Singh Yadav and his family members on February 9, 2009, a day prior to the scheduled date of hearing in the Supreme Court.

“Merely because the concerned journalists denied to reveal their respective sources, as stated in the final report, the investigating agency should not have to put a halt to the entire investigation. There is no statutory exemption in India to journalists from disclosing their sources to investigating agencies, more so where such disclosure is necessary for the purpose of aiding and assisting in investigation of a criminal case,” the court said.

The court said the investigating agency can always bring to the notice of journalists concerned the requirement of disclosure of source being essential and vital to investigation proceedings. “The investigating agency is fully equipped under IPC and CrPC to require public persons to mandatorily join in an investigation....,” the court said.

(The Indian Express, January 19, 2023, New Delhi)

Hindenburg report on Adani: SC rejects plea for media gag

The Supreme Court on February 24, 2023 rejected a plea seeking to stop the media from reporting on the Adani-Hindenburg matter till the court takes a decision on the petitions pending before it.

“We are not going to issue any injunction ever against the media,” Chief Justice of India DY Chandrachud, heading a three judge bench, told Advocate M L Sharma, who filed the plea contending that the media was sensationalising this issue.

The bench, also comprising Justices P S Narasimha and J B Pardiwala, told Sharma to “make a reasonable argument not for injunction against the media”.

The counsel reminded the court that it was yet to pronounce its decision on a batch of petitions on the matter. The bench said it would pronounce its order soon.

(The Indian Express, February 25, 2023, New Delhi)

CHAPTER-IV

Report on State of Media in Jammu & Kashmir* (Adopted by the Council on 22.09.2022)

By an order dated 29th September, 2021, the Chairman of the Press Council of India (PCI) Justice C. K. Prasad, taking cognizance of a complaint by Mehbooba Mufti, President of the Jammu & Kashmir People's Democratic Party, set up a Fact-Finding Committee (FFC) consisting of three members — Mr Prakash Dubey, Convenor, Mr Gurbir Singh and Dr. Suman Gupta, both members. The FFC, as per the terms of the order, was requested to investigate the complaint dated 27th September, 2021, if need be visit the Kashmir and Jammu regions, meet the various parties and individuals with a stake in the matter, and file a report at the earliest.

The complaint by Mehbooba Mufti cited various problems faced in Jammu and Kashmir by members of the news media. These included cases of intimidation and harassment by state security forces and representatives of the government. Ms Mehbooba stated in her complaint that in recent days, various journalists had been 'raided' by security forces, and several of them had their communication gadgets like laptop, computers seized. She further stated that journalists had been randomly told to report to the police and subjected to interrogation and harassment. Other forms of intimidation, Ms Mehbooba alleged, included being ousted from government accommodation, and being placed on an Exit Control List (ECL) preventing them from foreign travel. Many news persons had also been detained under the Unlawful Activities Prevention Act (UAPA), she had stated in her letter.

The letter has an attachment also — a questionnaire sent by the Police department to various journalist asking them to provide certain details including their allegiance to political parties, the property assets they own, and to list the names of relatives in Pakistan.

*The Hon'ble Chairperson, Smt. Justice Ranjana Prakash Desai and Council Members namely S/Shri J.S.Rajput, Prajnananda Chaudhuri dissented from the report. The same is at the end of the report.

In brief, Ms Mehbooba Mufti's case presented to the PCI Chairman, Justice Prasad stated that while the Constitution of India guaranteed freedom of speech and expression, for the Press and news networks in J&K "the freedom of expression had been virtually guillotined..." She also lauded the journalists stating they were stretched to the brink reporting in a conflict zone, and requested for intervention so that "truth does not become a casualty".

Following the setting up of the FFC, the three-member committee visited Srinagar on 12th and 13th October, Jammu on 17th and 18th November, and Srinagar again on 18th 19th and 20th November. During the visits, we met and recorded the statements of a wide cross-section of Journalists, owners of media companies, social workers/NGOs and senior government and police officials. We also met the complainant, Ms Mehbooba Mufti, the Inspector General of Police Vijay Kumar, the Divisional Commissioner for Kashmir, Pandurang Pole, and Lieutenant Governor Manoj Sinha.

While Jammu was generally peaceful, the atmosphere of hostility and conflict was palpable in both our visits to Srinagar. A few days before our first visit to Srinagar, on 7th October Satinder Kaur, principal of a school, and Deepak Chand, a teacher in the same school, were shot dead by alleged militants in Srinagar's Allochi Bagh area. Media reports said a militant group The Resistance Front (TRF) had claimed responsibility, and blamed them for getting students to "participate in 15 August celebrations". Two days earlier, the TRF had also claimed responsibility for the killing of Srinagar's well-known pharmacist, Makhan Lal Bindroo, a popular Kashmiri Pandit who had continued business in Srinagar.

During our second visit, on 18th, 19th and 20th November, Srinagar was under the cloud of the Hyderpora Encounter, where members of civil society claimed that in the hunt for militants, two ordinary citizens had been shot by the police. Altaf Ahmad Bhat, a businessman who owned the building where the shooting occurred, and Dr Mudassir Gul, a dentist, were picked up to identify the militants, but in the alleged gun battle, the police spokespersons claimed the duo were killed in the crossfire. The operation by the J&K Police, Army and CRP, was botched up possibly by wrong intelligence, but the issue was further exacerbated by the police secretly spiriting off the bodies of the slain civilians to Handwara, 70 kms away, for a secret burial. The families

and supporters of the victims took to the streets, and the police retracted their statement that the duo were militants. The local administration subsequently allowed exhumation of the bodies, and returned them to their relatives for burial in Srinagar. When we reached on 18th November, a bandh call had been given by the Huriyat Conference for the 19th of November. There was tension, but the bandh was widely and peacefully observed.

These incidents highlight the deeply fractured situation in the territory of Kashmir. Conflict and tension between the government forces and the militants is a fact of daily life, and the people have been forced to live under the shadow of the gun, with all the disruptions that go with it. The issues that plague the Kashmir valley and broadly the entire region of J&K, is not the subject matter of the report. However, it needs to be underlined that the members of the media are functioning in this ‘conflict’ atmosphere for quite a while, and are therefore often subject to pressures from the various parties of the conflict.

To again clarify, the FFC report by the Press Council of India (PCI) team has confined itself to the terms of reference outlined by the Chairman of the PCI, which relate to the problems and issues being encountered by the news media in the Jammu & Kashmir region.

Background

When we consider the Union Territory of Jammu and Kashmir have a population of just 13.6 million — less than metropolitan region of Mumbai — the number of daily and weekly publications in circulation is impressive. Government registrations show Jammu with 259 print publications (both dailies and weeklies) including 82 English dailies, 29 in Urdu and 22 Hindi dailies. Kashmir region has registrations of 166 publications, including 41 English and 57 Urdu dailies. These numbers indicate only those publications that have registered for being eligible or government advertising. Therefore the actual number in circulation, including those who have just launched in the last 2-3 years or who haven’t registered, may be 20-30% more than the official figure.

Besides print publications, there are the broadcast news television regional networks targeting Kashmir and Jammu communities. These include both divisions of national networks like News18 J&K, Zee Salaam and DD Kashir

and DD Urdu as well as local networks that include Gulistan News, Win TV, STV and Munsif TV. All India Radio too has bulletins in 5 local languages targeting local communities in Gurjarri, Balti, Urdu, Kashmiri and Pahadi.

Besides these, internet based news channels are popular and quick with the news, often ahead of the broadcast networks. We came across several like ‘Kashmir Crown’, ‘The Real Kashmir News’, ‘Kashmir Newslane’ and ‘The Kashmir Walla’, as well as news agencies like the Kashmir News Service (KNS) and CNS that transmit news reports and photographs to a variety of platforms.

PRINCIPAL AREAS OF CONCERN

Ouster from Accommodation:

One of the common complaints we encountered in Srinagar was the ouster of Journalists from the residential accommodation they were occupying. Several persons also complained that offices allotted to them by the Government’s Estates Department had also been claimed back. Often the reasons given were not in writing but were mere oral instructions. In some cases, the department claimed the persons or organizations had defaulted on payment of rentals.

We found that unlike other centres, in Jammu and Kashmir, because of shortage of accommodation or perhaps the low income level of journalists and sparse resources of news organizations, most of them were occupying government-allotted residences. A large number of the Press Corps, for instance, stay in the Srinagar Press Enclave, which is owned and administered by the local government. This widespread cases of ouster from government allotments showed that the action perhaps had been turned into a lever, especially in the last 12 to 18 months after the abrogation of Article 370, to bring pressure on those who the local administration felt did not see eye to eye with the government of the union territory. Some of the depositions reproduced below seem to support this hypothesis.

Mohd Aslam Bhat, President of the Editors forum, said: “Kashmir is a conflict state and our situation is different, It is difficult to judge government action. However, it is an indicator that of the 40 persons who have got notice to vacate government accommodation in recent days, 20 of them are journalists.”

Earlier deposing as the Executive Editor of the Kashmir News Service, he revealed: “We have been facing an onslaught by the state, and we do not know the reason. On 15th October, 2020 the KNS office was sealed. We have been honoured with many state awards, and we have an active staff of 25 journalists. The office was allotted to us 20 years ago, but suddenly, without notice, it was sealed by the Estate Division of the J&K government. We have been paying regular rent of Rs 7,000 a month without default. When we asked for the reason, the local officers said they had orders from above, from the secretariat. It was around the same time when the ‘Kashmir Times’ office was also sealed. The phone call we got to vacate the office was from Deputy Director — Estates: but till today, there are no written orders.

“Now more than a year has passed but the govt department is not allowing us to take our material and equipment from the sealed office. Our generator, computers and other equipment is rotting there without maintenance.”

“As we have mentioned, there was no notice, and no reason why we were thrown out from our office. Our doubt though is that we are running news about opposition groups and parties too. KNS news is carried by most papers and we have wide subscription. Raj Bhavan, the seat of the Governor, was a subscriber too, till suddenly one day the subscription was cancelled.”

Yusuf Jameel, a senior journalist, now working for the *Deccan Chronicle* and *Asian Age*, told the FFC as follows: “Those who did ‘balanced’ reporting were targeted. I was given the run around. Altaf Hussain of BBC and AFP’s Naseer Masoodi were told to vacate their government accommodation. *Kashmir Times* too was evicted from their office and residential accommodation. The officer coordinating the ‘eviction’ activity was one Gulam Hussain of the Estates department.

“In my case, I initially got a few phone calls asking me to vacate. There was no written notice given, no reasons given. I was just bluntly told, it is government property, vacate! I have occupied my residential accommodation since 1988, and nobody gave me such an ultimatum earlier. Finally, I decided not to resist any further and vacated the accommodation in March 2021. I had no other home, so I moved in with my father (in the Naseembagh area of Srinagar).”

Anuradha Bhasin, Executive Editor of *Kashmir Times*, and **Pramod Jamwal**, Editor of *Kashmir Times*, who both appeared together before the FFC at the Jammu Press Club, stated as follows: “The residential quarter allotted in the name of Anuradha Bhasin in 2001 in Jammu was vacated and all the belongings thrown out in October 2020. No show cause notice or eviction order was sent to Anuradha Bhasin. Cases filed in the court are yet to be heard. Listing of the case in J&K High Court, Jammu is yet to take place. In the first instance, Judges refused to hear the cases the plea that they know the party-petitioner Anuradha Bhasin.

“The office of *Kashmir Times* allotted in 1991 in Pratap Park, Residency Road, Srinagar was sealed on October 19, 2020. The same day, the order of eviction and sealing is stayed by the court of Deputy Commissioner, Srinagar, but police force and Estates Department officials sealed and disconnected the power supply. The case is yet to be listed and heard in the court or the J&K High Court, Srinagar. No show cause notice or eviction order was given to the Editor, *Kashmir Times*, Srinagar.”

In 2009, a similar order of eviction and demolition issued by the J&K government was quashed by the court in Srinagar and Estates Department was directed to settle the dues with allottee who has invested money in setting up the office with new construction. The reimbursement of money from the Estates Department is still pending.

“We are not the only victims of the state’s accommodation policy. Altaf of BBC and Nasem Masood of NDTV have also been summarily evicted without notice from their government accommodation.”

Even as we were recording depositions of various news persons in Srinagar in November 2021, the largest circulated English daily in the region, ‘Greater Kashmir’ was forced to vacate its offices in Srinagar. Arshid Rasool, who writes for Daily Guardian and J&K New Age, said the newspaper vacated the office on 18th November, which had been occupied by the newspaper for over 20 years. Despite appeals they did not get extension.

‘Greater Kashmir’ editor-in-chief Fayaz Kaloohad received a formal notice on 17th November, 2021 signed by the deputy director of estates,

saying that the period for which the office was allotted to the newspaper had expired, and that the newspaper was occupying the premises ‘illegally’. The newspaper was told in the notice that it had to pay outstanding rent amounting to Rs 13,383. Though time was given till 24th November to vacate the office, the newspaper’s management shifted out on 18th November to a private premise in Rangreth area, Srinagar.

It must be mentioned this mass-circulated daily has been in the cross hairs of the government administration, and has been blacklisted in respect of release of government ads. Its offices were raided in October 2020 by the National Investigation Agency (NIA) in cases related to ‘terror funding’.

The FFC Convenor, Mr Prakash Dubey, wrote to the Chief Secretary, Government of J&K, on 21st January, 2022 requesting the J&K government to furnish reasons for the ouster of several journalists from their homes and offices. When no reply was received, Mr Dubey sent a reminder dated 8th February, 2022 through Secretary, Press Council of India (PCI). However, no reply has been received so far. In case, the J&K government sends its version of events, it will be incorporated in the report.

Discrimination in respect of government advertising

A common theme among newspaper editors and owners we met was the complaint that government advertising was released to newspapers selectively based on the ‘line’ and nature of its coverage. Some newspapers, who had earned the wrath of the local administration, found advertising either totally withdrawn or curtailed to a trickle.

While the newspaper industry in India is heavily dependent on advertising, in Jammu and Kashmir, after decades of conflict, private industry and commerce are at a low ebb and so is private sector advertising. In these circumstances, the biggest advertiser by far is the J&K Government and its various arms and subsidiaries. The government of the union territory is aware of the high dependence of the news media on government advertising and has therefore put in place a Media Policy for the region, released on 15th May, 2020. This has replaced the earlier 2016 policy. The new media policy has decreed the government’s Department of Information and Public Relations (DIPR) as the

nodal agency for the release of all advertising of government departments, and government owned companies and their subsidiaries.

New Media Policy: Among the major changes, the new media policy has taken note of the growth of digital media platforms and earmarked 40% of the funds for platforms other than print. An important aspect of the Policy is that it requires a newspaper or any other news platform to be ‘empanelled’ with the DIPR for being eligible to receive government advertising. For this the newspaper or news platform needs to be in continuous existence for a minimum period of 3 years. The process of empanelment, it appears, is a gruelling one; and while it is a necessary condition, it may not be sufficient for a news media outlet to receive government advertising.

The Policy calls on the DIPR to prepare media plans on the basis of maximum reach and economy and newspapers cannot refuse to take advertising, on pain of being ‘de-empanelled’.

The Policy annexures make it clear that (i) “Government advertisement is not intended to provide financial support to any media... Promoting a transparent, constructive and healthy culture of unbiased information to all shall remain the overriding objective of the policy.” And (ii) While releasing such advertisements, DIPR shall not take into account the political affiliation or editorial policies of the newspaper, publications and journals...”

In the same breath, the policy gives itself a wide berth with a broad spectrum of negative categories. These unfortunately allow wide scope for subjective interpretation. The policy states that (a) “DIPR shall not release advertisements to such newspapers...which incite or tend to incite communal passions, preach violence, violate broad norms of public decency or carry out any acts or propagate any information prejudicial to the sovereignty and integrity of India.”

More specifically, it says “J&K has significant law and order and security consideration, it has been fighting a proxy war supported and abetted from across the border.” In order that “efforts of anti-national elements to disturb the peace are thwarted”, the policy recommends that before empanelment, the “antecedents of the paper/news portals as well that of its publishers / editors / key personnel are duly gone into.”

A statement prepared for the FFC by the Information Department conceded that as many as 26 publications of 259 in the Jammu region, and 17 of 166 publications in Kashmir region had their advertising suspended in recent weeks and months on various grounds, in some cases like mass circulated ‘Greater Kashmir’, ‘Kashmir Reader’ and the Urdu ‘Kashmir Uzma’ — which are known for their anti-establishment stand — no reason was ascribed. As many as 9 publications the Kashmir regions were taken off ad support for the reason of “poor printing quality”.

Depositions: Many of the editors and owners of news outlets who met the FFC, complained that the power to sanction and withdraw advertising was being misused by government authorities as a carrot-and-stick strategy to discourage critical news coverage.

Deposing before the FFC in Jammu, **Anuradha Bhasin**, the Executive Editor of *Kashmir Times* and its sister publications said stoppage of advertising for the group had pushed many of its editions towards closure. She also said the discrimination in releasing advertising was not new but went as far back as over a decade since the Congress-led UPA had formed the government in the Centre. Complaints and appeals to the Press Council and the courts had not helped the situation.

“The release of advertisements from DAVP was stopped in April 2011 to all newspapers of Kashmir Times Publications: Kashmir Times (Jammu Edition), Kashmir Times (Srinagar Edition), Dainik Kashmir (Hindi, Jammu Edition) and Jammu Prabhat (Dogri, Jammu Edition). No show cause notice was given. The fate of the petition filed before the Press Council of India in 2011 is not known despite a dozen meetings with the then Chairman Justice Markanday Katju and other members. The DAVP and the Union Information & Broadcasting Ministry says that this has been done on the advisory of Ministry of Home Affairs. The representations made to the Home Minister, I&B Minister and even the Prime Minister did not bear any fruit and no reply has been received so far.

“In 2013, the then Home Minister P Chidambaram issued another advisory asking all the Public Sector Undertakings (PSUs) of Government of India and private organization to stop sending advertisements to Kashmir Times groups (A copy was sent to Press Council of India and seen by many members in

presence of a delegation of J&K Press Association). Interventions by the PCI or other press organizations have not helped in any way.”

The release of advertisements from J&K government was stopped on August 5, 2019 to *Kashmir Times* Publications and never restored since then. The representations sent to the Director Information and Public Relations and Secretary-Commissioner Information remain unacknowledged till date. Two newspapers *Dainik Kashmir Times* and *Jammu Prabhat* have suspended publication. Interventions from the PCI and Editors Guild of India and other press organisations have not helped so far.

Manish Gupta, Editor of ‘*Early Times*’ published from Jammu, journeyed all the way from Jammu to Srinagar to record his deposition before the Press Council Committee sitting in Srinagar. He said his newspaper had been stopped on 10th May 2021 for 3 days for having put out news that the J&K Shrine Board based in Jammu had become non-functional, and its website was also not functioning.

He said that the principal secretary Niteshwar Kumar, who is also the Shrine Board CEO, was behind the drive to ‘throttle *Early Times*’. He said the newspaper had faced discrimination in advertising for last one year. He said the newspapers were facing discrimination and administration was putting pressure not to discuss issues like ‘early elections’. Only issue that is allowed is ‘development’. Mr Manish also put on record before the FFC the various representations before the authorities on the discrimination in release of advertising.

A DIPR statement to the FFC, conceded that advertising had been withdrawn from ‘*Early Times*’ and said it was on the basis of a recommendation of an Enquiry Officer, Deputy Director Information (PR), Jammu vide a letter dt. 26th August, 2021 following complaints registered of “harassment, abuse and torture” against the publication.

Farzana Mumtaz of ‘*New Kashmir*’ said “there are no big corporates, or businesses in the valley so the government is the main advertiser, and we have submitted cases showing how government is using advertising to arm-twist the press.”

Tahib Mohiddin, Editor in chief of the Urdu daily '*Chattan*', told the FFC as follows: "There is hardly any interaction with the Press by the Government Information department. On advertising, however, we were asked many questions on our editorial policy, on circulation, etc."

"There is no defined policy on how government advertising will be allocated. '*Chattan*' is a 40-year-old liberal paper, yet we get only the minimal advertising. '*Greater Kashmir*' has been shut out for all government advertising because the government does not like its editorial policy. As a result, many reporters and photographers had to be fired. Earlier monitoring was being done by the Information Department of the government, now it is the police that is directly doing it."

"I have been trying to meet Mr Rahul Pandey, Director-Information, for the last few months, but he is not accessible."

S. Tariq, Correspondent for the '*Kashmir Images*' and Secretary of the Anantnag Working Journalists Association, said "Ads to '*Kashmir Images*' have been stopped for last 4-5 days; it is perhaps because of our coverage of the Hyderpora encounter, but we don't know for certain. Our editor Bashir Manzar has received threats on many occasions. "I am a cartoonist, yet even I keep getting messages from our office to soften my stand. We try and be as balanced as possible, but things are not good."

Mohd Aslam Bhat, president of the Editor's Forum, told the FFC delegation: "It is a matter of concern that someone as senior as Bashir Manzar, Editor of '*Kashmir Images*', is now seriously considering shutting down the newspaper as all advertising has been withdrawn. Who can survive without ads?"

There are many the FFC team met who felt that the print news media was slowly but surely being choked and was dying. Besides falling readership, they observed that sourcing advertising from mainly a single source — the government— was not a viable commercial model, and news platforms would very quickly have to move online to save themselves from extinction. Zafar Iqbal, formerly with NDTV and now a correspondent of 'MyMojo Story' told us: "What we have learnt is that the model of physical advertising, and dependency on printed newspapers, is flawed. It is not sustainable. The digital model works better, it is more flexible."

Detention, threat of arrest and intimidation

The common thread in many of the depositions and evidence was the constant harassment they faced in the line of duty from security forces. These ranged from accusations of aiding the ‘separatists’ to lengthy interrogation in police camps, to detention and arrests for circulating ‘fake news’. Many journalists said that either themselves or other journalists they knew, had been interrogated in the infamous ‘Cargo Centre’ in Srinagar, which is generally known as detention and interrogation centre for hardcore militants.

The admitted position, in a statement issued to the FFC by Inspector General of Police (Kashmir) Vijay Kumar; is that since 2016 till mid-October 2021, 49 cases have been registered against journalists. Among these, 8 journalists have been charged under the stringent Unlawful Activities (Prevention) Act, 17 have been registered as criminal intimidation, and 24 journalists have been booked for extortion and other crimes.

We have listed some of the significant depositions which raise serious concern:

Zulfiqar Majid, Correspondent for Deccan Herald: “In June 2020, I had just completed a painful gall bladder surgery, I was summoned by the state C.I.D. for some innocuous tweets. They told me the police was preparing a background note on all journalists. But the tactics were humiliating. I was summoned dozens of times, sometimes late at night. This created a social problem for me and my family in the locality I lived, perhaps it was done deliberately to put me in a problem.”

“In September, this year, 4 journalists were arrested. Out of fear of being hounded by both sides, I have stopped tweeting. The security people are accused journalists are OGW (overground workers) for the militants. Maybe they want me to toe their line. I am not the most harassed, there are others worse off.”

“Some of the journos may have become activists but don’t punish us all. In 2016, I had gone to visit my uncle in Pakistan. Can I not have relatives in Pakistan? But I am repeatedly questioned: Had you gone to Pakistan?”

Majeed Haidari, freelance journalist: “We in Kashmir are caught between the devil and the deep sea. The militants threaten us and the police too. I have

been writing against corruption, and news in general. So far, I have two FIRs registered against me. I have been called and interrogated several times at the Cargo detention centre, which is only meant for terrorists. My social media post of the excessive use of police force on Muharram was an issue. Questioning the tainted officer S.P. Hazrat Imam was another issue.

They track our twitter posts and harass us on the communication. I have complained to the Lt. Governor but there is little response.”

Shakir Mir, The Wire: “The Police department is in overdrive to issue summons, lookout notices for journalists, many are arrested, there is an atmosphere of fear. Zahid Rafiq, who used to work for Tehelka, Al Jazeera, etc, was on his way to Cornell University when he was stopped at the New Delhi Airport. Five journalists were detained for supporting ‘Kashmiriyat’, including BBC photographer Muqtar Zahoor. He was accused of supporting rappers resistance music.”

Habib Irfan, The Economic Times

Azam Javed, Independent Journalist, formerly with The Print

There is a long list of journalists who have been individually harassed. The object is to create a fear and intimidation to fall in with the government line.

- Peerzada Ashiq of ‘The Hindu’ and many others were summoned and asked for the ‘sources’ of their stories.
- Basharaat Masood of the ‘Indian Express’ was summoned and threatened.
- F.I.R.s have been filed against Masrat Zahra, an independent photojournalist, and Gowhar Geelani.

Riaz Masroor and Aamir Peerzada, both working for the BBC, stated the following: “Mukhtar Zahoor, age 26, was picked up from his house and brought to the Munshi Bagh Police Station. He was questioned and detained for a long period, finally released. But he is now mentally disturbed and facing trauma.”

“Harassment of journalists goes back to previous regimes too. Riaz Mansoor, another journalist, was beaten by the police in 2010 when Omar Abdullah was the CM. He is still in a state of fear psychosis. No one says: don’t report, but the signal is to fall in line. Recent cases include Tantrey

Naseer Ganani, was called to fill a questionnaire by the police on all personal details. Muqtar had been under surveillance.

It appears the police have resorted to pressing criminal charges, including the use of the UAPA, against several journalists for their social media posts claiming they were designed to ‘incite the public’. In or around 20th April, 2020, Gowhar Geelani, an author and independent journalist and later Fahad Shah were charged and arrested under the UAPA Act for, according to a statement of IGP Vijay Kumar, “having posted/tweeted many posts which were glorifying terrorism in the Valley, and causing disaffection against the Union of India.”

Around the same period, the J&K Police filed an FIR under the UAPA against independent photo journalist Masarat Zahra, claiming that Zahra was uploading “anti-national posts” on Facebook with the “criminal intention to induce the youth”. Zahra said she had only uploaded her published photographs. She was not arrested or detained, but the FIR and the police inquiry against her continues. The J&K Police also filed a general FIR, though not under the UAPA, against Peerzada Ashiq of ‘The Hindu’ in respect of an encounter in Shopian, South Kashmir.

Javed Baig, worked as Omar Abdullah’s press secretary, and was also the founder of the Kashmir Welfare Association, an NGO working in Badgam district. He told the FFC that though he campaigned for the ‘unity’ of India, and against secession, he was arrested for 9 months soon after the abrogation of Art 370 under the Public Safety Act. He was sent to Varanasi jail along with 60 others. He is today given state protection, and a Police Security Officer (PSO) is assigned to him.

Kazi Shibli is another journalist who was arrested along with Javed Baig. He spent one year in Varanasi jail, and was released without pressing any charges or trial.

On 10th January 2022, we received a complaint/statement from the General Secretary of the J&K, Journalists Association (JAKJA) in respect of a trainee journalist working for the ‘The Kashmir Walla’, **Sajad Gul**. The journalist was arrested by the J&K Police on 5th January 2022 for a variety of charges including criminal conspiracy and circulation of fake news.

The complaint said:

“On 9 February 2021, Gul was charged with ‘rioting, trespassing, and assault’ for an article he wrote for The Kashmir Walla in which villagers in Bandipora alleged they were being ‘harassed and threatened’ by Tehsildar Hajin during a demolition drive. Gul was later booked under various sections of the IPC on the complaint by the Tehsildar at the Hajin police station.”

“In October, Gul was again summoned by the police for questioning after he shared his work and a related video on Twitter. According to his report, the family members of 25-year-old Imtiyaz Ahmad Kakroo, who was killed in a gunfight, alleged that their kin was killed in a ‘fake encounter’. A week before his arrest, Gul had reported a follow up story for The Kashmir Walla about the alleged gunfight, quoting Kakroo’s family members...”

“Now, as per his family, Gul was taken on 5 January and three days later the police said he was booked for publishing fake news ‘in order to provoke people against the government’.

“We are deeply disturbed and concerned about such arbitrary detentions and we immediately seek your intervention in this matter as it threatens the freedom of press in the region...”

Our inquiries revealed that 3 FIRs were registered against Sajad Gul. Two were based on complaints by police officers, and one was based on a complaint by a local tehsildar. However, a judicial magistrate at Sumbal in Bandipora granted him bail on 15 January, but Gul was booked under the Public Safety Act the next day, a provision which makes getting bail virtually impossible.

The justification of invoking the Public Safety Act (PSA) provided by the Bandipora Deputy Commissioner Owais Ahmad, as quoted by the Indian Express on 23rd January, 2022, says:

“You have always made/ tweeted controversial statements on social media and being a journalist, you are less reporting about welfare of UT (Union Territory) rather promoting enmity. You remain in search of anti-national/anti-social tweets and have remained a negative critique towards UT Policies. You make tweets without factual check in order to provoke the people against the

Government. You act as self-proclaimed messiah of terrorists and their families and often use to raise issues which harm the national interests.”

Justifying his continued detention, the Deputy Commissioner’s statement says: *“There is every apprehension that you may get bailed out from Hon’ble Court of law thus will prove fatal for peaceful atmosphere, tranquility, law and order of the Nation... your release at this stage will be a threat not only for Bandipara area but for the whole valley.”*

The Convenor of the FFC, Mr Prakash Dubey, wrote to the Chief Secretary, Government of J&K, on 10th February, 2022 seeking government response on the arrest of Sajad Gul under the Public Safety Act, but no reply has been received yet.

In a statement to the FFC, Divisional Commissioner, Pandurang Pole and IGP Vijay Kumar, justified the various penal steps against journalists stating that “On certain occasions it has been observed that media persons/journalists abuse their position and try to resort to activities that have tendency to incite people which ultimately leads to serious law and order situation...”

Giving examples, the statement said a journalist, Asif Sultan was arrested on 31st August, 2018 for harbouring terrorists in Batmaloo. In another case, journalist Aadil Farooq Bhat of the CNS News Agency, hailing from Pampore, Pulwama was apprehended in Makkah Market on 10th August, 2021 with 2 grenades in a search operation near Lalchowk, Srinagar.

When asked why was Majeed Haidari repeatedly subjected to interrogation, Vijay Kumar said he had tweeted that it was a ‘fake encounter’.

Many journalists and some independent columnists also appeared to support the police action stating that many journalists had become activists for the militants and were indulging in criminal and ‘anti-national’ activities under the guise of their profession. **Tariq** of ANN News pointed out to the case of Adil Farooq of CNS News, who was caught ferrying hand grenades in his lunch box. **Javed Baig**, claiming to be a columnist and researcher, and earlier a press assistant to former CM Omar Abdullah, said “newspaper owners and editors are spreading negativity, and questioning the idea of India.”

“There is ‘Arabisation’ of the culture of Kashmir. It is part of the ISI and ISPR programme. Through negative PR, they are undermining the institutions in Kashmir,” Baig said.

In the opinion of the FFC, there is no justification for journalists to support or aid the anti-government programme of the militants, and if they ferry arms, provide support and harbour militants, or take part in any other unlawful activity, then they cease to be journalists and become militants, or public persons supporting militants, and cannot claim any of the privileges that go with newsmen relaying and communicating news.

However, it is totally another matter, if journalists are penalized or charged with offences for news content circulated that is found to be not in consonance with what the security forces or the government administration believe. News and views may not be always palatable to those who are in power. But it does not mean that they penalize the messenger for it.

Internet darkness, denial of accreditation and other normal privileges of news gathering

The common refrain of all those who appeared before the FFC, was the deliberate hobbling of communication networks after the abrogation of Article 370. This was done by suspending the internet networks in the valley for nearly 2 months from 5th August, 2019. While there could be some justification for cutting communication for the civilian population to avoid build-up of unrest, restricting internet services for journalists seems to be an extreme measure which muzzled the normal functioning of the news media.

To provide some communication access to the media to function, the local administration created a ‘Media Facilitation Centre’ with 4 work stations and slow, 2G internet connection. For the more than 300 local journalists and nearly a 100 journalists who had come to Srinagar to cover the impact of the withdrawal of statehood for the J&K region, sharing 4 work stations was seen as something of a punishment and a professional insult. To the FFC, it appears to be a measure to deliberately put a lid on the circulation of news.

Later, the number of work stations was increased over weeks and months to 20. To side-step the restricted communication network, journalists had to

pool their stories on a single pen drive and then take turns to fly to New Delhi, from where the stories would be relayed to their respective offices.

Here's how Zulfikar Majid, of *Deccan Herald*, described the situation:

“Communication is everything for journalists, yet in Kashmir we are seeing the major problem Internet darkness. After the abrogation of Article 370, there was complete Internet darkness from 5th August to 12th August, 2019. We could only work out of the government-run Media Facilitation Centre. There were 400 Journalists scrambling for 4-5 work stations at 2G speed. The situation continued for 2 months. It has only eased after March 2020. Mobile Internet was again cut for 2 days when Syed Ali Shah Geelani (Separatist leader who stood for Kashmir merging with Pakistan) died on 1st September, 2021.”

Zafar Iqbal, a senior journalist earlier with NDTV, and currently working with MyMojo Story, said:

“The shutting of the Internet in August 2019 created a huge problem. If proper communication and news flow is not allowed it only gives rise to rumours. When Geelani died, there was again an internet shutdown. All communication is through the Internet, and therefore communication itself is throttled. Live encounter coverage is also shut by security forces. Shutting mobile towers makes real time coverage difficult. While these issues can be addressed in Srinagar, accessing remote areas becomes difficult.”

Denial of Accreditation: Almost all those who deposed before us said that the practice of issuing accreditation cards to journalists has been stopped with effect from 31 March, 2020, and no fresh IDs or any other form of press recognition has been issued. Press accreditation in the J&K region is an important passport for safe passage and preventing harassment and detention when traveling in conflict zones. Without this government-issued ID, moving around and gaining access to restricted areas and to government offices has become difficult for newsmen.

Pradeep Datta and Amit Sharma, who appeared jointly and who work for 'Times Now' news channel, deposing at the Jammu Press Club, told the FFC: “There is no accreditation given to journalists since March 2020. This has dried up our access to the Secretariat. If we phone for an appointment, we get access based on the officer's pleasure. IAS now stands for In-Accessible Service.”

Several members of the Managing Committee of the Jammu Press Club, who appeared collectively before the FFC in Jammu, said that not issuing accreditation cards was a deliberate form of harassment as it reduces access. There is also no liaison of government departments with journos. All these steps are designed to reduce the importance of journalism and news media in general.

Sohail Sahran of Times Now told the FFC: “I recall in November 2018, when covering an incident of grenade attack on a BSF party at Puntha Chowk, I was stopped from accessing the site and abused by the Special Operations Group. For many days thereafter I suffered mental trauma.”

Yusuf Jameel, a senior journalist working for the *Deccan Chronicle* and *Asian Age*, said this was part of the larger problem of a general suspicion of local journalists working for both the mainline and Kashmir-based news media. A common charge was they were spreading ‘fake news’.

“Simultaneously, the administration developed its own ‘tribe’ of journalists. Accreditation of journalists was stopped after 2020; and a policy of selective invitations for Press Conference by government/security spokespersons was followed,” Jameel said.

Iqbal Wani, *Srinagar News*, complained that reporters were routinely manhandled by security forces during anti militancy operations.

Riaz Masroor and Aamir Peerzada, both of whom work for BBC, appeared before the FFC and stated: “There are no curfew passes issued even to mainline media. Our private ID cards are not respected when we move about for coverage. Daily reporting has become a problem, we have to find new routes, we are always tense how to get to the spot for covering an incident.”

Most field reporters said the restrictions to report live encounter and conflict incidents with militants had become increasingly severe. A wide cordon around the encounter area would be drawn and media crews kept at bay. The local mobile towers, that allowed internet access, would also be cut off. This made even the use of cell phones for reporting impossible. IG of Police, Vijay Kumar said most of the restrictions were for the safety of the journalists, and to prevent the militants from using cell phones to communicate. “Journalists

are not required to be close to the site of an encounter. We brief them once the operation is over,” Vijay Kumar told the FFC.

Monitoring and Profiling of Journalists

One of the specific complaints mentioned by J&K politician Mehbooba Mufti, in her letter addressed to the Press Council, is that journalists are summoned and made to fill a questionnaire which is suggestive that the person might have links with ‘anti-national’ forces. Ms. Mehbooba has also attached a copy of the purported questionnaire which seeks answers to a wide variety of subjects, most of which have nothing to do with the profession of journalism. There are in all 25 questions, which include queries on: 1. Political allegiance of the respondent; 2. Details of property owned; and 3. Relations in Pakistan.

We asked several journalists who deposed before the FFC about being made to answer questionnaire by the police. Most of them had either been summoned to answer the questions, or were familiar with colleagues who had been interviewed by the police. Zulfikar Majid of *Deccan Herald* said he had been summoned many times, and on occasion to the Cargo Centre, to provide details contained in the questionnaire. *Times Now* staffers in Jammu, Pradeep Datta and Amit Sharma, said they had not seen the questionnaire, but had heard about it; they also said they had received calls from the police asking for details about their family.

The IG of Police, Vijay Kumar, had no hesitation in conceding that there exists a programme to profile journalists working in the J&K region. “Our aim is to profile 80% of Kashmiris, and we will do it for journalists too,” he said.

Other forms of pressure listed by those interviewed mentioned the existence of an Exit Control List (ECL) which blacklists specific journalists from traveling abroad. Many also said that renewal of passports has become a nightmare, and even accessing an internet connection comes with the signing of a ‘bond’ that assures that there will be no ‘misuse’ of the connection.

Riaz Masroor, who works for the BBC, said “the Exit Control List (ECL) is a way we are being discriminated. People now prefer not to travel. Our passports are not being renewed... Many of our personal, communication equipment like mobiles phones and laptops are confiscated and not released.”

Hakeem Irfan, Correspondent for *The Economic Times*, confirmed that since November 2020, an Exit Control List has been created. Of the 43 on the list, more than half are journalists. Among those who had suffered was one Zahid Rafiq, who was on his way to Cornell University, New York, for a writers training course. He was stopped at the Delhi airport.

Irfan stated, “A bond is sought before an Internet connection is issued. Life of freelance journalists has become hell. Editors are being pressurized not to use the word ‘militants’ and replace it with ‘terrorists’.”

Later, after the FFC returned from the Srinagar tour, the committee interviewed the US-based Zahid Rafiq on the telephone. He told us the following: “I had given up journalism a few years ago to pursue a career in creative writing in the US. I was on my way from Delhi to begin a teaching fellowship at Cornell University (in New York state), but was prevented from boarding the flight. I was detained and taken to Srinagar. After questioning I was released as there was nothing against me.”

Takeover of the Kashmir Press Club

The Fact-Finding Committee, in or around mid-January received several complaints from the now suspended Managing Committee of the Kashmir Press Club.

In brief, the nature of the complaints are:

The Kashmir Press Club (KPC), a body of about 300 journalists registered under the Societies Act, 1860, was functioning from a government allotted premise in the Polo View Area of Srinagar for some years. Besides being a place for relaxation and networking for local journalists, the Kashmir Press Club is also a representative body of journalists in the Valley.

The KPC had applied for re-registration in May, last year. This was required by a April 2021 administrative notification after the abrogation of Article 370, and the region being declared a Union Territory. After a long ‘verification’ process by the District Commissioner, on 29th December, last year, a Registration Certificate under the Societies Act was issued to the Kashmir Press Club. However, soon as the Club Managing Committee announced elections on 13th January, the administration issued an Order on the 14th of January, 2022 stating that re-registration of the Kashmir Press Club “*is hereby kept in abeyance till the receipt of final report from Additional District Magistrate, Srinagar.*”

The complaint by the members of the Kashmir Press Club is: the Order dt. 14-01-2022 gives no reason for de-registering the Kashmir Club. The complaint also states the suspension of the Kashmir Press Club was also aimed at scuttling the elections to the Kashmir Press Club, which had been announced on the previous day, i.e. 13-01-2022.

The next day after the de-registration order, on Saturday, 15th January, a group of persons/journalists entered into the Press Club premises in the Polo View Area, Srinagar and declared themselves to be an 'interim' body. The group who trespassed into the club premises were provided protection by the J&K Police. Thereafter, the local administration issued a statement that considering the 'de-registration' of the KPC and the faction-fight, the club premises had been taken over by the J&K Estates Department, the original owner of the property.

The statement says: "Now, therefore, it has been decided that the control of land and building allotted to the Kashmir Press Club for the welfare and benefit of journalists be retained by the Estate Department for the moment."

After studying the sequence of events and the orders passed by the authorities, we have to note some disturbing trends:

1. The Kashmir Press Club was granted a Non-involvement/verification certificate on 24th December, 2021 by the District Magistrate, based on which re-registration of the Club was given on 29th December, 2021. However, subsequently, another report was received from SSP, CID (Hqrs) dt. 30th December, 2021 based on which the 'registration' of the Club under the Societies Act, 1860 has been "kept on hold". No reasons are disclosed in the said order issued to the Kashmir Press Club dt 14th January 2022 for the turnaround.
2. Giving reasons for the 180-degree turn by the local administration is necessary considering the police department vetted the application of the Kashmir Press Club for over 6 months before the Dept issued the non-involvement/verification certificate. The contents of the report of the SSP, CID based on which the 'registration' order was "put on hold" has also not been shared.
3. If the Kashmir Press Club's registration process was put on hold on 13-01-2022, why were some private persons, along with police personnel,

allowed to enter the Club premises on 14-01-2022, and even allowed to hold a meeting in the premises and set up an 'interim body'. The tradition respected by security forces everywhere is no police personnel in uniform enter the press clubs without specific permission from the local management.

4. The Order of the Registrar of Societies, dated 14-01-2022 states that the re-registration of the Kashmir Press Club "*is hereby kept in abeyance till the receipt of final report from Additional District Magistrate, Srinagar.*" Nothing is disclosed when the final report from the Additional District Magistrate is expected, and how long will the Registrar of Societies take to decide on the re-registration/confirmation of de-registration of the Kashmir Press Club.

The convenor of the FFC, Mr Prakash Dubey wrote to the Chief Secretary, J&K Government, on 21-01-2022 with a reminder via Secretary, PCI on 10-02-2022 requesting details of the takeover of the Kashmir Press Club. No reply has been received so far. When a reply is received, the contents will be integrated into the report.

Insurance for Journalists

Several journalists and representatives of media groups pointed out that Jammu and Kashmir, being an active conflict zone, those reporting from the field ran the risk of being injured or even killed in the crossfire between government security forces and militants. The demand for insurance has been voiced several times in the past, and various elected state governments had also agreed in the past to provide insurance cover to all accredited journalists. However, this facility has not been provided.

The following are the details which were provided to the FFC, along with the minutes from the legislative assembly, by Ashwini Kumar, President of the Jammu Press Club:

Ashwini Kumar, President of the Jammu Press Club, along with members of the Managing Committee of the Club:

"Ours is a conflict zone, needing special facilities. Health and medical insurance has been an old demand by the journalists, which has been repeatedly

voiced. Ashok Sodhi, a photographer, was shot dead in 2008 and there was very little government support for his family. Finance Minister Muzaffar Baig announced in the J&K Assembly in 2018 that the insurance and medial cover for journalists had been accepted. Even the draft notification was ready, and Rs 2 crore as initial seed money was sanctioned. Unfortunately, it was never implemented.”

The Other View

Before we go to our conclusions and recommendations, it must be mentioned that the journalists we met, particularly in the Kashmir Valley, are sharply divided on their approach to the government of the Union Territory. While most felt that the government and security agencies had trampled on the freedom of expression, many of those who appeared before us were of the view that the government did not interfere with their rights as long as kept away from reporting and commenting on ‘anti-national’ themes, a popular euphemism used in Kashmir for content that is critical of the government and its policies.

There were also several complaints that journalists and the media were under pressure from both the security forces and the militants and were being ‘choked’ by both sides. Others felt that the politician Mehbooba Mufti had no right to lodge a complaint about suppression of the media as she herself, when she was Chief Minister in the April 2016-June 2018 period, had also acted against those sections of the news media who were critical of her.

Some examples: Ayaz Hafiz, editor of *Rising Kashmir* told us: “We are working in a free and fearless atmosphere. Mehbooba Mufti’s complaints do not apply to us.” Iqbal Wani, who is the editor of *Srinagar News* said, “militants were taking the shelter of the political parties; that the Press was not facing any problems when highlighting public issues, and that his team was not facing pressure from any quarter. In fact, the local administration has a good grievance redressal process, and we see prompt action being taken in case of complaints.” Wani however complained that reporters were routinely manhandled by security forces during anti militancy operations.

Neeraj Rometra, Executive Editor, *Daily Excelsior*, one of the largest circulated dailies in Jammu and Kashmir, was emphatic that a fair section

of the news media had aligned themselves with the militants. He said: “The complaint by Mehbooba Mufti emerged after raids on 4 journalists on 8 Sept, this year. Those persons’ credentials are doubtful, they are associated with secessionist organizations. There is a blog being operated from Pakistan that gives its version of Kashmir events. Sajjad Bukhari, who was gunned down, was named on the Kashmir blog as an Indian government agent.

“Many journalists come under the influence of militants, in the 1990s our own Srinagar bureau chief Rashid became associated with secessionist elements, and we had to let him go,” Rometra added.

Iqbal Ahmed and Bashir Asad,— representing the Urdu ‘KAZIM’ said: “The Kashmir Press Club in Srinagar feels as if we are in Muzaffarabad Press Club (capital of Pakistan-occupied Kashmir). Yes, there is press freedom in Kashmir.”

“On the other hand, militants are targeting us. We published an expose of Fahad Zoru, how he had grabbed 60 canals of land. After that we have been threatened. We have been targeted by the Pakistani origin blog ‘Kashmir Fighters’. There have been threats from Pakistan since 1992. There are two constituencies in media — anti-nationals and nationalists.”

Rahil Rashid of Asian Mail said: There are two types of people and there are two types of journalists. There are journalists for and against the government. If the journalist has the right to write against the government, the government has the right to shut you out. A concurring view of Sharafat Kira of ‘Kashmir Vision’ was: “There should be a line between journalism and activism. If you truthfully report, no one can harass you.”

There were a number of journalists who complained that they were sandwiched between a repressive state apparatus and an equally intolerant force of ‘militants’. Majeed Haidari, a freelance journalist, said: “We in Kashmir are caught between the devil and the deep sea. The militants threaten us and the police too.”

Mouzim Mohammed, Vice President of the Kashmir Press Club said: “Journalists face suppression from both sides, journalism as a profession is in decline. The elected state governments were no different. Mehbooba Mufti’s government raided many press establishments when she was CM. The ‘Kashmir Reader’ was banned for 3 months. Omar Abdullah was no better.”

Senior journalist Yusuf Jameel said, apart from the harassment of the security and government agencies, he had also faced the threats of the militants, who thought he was a government agent.

He told the FFC as follows: “I have had as many as 6 attacks on me from the militants. As a BBC correspondent, I escaped with injuries when a bomb exploded in my office in 1995, but ANI cameraman Mushtaq Ali lost his life in the incident. The worst period was the 1990s during the period of heightened militancy, when 18–19 year olds were roaming around brandishing guns.

“In one case, a militant Yassir Arafat sent a message through a BBC intern demanding I do his interview. He also demanded that it should be a half hour interview. I tried to send word that I never get more than 3-4 minutes on the news bulletins in a day, but who was to convince them? Finally, I did do an interview with the militant, and I sent a message that it will be broadcast at a particular time. Though it was slotted, for some technical reasons, the story was pulled out at the last minute. The militant was furious, and said he would avenge the insult. I feared for my life.”

“In another case, the manager of the Indian Oil Corporation (IOC) had been kidnapped, and through some backchannel talks, his release was arranged. I was invited to the Rajbhavan for the event, and there I found minister Rajesh Pilot was also present. He introduced me to the released IOC manager, and a few photos with the minister were published. Some of the militants drew wrong conclusions. Immediately, I was dubbed a government agent, and I was put on the black list for elimination by an organization called the Hizbul-Momineen. In desperation, and in response to their press release, I put out a press release that I will be present next morning at the Lal Chowk, Srinagar, and whoever wanted to take my life, could do so. Friends and intermediaries pleaded that these people making threats should be treated as ‘children’ and we should ignore them. Some even reached out to them. Finally the threats were dropped.”

Conclusions

From the extensive interview and depositions, one can draw the following conclusions:

1. News media in the Jammu & Kashmir region, and especially in the valley is slowly being choked mainly because of the extensive curbs imposed by

the local administration. There is also the threat of violence by the militants which acts as a deterrent. At a broader level, because of the continuing conflict, the business of news media has been severely disrupted in the region and sources of advertising are slowly withering away. Print media especially, which has large overhead costs, is hardly sustainable anymore.

2. Journalists function with a high level of stress, and are constantly facing pressure both from the government agencies and police as well as militants. That they still manage to do their job in such a hostile environment, itself is commendable. To add to their discomfiture, jobs in news media are not secure due to the declining viability of the business. In this environment, both truth and good journalism are the biggest casualty.
3. The normal lines of communication between the local government administration and journalists has been disrupted with because of the former's suspicion that a large number of local journalists are sympathizers of the militants' cause. This was admitted by Lt Governor Manoj Sinha, who frankly told the FFC that many journalists were of 'anti-national' persuasion. He conceded that when he was first appointed, he used to encourage open press conferences, but now had gone back to a 'selective engagement' with preferred journalists.

Specific Recommendations

- A. **Restoring lines of communication:** Among the first tasks of the local administration is to establish some platforms for discussion so that there can be a dialogue between different stake holders, and the mutual suspicion is slowly eased. The FFC discussed with the 'Editors Forum' the setting up a 3-way Media Advisory Committee between the security establishment, government officers and journalist representatives to encourage dialogue and address grievances. There was enthusiastic support for the idea from the journalist community. A role for the Press Council in such an advisory body can also be considered.
- B. **Ouster from accommodation:** From the numerous cases we documented, there is an obvious nexus between the Government Estates Department removing journalists and news organisations from government-allotted accommodation and their critical views about government policies. While the J&K government has the powers to claim back allotments on certain grounds, such a process cannot be arbitrary and without due process of law. In most cases, even a written notice had not been served.

Legitimate grounds for claiming back the accommodation cannot include ‘criticism of the government’. We recommend that for all those cases where no proper grounds have been served, the accommodation should be restored to the original allottees. Further, a clear written policy should be announced to regulate the allotment and return of government accommodation so that it is not dependent on the whims and fancies of government officials.

- C. **Balanced government’s advertising policy needed:** The New Media Policy of the J&K government frankly states that “Government advertisement is not intended to provide financial support to any media...” and then goes on to say: “While releasing such advertisements, DIPR shall *not* take into account the political affiliation or editorial policies of the newspaper, publications and journals...” (emphasis ours). That’s how it should be. However, from the extensive depositions we collected, it is obvious that the volume of advertising released by the J&K government is directly proportional to the extent of support a publication renders to the government’s schemes and policies. This flies in the face of a ‘free media’ guaranteed by the Indian Constitution. In J&K, where there are very few private advertisers, the government’s power to deny advertising can kill a publication as has been demonstrated in the death of several editions of the *Kashmir Times*, and now the latest casualty *Kashmir Images*. The J&K government must review this slanted policy. As long as a publication is working within the confines of the laws applicable to publishing, advertisement should be released with a ‘neutral’ and unbiased’ approach.

Furthermore, the New Media Policy of the Government, released in May 2020, allows for a process of appeal in case of those publications/news networks who are aggrieved by certain decisions. However, the appellate committees set up within the ‘media policy’ are entirely staffed by government officials. This provision should be revised to include some representatives of media organisations or eminent members of civil society to allow for independent evaluation of appeals.

Since the issue of deployment of government advertising is a big issue of controversy, the government should form an advisory committee involving DIPR officials, media owners/companies as well as journalist

representatives to ensure that government advertising is allotted in a fair and unbiased manner. This will increase mutual trust and confidence among the different stakeholders. The Police should not be associated with such a forum unless it is related to a breach of peace or a criminal offence.

Further, since the volume and rate of advertising is dependent on the circulation/viewership of publications and TV/digital channels, there requires an independent body that certifies the readership/viewership numbers of news outlets. The RNI for newspapers and Broadcast Audience Research Council (BARC) should be approached for independent verification of the numbers.

D. Intimidation, arrests and detention under draconian laws should stop:

The FFC has recorded numerous cases of journalists being subject to interrogation, threatened and made to fill irrelevant profiling documents. We have listed cases of journalists being summoned to the dreaded ‘Cargo Centre’ for questioning—a location reserved for interrogation for armed militants. Officially, the police have conceded to the FFC that as many as 49 journalists have been arrested and charged since 2016, not a small number considering that J&K has a very small press corps. Of these 8 have been arrested under the Unlawful Activities (Prevention) Act (UAPA), which makes bail almost impossible.

The police case is many journalists indulge in ‘anti-national’ activities.

Our conclusion and recommendation are very specific: those indulging in any criminal acts, are not journalists pursuing their profession. If a ‘journalist’ is bearing arms or carrying grenades and other ammunition, he is not a journalist; he is a militant, and should be treated as such. However, the security establishment cannot label writing against government policies, or quoting a family or civilian sources in a story about excesses of the armed forces, or tweeting a point of view as ‘fake news’ or ‘anti-national activity’ and then arresting the journalist for sedition. It is not the business of journalists to support government policies or development work. A journalist’s job is to report the news as it happens, even if it is unpalatable to government officials. The tendency

to see all critical reporting and opinions as ‘anti-national’ must stop. A conflict zone has many players and many aspects of events that unfold. A journalist cannot and should not ignore the government version; at the same time, he is not the spokesperson of the government.

It is further observed, that in the guise of information gathering, threats and various forms of intimidation by the police have become part of the new ‘normal’ in the Kashmir valley, particularly after the imposition of central rule since August 2019. It is also matter of concern that the public relations work of various government departments has been taken over by the Police. This should cease as it is against the letter and spirit of the functioning of the various arms of a democratic government.

- E. Restore normal privileges of news gathering:** Journalists rely on communication networks like the internet, and access to events and persons, to gather and transmit news. A government has the power to snuff these out as we have seen in the case of J&K. Restricted Internet facilities after the abrogation of Article 370 on 5th August 2019, the suspension of internet mobile connectivity whenever there is a conflict situation and denying access to journalists to scenes of an armed encounter are all methods that have developed to choke free and fair news gathering in J&K. These policies must be reversed. Journalists must be allowed to go about their work as professionals, as long as they do not hinder normal security operations. It is also noticed that the government establishment has denied normal privileges like ‘accreditation’ and freedom to travel locally and abroad. Normal access to news coverage and travel is part of the profession and to deny these liberties is humiliating. Accreditation and the freedom to travel should be restored forthwith. By choking lines of communication and a free flow of reporting, the government will only encourage the spread of rumours and hearsay, which is in the long run detrimental to everyone.

The government should address the problem of insufficient number of spokespersons for the different departments by appointing additional spokespersons so that journalists have access to the government version easily. These appointments should be made for both Kashmir and Jammu divisions. If the Police requires additional

spokespersons, these should be appointed, but they should not represent other departments by default.

- F. Restore rights and privileges of the Kashmir Press Club:** The Kashmir Press Club was a legal, representative body with a membership of over 300 journalists. It was registered under the Societies Act, 1860, and after a 6-month verification process issued a 're-registration' certificate on 29th December 2021. Thereafter, it was 'de-registered' and the body's legal existence held "in abeyance" by an order of 14th January, 2022. The elections, announced on 13th January by the managing committee of the club, and slated to be held on 15th February, were disrupted. The land and building of the KPC at Polo View Area, in Srinagar, was thereafter reclaimed by the Estates Department. Representative bodies of journalists such as the Kashmir Press Club should be allowed to function. The FFC has examined the various documents and orders and spoken to a wide cross-section of people, including former Managing Committee members as well as government officials. There is no convincing reason on why the body was superseded and put in cold storage. In a democracy, journalist bodies not only should be allowed to flourish; but their views should be sought and respected. The FFC recommends that the registration of the Kashmir Press Club should be restored, and government officials should not interfere in the election process of what is essentially a private body of news persons.
- G. Entry norms for digital networks:** It is observed that a large number of digital channels and media networks using various social media platforms such as Facebook and Twitter have been sprouting, and there is no entry barrier nor oversight to ensure that they observe the basic norms of journalism. It would therefore be advisable, to carry out a survey and registration process for these news platforms by neutral, autonomous bodies such as the Indian Readership Survey (IRS) and the TV industry's BARC so that both legal due diligence as well as journalistic ethics are observed.
- H. Support for Urdu publications:** Various government departments are buyers of a spectrum of news publications, which provides some support to a struggling industry. However, the FFC received complaints

from many quarters that several important government departments had suspended the purchase of Urdu publications without reason. These subscriptions should be restored. It was also reported that for the allotment of government advertising, the Urdu publications were being handicapped because of shortage of government officials in the respective DIPR departments. This shortage should be made good and advertising support for Urdu publications restored so that there is a balance with other language publications.

- I. **Insurance and health cover:** Jammu and Kashmir is a conflict zone, where the journalists, in pursuing their profession, are risking their life and limb. In 2018, the then elected state government had worked out a scheme for medical and accident cover, to be financed by the state. The current government of the Union Territory should take the initiative ahead and ensure the scheme sees light of day at the earliest.

Inputs From ‘Eligible’ Organisations of the PCI:

Since the Fact Finding Committee was nearing the completion of its work, a special meeting of all the eligible organisations was called by the convenor, **Shri Prakash Dubey** on 7th March, 2022 at the Press Council of India, Headquarters, Soochna Bhawan, Lodhi Road, New Delhi —110003. This was to elicit their views and inputs in respect of the situation of media in Jammu and Kashmir.

Those who attended included Prof B.R. Gupta (Hindi Samachar Patra Samellan), Shri D.K. Maithani (Association of Small and Medium Newspapers of India), Shri Atul Dixit (Association of Small and Medium Newspaper of India), Miss Vidhi Dhankar (Research Assistant, Editors Guild of India), Shri Ashok Kapoor (AISNA), Shri Pradeep Bahl from AISNA, Shri C.K. Nayak (Press Association), Shri Pawan Sahyogi (Indian Association of Press-N-Mediamen), Shri Sanjay Kapoor (Editors Guild of India).

A few members took objection that since the report was not available and since the FFC was set up before the notification of the new term of the Press Council, it did not have the *locus standi* to bring out such a report. The convenor pointed that this was not in the ambit of the present meeting which was restricted to expressing members’ views on the subject of the media situation in Jammu and Kashmir.

Thereafter, various members gave their views and information on the subject.

Mr. Ashok Kapoor said that the freedom of the press has been completely compromised in the Union Territory. The press has important rights which need to be defended. He specifically referred to the Media Policy of 2020 and said that it had sections where a bad example had been set in respect of encouraging a free press. He gave example that one had to send a copy of the advertisement to the DIPR before it was published.

He said that the situation for the industry was so bad in the Kashmir Valley particularly that many of the members were giving up the business of printing newspapers and focussing on other options.

Mr. D.K. Naithani representing Small and Medium Newspaper of India said that since there was no report of the FFC. He had nothing to say.

Mr. B. R. Gupta referred to the cutting off of the Internet when in August 2019 at the time of the abrogation of the Article 370 and the conversion of Jammu and Kashmir into a Union Territory. He said that various gateways were created for journalists which proved to be hindrances for the transmission of news. The Media Facilitation Centre offered only restrictive facilities and, in many ways, it deliberately stopped the free flow of information.

He said retrenchment was a major issue as small and medium newspapers could not circulate their products and therefore, had to let go many of their staffers. He also appealed to the FFC to shed some light on the revenue and financial position of the newspaper industry in the Union Territory during this period after the abrogation of Article 370.

Mr. Sanjay Kapoor representing the Editors Guild of India said the stories emanating out of Jammu and Kashmir are quite horrifying and it appears that the UAPA and other state acts are being used to harass journalists and prevent them from speaking.

He also said that the cutting off of the Internet was a deliberate act to prevent free flow of information and he would expect that that the FFC shed some light on these issues.

He said that recently the case of Fahad Shah, Editor of the ‘The Kashmir Walla’ digital platform was a serious breach of individual freedom and the rights of the press. He said Fahad Shah was arrested on the third occasion even after he got bail. Journalists had been reduced to stenographers and this situation has deep implications for our democracy. Unfortunately, the Courts had not intervened in favour of press freedom in Kashmir, and that is a big disappointment.

Mr. Pawan Sahyogi pointed out that this was not the first FFC but two other Committees had also gone into the condition of the press and media in both 2017 and 2018 and it brought out detailed reports.

He said we should investigate how much headway had been made in respect of their recommendations and whether the Press Council had any impact in helping to provide relief to journalists in Jammu and Kashmir.

Mr. C.K. Nayak of the Press Association said he was part of the Committee which was set up in 2017 and he pointed out that the Media Policy of 2020 goes against the very recommendations of the FFC of 2017. Unfortunately, the Media Policy has given the Government machinery all the powers as both judge and prosecutors.

Mr Nayak added the 2017 recommendations had said that Accreditation for journalists should be extended to the District Level. However, unfortunately not only had this recommendation been ignored but since 1st April, 2020, no Accreditation has been given to any journalist in the Union Territory. This has blocked access for journalists to news coverage. He also criticized the new Media Policy saying that there was no journalist in any of the Committees set up under the policy and it was fully made up of Government officials.

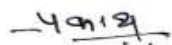
The only positive part of the Media Policy is that it had diversified advertising revenue to all platforms of media. He also said a Rs. 2 crore fund had been set up for the welfare of the journalists by the Jammu and Kashmir government, but no allotment to any journalist had been made in the last 4 years.

After all the submissions were over, some of the organisations said that they would submit written submissions to the FFC for inclusions in the report.

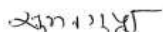
Gratitude: Finally, our report will not be complete without expressing our gratitude to all those people who cooperated and helped the Fact-Finding Committee go about its task. The Lieutenant Governor Manoj Sinha gave us an audience at the Raj Bhavan and discussed the media situation at length. The Divisional Commissioner for Kashmir, Mr Pandurang Pole, as well as the IG of Police, Mr Vijay Kumar, were very cooperative and spent nearly an hour briefing us and answering questions. We are extremely thankful to all of them. To help us coordinate with the various government departments, Mr Rahul Pandey, Secretary — Information and Public Relations, was always available, and he and his team - Mohammed Aslam Khan, Media Coordinator-Sayyad Geelani Kadri, and Deputy Media Coordinator-Mr Yasir Ashraf - rendered all the necessary assistance.

A word of thanks is also due to former Information Commissioner of the J&K Government, Mr Jandiyal as well as former Press Council of India member, Lalit Mangotra, who assisted the FFC. We must also thank Mrs Mehbooba Mufti, who made time to discuss with our delegation, as well as the President of the Jammu Press Club, Mr Ashwini Kumar and his team, who went out of their way to host the sittings and interaction of the Committee in Jammu.

Finally, our list of credits will not be complete without mentioning the continuous work put in by the Secretary of the Press Council, Mrs Anupama Bhatnagar, to coordinate the visits and other engagements of the FFC. Most of all, we must thank the 60 or more journalists, NGO activists, media owners and citizen journalists who deposed before us, often at some risk to themselves. Without them this report would not have seen the light of day.



Prakash Dubey
(Convenor)



Suman Gupta
(Member)



Gurbir Singh
(Member)

Date: 22.09.2022

Place: New Delhi

Dissent of Hon'ble Chairperson and Members, Shri J. S. Rajput & Shri Prajnananda Chaudhuri

Ms. Mehbooba Mufti, President, Jammu & Kashmir People's Democratic Party vide communication dated 27.09.2021 filed a complaint in the Council

regarding harassment of Journalists in Jammu & Kashmir. In this regard, former Chairman of Press Council of India, Mr. Justice C.K. Prasad vide order dated 29.09.2021 had set up a Fact Finding Committee (FFC) consisting of three members i.e. Shri Prakash Dubey (Convenor), Shri Gurbir Singh, Dr. Suman Gupta (Nominated as members of the Press Council vide Gazette Notification dated 6.10.2021) to investigate the said complaint. The FFC visited Jammu & Kashmir on 12th & 13th October, 2021 and again on 18th to 20th November, 2021 for studying the state of press in Jammu & Kashmir and submitted its report on 08.03.2022, the same is placed before the Council for consideration today.

The Council discussed the report. The report contains specific recommendations made by the FFC after considering complaints of the journalists whom they personally met. The report also notes views of certain journalists and the government officers who have given different versions. At the outset, the Chairperson expressed that this report after discussion be referred to Inquiry Committee so that complaint can be adjudicated in due course by the Council. This was however, not accepted by the Council, therefore, discussion progressed further. The Chairperson expressed that in her opinion it is necessary to obtain the views of the Government on the various aspects dealt with by the FFC and also the recommendations made by the FFC in its report. This was not acceptable to the majority of the members who felt that the FFC through the Secretariat of the Council sent several communications to the Police and also to the Chief Secretary to the Government of Jammu & Kashmir to obtain their views on the various aspects which were being considered by the FFC. Some responses were received in writing which have been taken into consideration by the FFC while preparing the report.

Hon'ble Members Professor J.S. Rajput and Shri Prajnananda Chaudhuri were of the view that considering the peculiar circumstances prevalent in Jammu and Kashmir, the report needs to be sent to the Government of Union Territory of Jammu and Kashmir to obtain its views thereon. They submitted that once views are obtained the Council may either make necessary changes in

the report or may even reject the government's response and that such exercise should be made time bound because a lot of time has elapsed. The Chairperson was also of the same view. She expressed that considering the peculiar and sensitive situation present in Jammu & Kashmir region it is necessary to forward the draft report to the Government of Union Territory of Jammu and Kashmir to obtain its comprehensive views. However, since, the majority is of the opinion that the report should be accepted as per Rule 10 of the Press Council (Procedure for Conduct of Business and Meetings) Regulation, 1979 the report will have to be accepted and is accepted as such with the Chairperson and two Members i.e. Professor J.S. Rajput and Shri Prajnananda Chaudhuri dissenting from the majority view as regards acceptance of the report today as they were of the view that the report with its recommendations needs to be forwarded to the Government of Union Territory of Jammu and Kashmir for its comprehensive reply. Accordingly, the dissent be recorded and annexed to the report adopted by the Council with majority.

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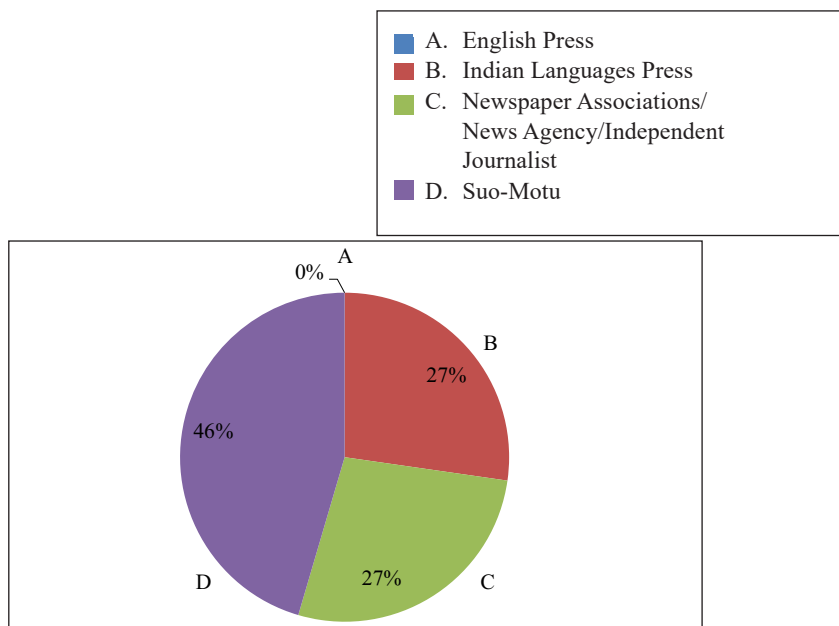
Chapter - V

Statistical Analysis of the Adjudications Rendered in Complaints Regarding Threats to Press Freedom

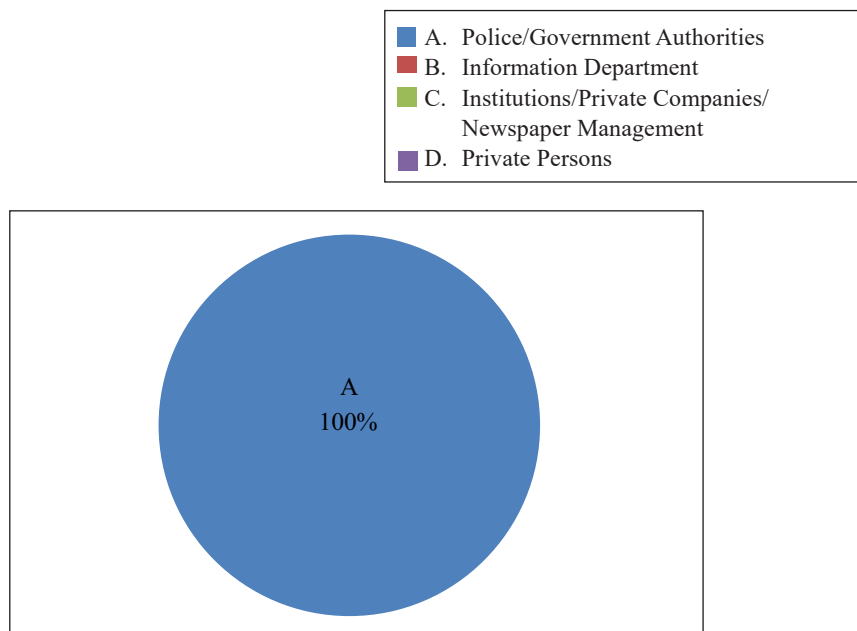
The Press Council of India is entrusted with the responsibility of safeguarding the freedom of the press by monitoring any potential threats that may arise from various sources, including the political parties, government authorities, anti-social elements, or even within the press itself. As per Section 13 of the Press Council Act, 1978, the Council's objectives and functions include not only preserving press freedom but also enhancing the standards of newspapers and news agencies in India. The Council reviews any development that may hamper the availability and dissemination of news that is of public interest and importance. It considers complaints lodged by newspapers, journalists, institutions, or individuals against any authority, organization, government (state or central), or individual that threatens the freedom of press.

During the period under review the Council received **273** complaints, alleging the government or other authorities with attempts at obstructing the free functioning of the press. Besides, **345** matters were pending consideration from the previous year. Of the **618** matters requiring the Council's attention, **11** were disposed of by way of adjudication, while **210** were rejected at the preliminary stage for lack of substantive grounds for inquiry, as matters being outside the Council's charters or sub-judice **1** matter was directly reported to the Council. The remaining **396** matters were under process at the end of the period under review. The following chart clarifies the position for the categories of respondent, complainants and states.

Categories of Complainants

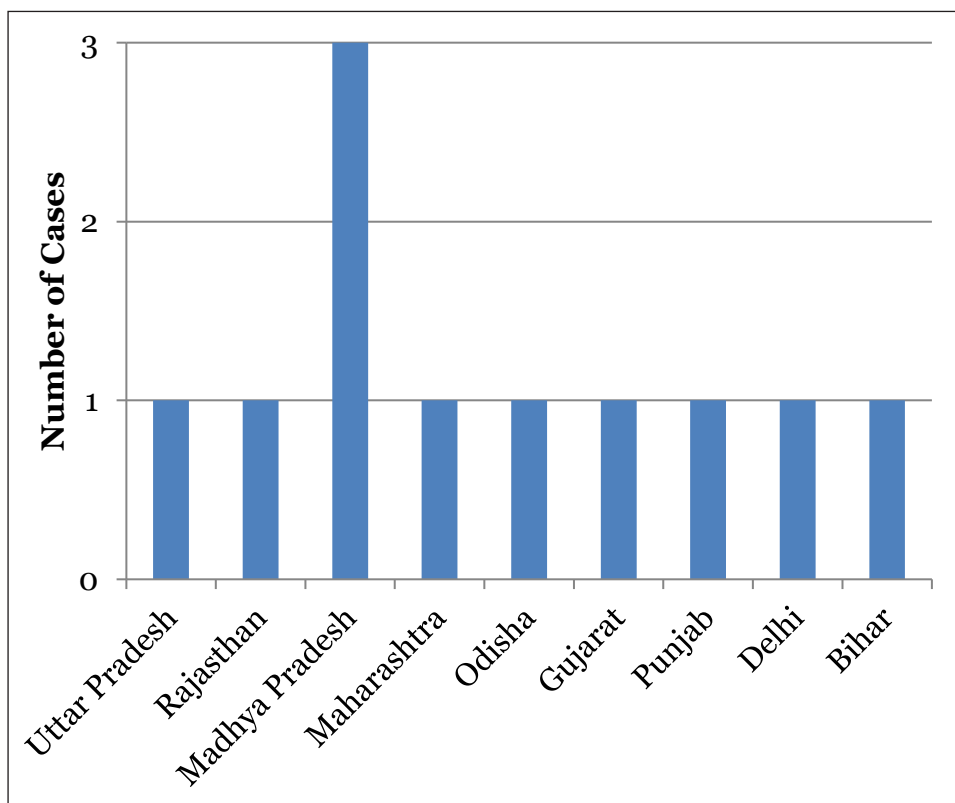


Categories of Respondents



Statewise Distribution of the Complainant Publications

No. of Cases Adjudicated: 11



No. of Cases Adjudicated : 11

State	No. of Cases
Uttar Pradesh	1
Rajasthan	1
Madhya Pradesh	3
Maharashtra	1
Odisha	1
Gujarat	1
Punjab	1
Delhi	1
Bihar	1
Total	11

Harassment of Newsmen

Media is most profoundly regarded as the fourth pillar of a democracy. It holds immense power to mould public opinion, and is expected to act as the guardian of public interest and the protector of the right to information. However, free and critical writings inevitably tend to heckle those against whom such writings have been directed.

The press has time and again, faced the dire consequences in discharging their professional duties truthfully and in an unbiased manner. Journalists are often subjected to various forms of harassment, such as physical assault, false charges, raids on their homes or press offices, abduction, and in severe cases, even murder - all supposedly associated with their journalistic duties. Such mistreatment of journalists can come not only from the authorities but also from terrorists, militants, or other anti-social elements.

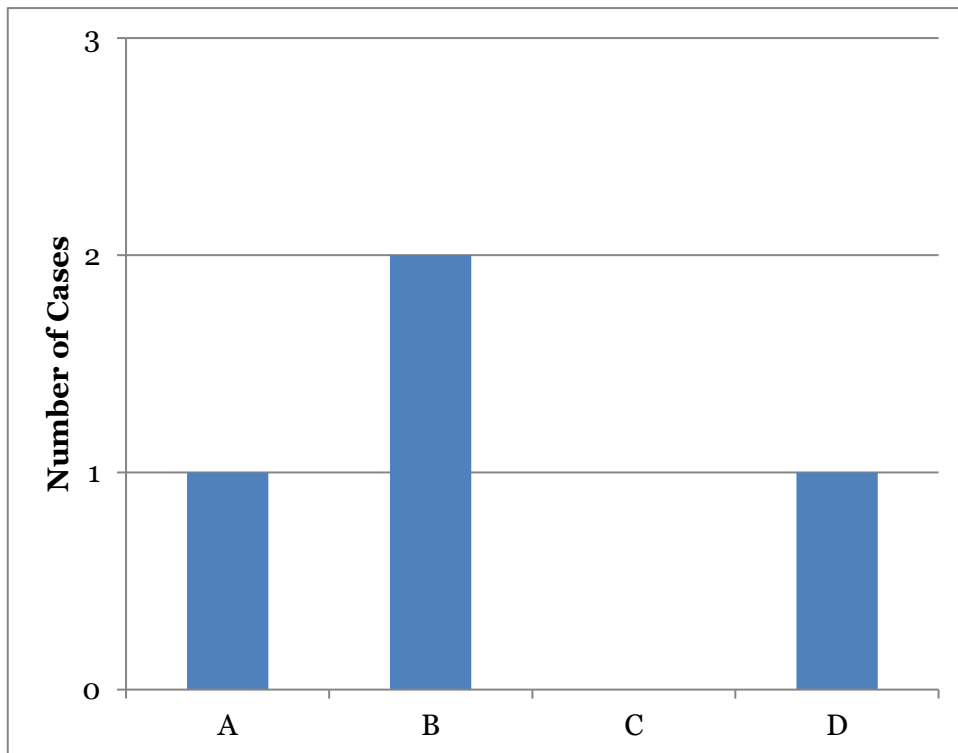
The Council adjudicated a total of **four (4)** such matters in the year under review. **One (1)** of these matters was upheld while **two (2)** were dropped. Remaining **one (1)** matter was disposed of because the matter had become sub-judice or no action by the Council was found to be warranted in the matter.

The graphical chart that follows makes the position clearer.

Harassment of Newsmen

No. of Cases Adjudicated: 4

A	Upheld	1
B	Dropped	2
C	Assurance/Settled/Amends	0
D	Dropped for Non pursuance/ Sub-judice/Withdrawal / Lack of Substance	1



Facilities to the Press

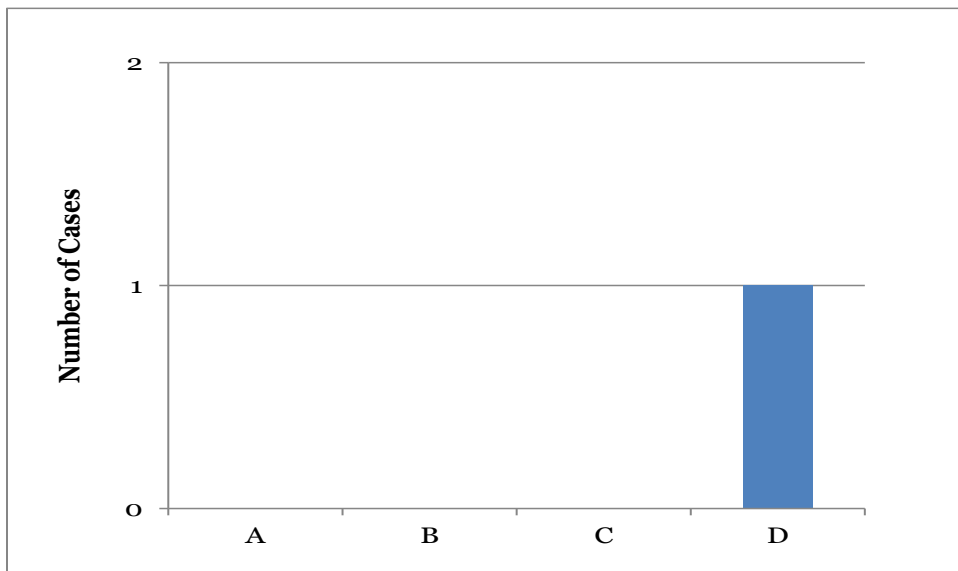
The Press Council of India is mandated by a 1978 statute passed by Parliament to safeguard press freedom and improve the standards of newspapers and news agencies in India. This is reinforced by section 13(2) (e) of the Press Council Act, 1978, which requires the Council to monitor any development that may restrict the supply and dissemination of news that is in the public interest. The Council has been called upon on several occasions to investigate complaints of improper or arbitrary denial of advertisements by various authorities, or denial of accreditation to journalists, thereby depriving them of their fundamental right to gather news or information related to the government. Such actions can significantly impact the financial viability of newspapers, especially regional newspapers in the medium and small categories. The Council has observed that, at times, authorities responsible for providing such facilities to newspapers use them as a means to control the editorial stance of the newspaper.

The Council adjudicated **one (1)** such matter in the year under review which was disposed of for being withdrawn. The graphical chart that follows makes the position clearer.

Facilities to the Press

No. of Cases Adjudicated: 1

A	Upheld	0
B	Dropped	0
C	Assurance/Settled/Amends	0
D	Dropped for Non pursuance/ Sub-judice/Withdrawal/Lack of Substance	1



Suo-Motu Regarding Violation of Press Freedom

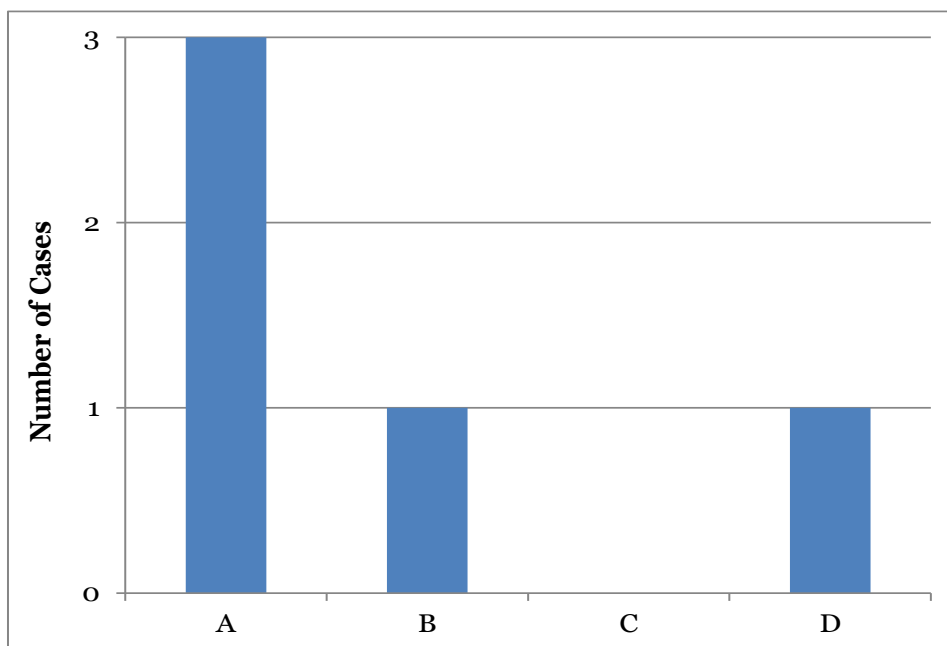
The Council through its Chairperson has the power to take *Suo-Motu* action in matters of grave significance under Regulation 13 of the Press Council (Procedure for Inquiry) Regulations, 1979, *inter alia* concerning attack or curtailment of Press Freedom. Thereupon, the procedure prescribed in these regulations from Regulation 5 onwards shall be followed as if it were a complaint under Regulation 14 of the Press Council (Procedure for Inquiry) Regulations, 1979.

During the financial year, **five (5)** adjudications, falling in this category represent distinct means which can be used to curb the freedom of the press. **Three (3)** of these were upheld while **one (1)** was dropped as the matter was not related to the journalistic duty of the victim. **One (1)** matter was dropped for non-pursuance by the concerned journalist. The following graph depicts the position.

Suo-Motu Regarding Violation of Press Freedom

No. of Cases Adjudicated: 5

A	Upheld	3
B	Dropped	1
C	Assurance/Settled/Amends	0
D	Dropped for Non pursuance/ Sub-judice/Withdrawal/Lack of Substance	1



Curtailment of Press Freedom

The freedom of the press is a fundamental aspect of every democratic society and a crucial human right that guarantees other freedoms. However, various entities such as authorities, political, social, or religious organizations, and other pressure groups often attempt to exert pressure on the press to silence its independent views on issues that affect them. They may achieve this by preventing journalists from covering news, threatening or physically attacking press personnel, or damaging the property of the press. Additionally, conducting raids on the press or obstructing the circulation of newspapers are other tactics that can hinder the smooth functioning of the press. To safeguard press freedom from such influences, the Council receives and adjudicates complaints filed by the press.

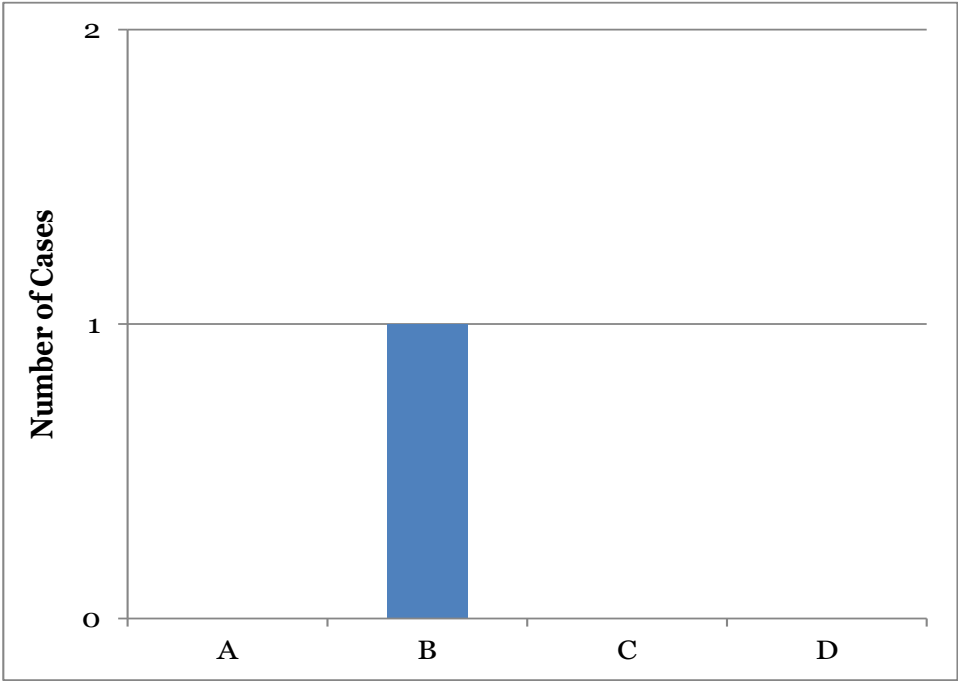
The Council adjudicated **one (1)** such matter during the period under review which was dropped as it did not pertain to journalistic duty.

The chart that follows presents the position graphically.

Curtailment of Press Freedom

No. of Cases Adjudicated: 1

A	Upheld	0
B	Dropped	1
C	Assurance/Settled/Amends	0
D	Dropped for Non pursuance/ Sub-judice/Withdrawal/ Lack of Substance	0



Chapter - VI

Statistical Analysis of the Adjudications Rendered in Complaints Against the Press

In the preceding chapter, we have observed the various pressure tactics at times adopted by the authorities and others to make the newsmen toe their line. But this is only one aspect of the overall picture. There have been several incidents where the press engages in unethical behaviors that run counter to good journalism.

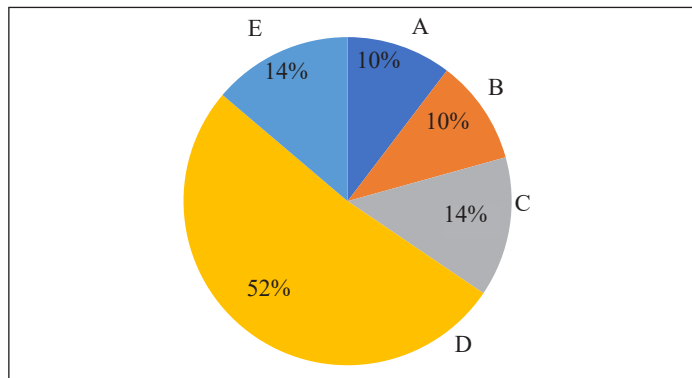
The primary responsibility of the Press Council of India is to prevent any decline in press standards and promote the development and upkeep of journalistic ethics. To achieve this goal, the Council receives complaints against the press for breaching recognized ethical canons of journalistic propriety and taste. These breaches may be in the publication or non-publication of news items, statements, cartoons, pictures, photographs, strips, or advertisements in a newspaper. The Council also entertains cases filed by members of the public against professional misconduct by editors, working journalists or staff of newspapers. Through adjudications and judicial pronouncements, the Council builds a code of conduct for the press to adhere to while performing its duties within the ethical boundaries. The data on complaints filed before the Council reveals that a major portion of the total complaints are against the press.

During the course of the year under review the Council received **865** complaints against the press. Besides, there were **801** matters pending from the previous year. Thus, the Council was to consider in all **1666** complaints against the press during the year under review. Of these, **29** matters were disposed of through adjudications, while **693** matters were disposed off at the preliminary stage, either by settling these to the satisfaction of the parties or dismissing the complaints due to lack of substance or on account of non-prosecution, etc. or matter having become sub-judice. Thus, **944** matters were pending in this category at the close of the financial year under review.

The following chart indicates the categories of respondents, complainants and states.

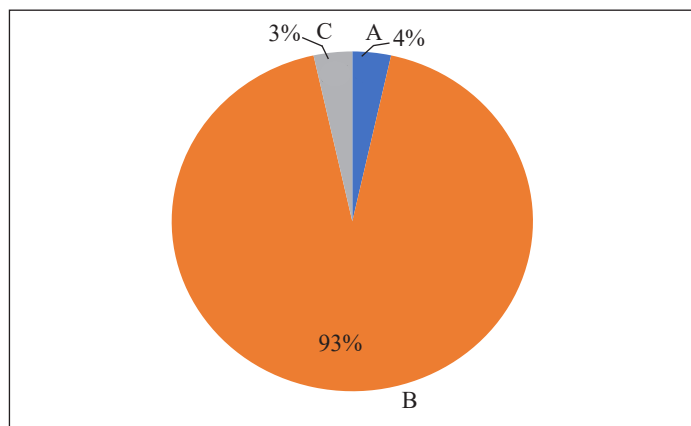
Categories of Complainants

- A. Government Authority/
Government Official
- B. Pvt. Company/Institutions
- C. Newspaper Association/Agencies/
Journalist/Newspaper
- D. Private Persons
- E. Suo-Motu



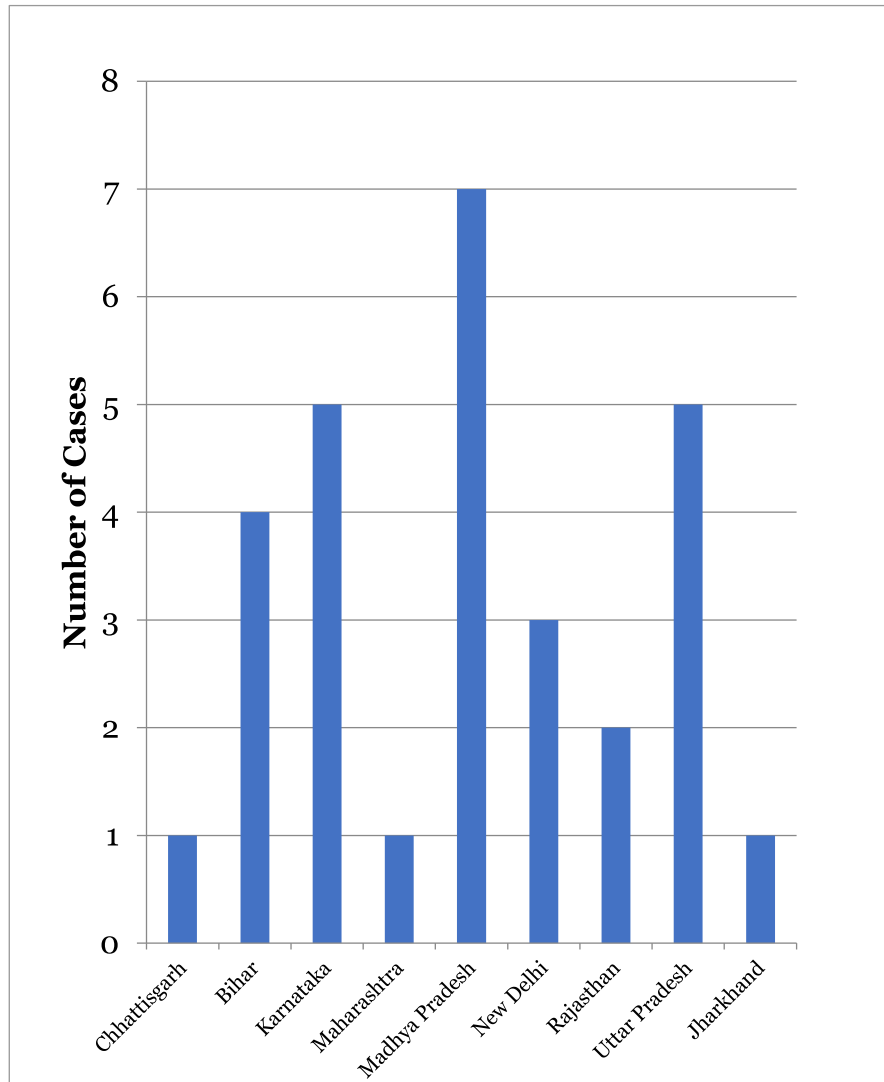
Categories of Respondents

- A. English Press
- B. Indian Languages Press
- C. Review Application



Statewise Distribution of the Respondent Publications

No. of Cases Adjudicated: 29



No. of Cases Adjudicated : 29

State	No. of Cases
Chhattisgarh	1
Bihar	4
Karnataka	5
Maharashtra	1
Madhya Pradesh	7
New Delhi	3
Rajasthan	2
Uttar Pradesh	5
Jharkhand	1
Total	29

Principles and Publication

To err is human and as others, the press too may falter and publish inaccurate reports, news, at times harming the reputation of individuals or public officials and institutions. A quick correction is the best remedy. However, often when the person aggrieved sends a contradiction or rejoinder giving his/her side of the case, there is reluctance on the part of the editor to publish the same with due promptitude and prominence ignoring the salutary principles of right of reply.

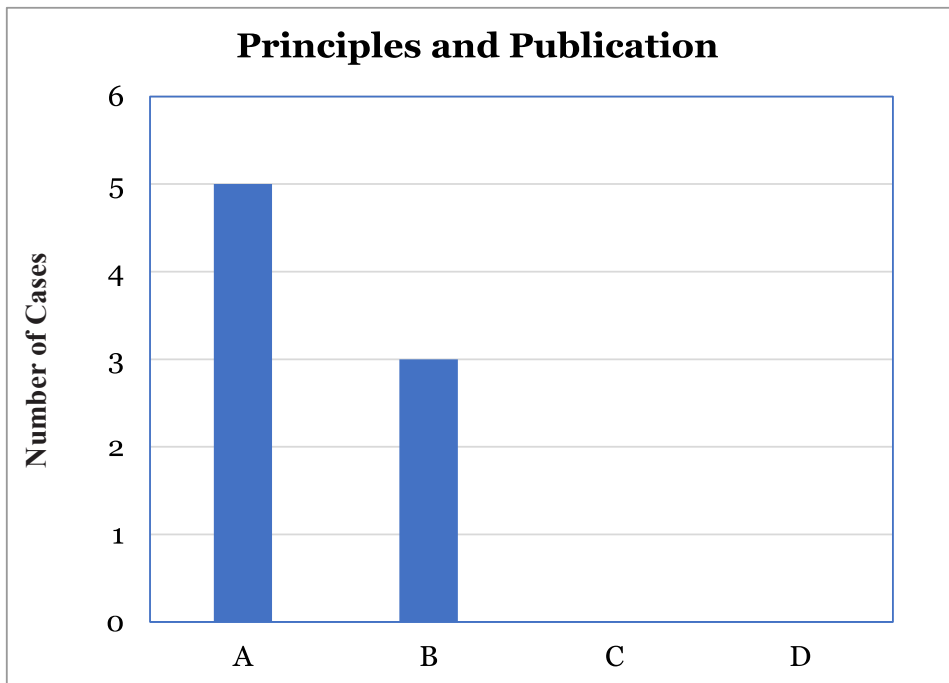
There are several other general ethics which guide press in its action and attitude toward the readers. The alleged violations of these, prompt the readers to seek redress from the Council. In furtherance of its statutory responsibility, the Press Council has over the years evolved principles of journalistic conduct on case-to-case basis through its adjudications and guidelines derived out of pronouncements of courts or institution or government authority on various issues. The endeavor of the Council has been through these adjudications, to help the press uphold the faith, respect and dignity which the fourth estate deserves.

The Council during the year received several complaints regarding violation of the journalistic ethics/guidelines. **Eight (8)** adjudications delivered this year fell under this category. Of these, **five (5)** were upheld while in **three (3)** matters charges could not be substantiated. The chart that follows makes the position clearer.

Principles and Publication

No. of Cases Adjudicated : 8

A	Upheld	5
B	Dropped	3
C	Assurance/Settled/Amends	0
D	Dropped for Non pursuance/ Sub-judice/Withdrawal/Lack of Substance	0



Press and Defamation

Throughout history, a person's reputation, the regard in which they are held by society, and the trust placed in their moral and intellectual integrity have been considered their most valuable assets. For the sake of preserving human values and promoting healthy thinking, it is crucial to uphold the norms of journalistic ethics concerning defamation.

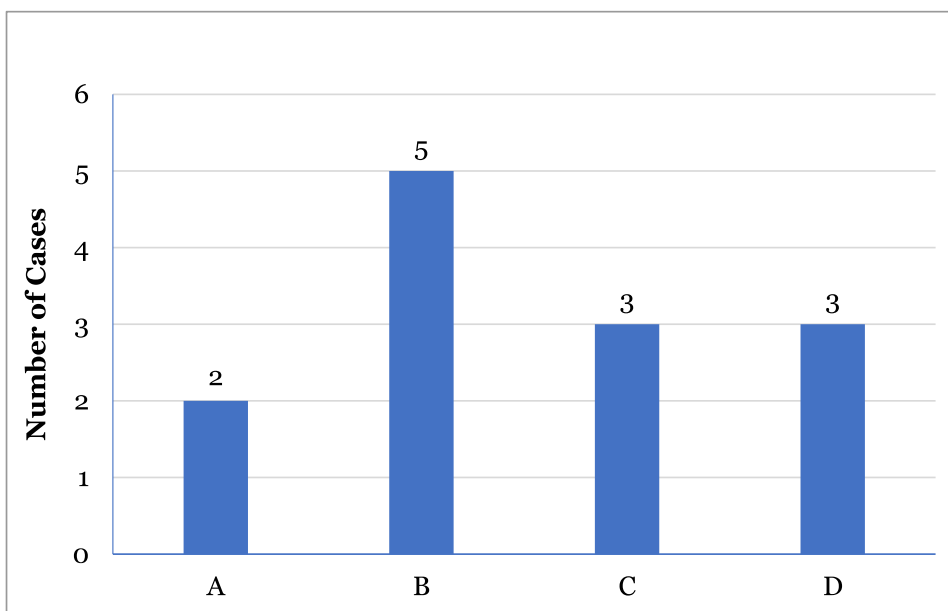
When it comes to defamation, there is a delicate balance between an individual's right to freedom of speech and the right to protect one's reputation. The press is often tasked with navigating this fine line, as they must balance their right to freedom of speech with an individual's right to avoid defamation. Therefore, it is crucial for the press to exercise caution and adhere to ethical standards to avoid defaming individuals and to preserve their dignity.

The Council adjudicated **thirteen (13)** complaints this year pertaining to alleged defamatory publications. Of these, **two (2)** complaints were upheld, while charges were rejected in **five (5)** cases. In **three (3)** matters, the respondent either made amends or the parties settled the matter. **Three (3)** complaints were dropped for the matter having become sub-judice. The graphical presentation elucidates the position.

Press and Defamation

No. of Cases Adjudicated : 13

A	Upheld	2
B	Dropped	5
C	Assurance/Settled/Amends	3
D	Dropped for Non pursuance/ Sub-judice/Withdrawal/Lack of Substance	3



Suo-Motu - Against the Press

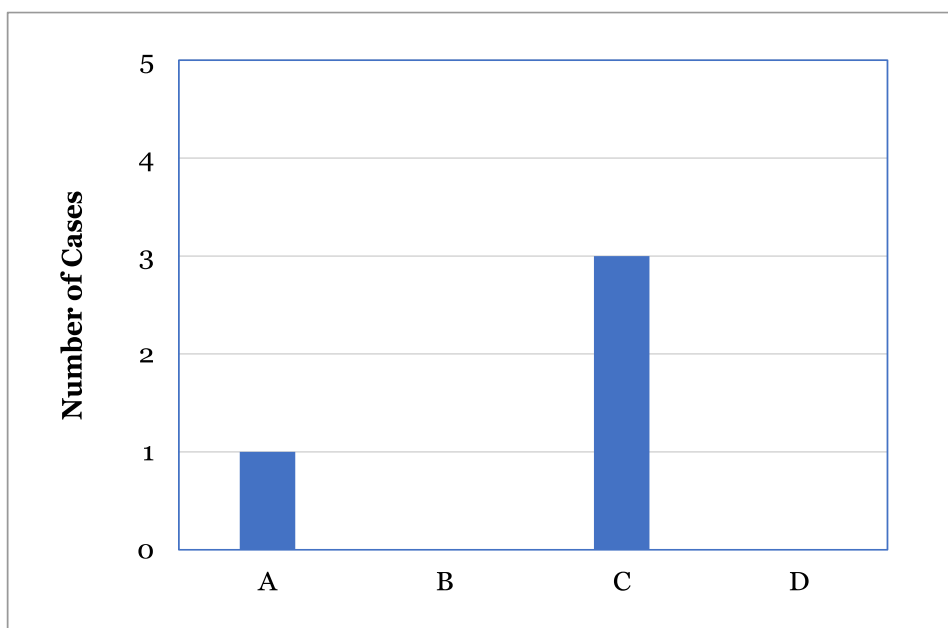
Under Regulation 13 of the Press Council Act, 1978, if the Chairperson deems a matter to be of grave significance regarding a breach of journalistic ethics or conduct, the Chairperson can take *Suo-Motu* cognizance. This applies to any matter falling under Section 14(1) of the Act. The regulations prescribed in Regulation 5 and onwards will be followed as if it were a complaint made under Regulation 3.

To this effect, during this financial year, **four (4)** adjudications falling in this category were taken up for inquiry. **One (1)** matter was upheld while **three (3)** matters were disposed of on being given assurances by the respondents. The graphical presentation elucidates the position.

Suo-Motu Against the Press

No. of Cases Adjudicated: 4

A	Upheld	1
B	Dropped	0
C	Assurance/Settled/Amends	3
D	Dropped for Non pursuance/ Sub-judice/ Withdrawal/Lack of Substance	0



Communal, Casteist, Anti-National and Anti-Religious Writings

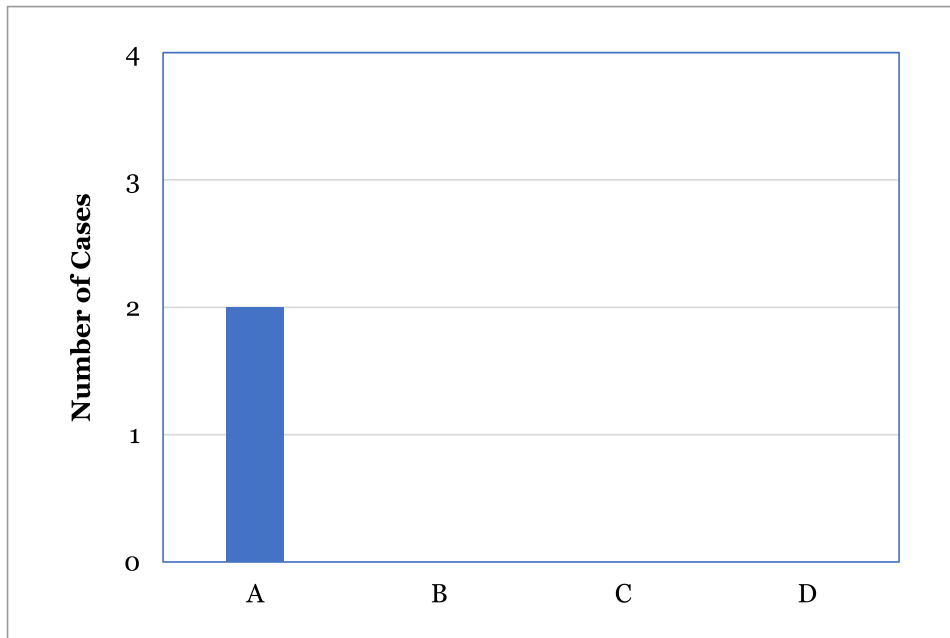
The media, including newspapers and journals, have a significant role to play in fostering national unity and integration. India, being a vast country, is home to people from diverse religious and cultural backgrounds, speaking different languages and belonging to different castes and creeds. Despite these differences, there exists an underlying unity that is the pride of India. However, certain divisive elements attempt to disrupt this unity by propagating communalism, casteism, and social prejudices, as well as creating a wide gap between the rich and poor in the economic realm. The media can play a crucial role in curbing such divisive forces and promoting national unity and integration.

During the period under review, the Council adjudicated **two (2)** complaints under this category and **both** were upheld. The graphical presentation elucidates the position.

Communal, Casteist, Anti-National and Anti- Religious Writings

No. of Cases Adjudicated : 2

A	Upheld	2
B	Dropped	0
C	Assurance/Settled/Amends	0
D	Dropped for Non pursuance/ Sub-judice/Withdrawal/Lack of Substance	0



Misleading Advertisements

Commercial advertisements are a form of information, just like social, economic, or political information. Advertisements shape attitude and ways of life at least as much as other kinds of information and comment. Newspapers should not publish an advertisement containing anything which is unlawful or illegal, or is contrary to public decency, good taste or to journalistic ethics or propriety. Further, journalistic propriety demands that advertisements published in newspapers must not contain insufficient details that mislead the public.

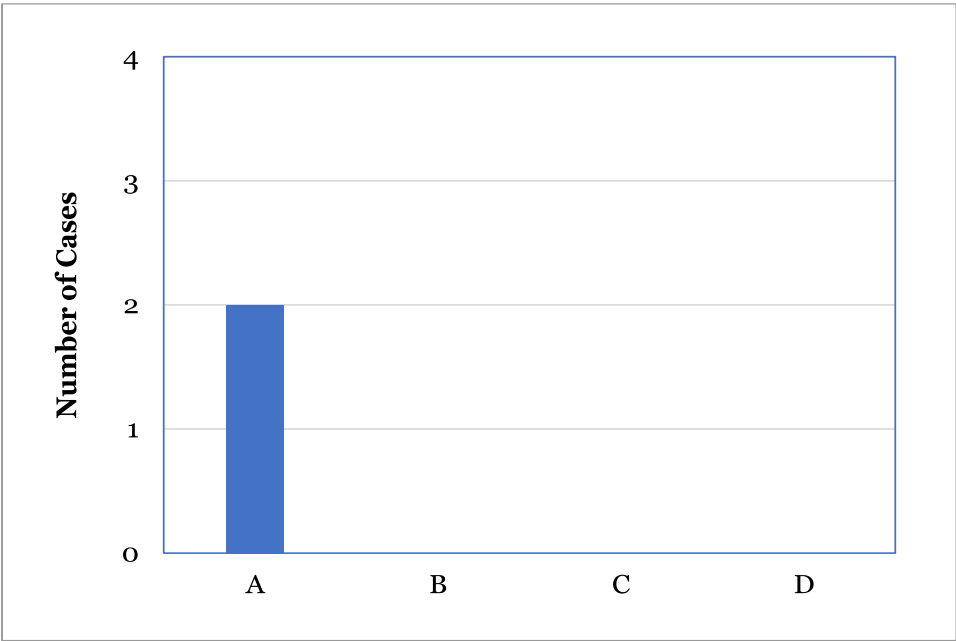
During the period under review, the Council adjudicated **two (2)** complaints under this category and **both** were upheld.

The graphical presentation elucidates the position.

Misleading Advertisements

No. of Cases Adjudicated : 2

A	Upheld	2
B	Dropped	0
C	Assurance/Settled/Amends	0
D	Dropped for Non pursuance/ Sub-judice/Withdrawal/Lack of Substance	0



Chapter - VII

FINANCES OF THE COUNCIL 2022-2023

The funds of the Council are primarily made up of (i) fee levied by the Council on newspapers/periodicals registered with the Registrar of Newspapers for India and on the news-agencies and other miscellaneous receipts, like interest on deposits etc., and (ii) Grant-in-aid from the Central Government in the Ministry of Information and Broadcasting.

The Budget Estimates of the Council for the financial year 2022-2023, accepted by the Central Government in 2022-2023 was Rs. 2718.00 lakhs. Revising the estimates for 2022-23, the Central Government accepted the amount to Rs.1056.00 lakhs (the Grant-in-aid element) with Council's revenue receipts estimated at Rs. 181.34 lakhs.

The Council in the financial year 2022-23 received total grant-in-aid amounting to Rs. 800.21 lakhs (Rs. 6,23,14,141.00 as Grant-in-aid + Rs. 1,77,06,631 as unspent balance for the previous year) from the Central Government, whereas it collected Rs. 217.45 lakhs as fees levied upon newspapers/periodicals and news agencies and accounted for other miscellaneous receipts, like interest on bank accounts, interest on FDRs with the Bank, etc. during the year under report. Out of this Rs.160.95 lakhs pertain to levy of fee and an amount of Rs. 56.50 lakhs accounted for other miscellaneous receipts, like interest on bank account, interest on FDRs with the Bank, etc. during the year under report.

Under Section 22 of the Press Council Act, 1978, "the accounts of the Press Council of India shall be maintained and audited in such manner as may, in consultation with the Comptroller and Auditor General of India, be prescribed". The Annual Account of the Press Council of India for the financial year 2022-2023 which were maintained in accordance with the aforesaid provisions, were audited by the Audit party of the office of the Director General of Audit, Central Revenues, New Delhi and certified to be to their satisfaction.

Separate Audit Report of the Comptroller & Auditor General of India on the Accounts of Press Council of India for the year ended 31 March 2023

We have audited the Balance Sheet of Press Council of India (Council) as at 31 March 2023, Income & Expenditure Account and Receipts & Payments Account for the year ended on that date under Section 19(2) of the Comptroller & Auditor General's (Duties, Powers & Conditions of Service) Act, 1971 read with section 22 of the Press Council Act, 1978. These financial statements are the responsibility of the management of the Council. Our responsibility is to express an opinion on these financial statements based on our audit.

2 This Separate Audit Report contains the comments of the Comptroller & Auditor General of India (CAG) on the accounting treatment only with regard to classification, conformity with the best accounting practices, accounting standards and disclosure norms etc. Audit observations on financial transactions with regard to compliance with the Law, Rules & Regulations (Propriety and Regularity) and efficiency-cum-performance aspects, etc., if any, are reported through Inspection Reports/CAG's Audit Reports separately.

3 We have conducted our audit in accordance with auditing standards generally accepted in India. These standards require that we plan and perform the audit to obtain reasonable assurance about whether the financial statements are free from material misstatements. An audit includes examining on a test basis, evidence supporting the amounts and disclosure in the financial statements. An audit also includes assessing the accounting principles used and significant estimates made by management as well as evaluating the overall presentation of financial statements. We believe that our audit provides a reasonable basis for our opinion.

4 Based on our audit, we report that:

- i. We have obtained all the information and explanations, which to the best of our knowledge and belief were necessary for the purpose of our audit;
- ii. The Balance Sheet, Income & Expenditure Account and Receipts & Payments Account dealt with by this report have been drawn up in the format approved by the Ministry of Finance.
- iii. In our opinion, proper books of accounts and other relevant records have been maintained by the Press Council of India as per section 19 and 20 of the Press Council Act, 1978 in so far as it appears from our examination of such books.
- iv. We further report that:

A. General

A.1 An amount of Rs. 85.21 lakh was shown under the head “Levy Fee Suspense”. PCI needs to reconcile this amount from original records and dispose the suspense account at the earliest. This was also pointed out during the previous years, however, no corrective action has been taken by the council.

A.2 As per accounting policy 7 of the Schedule of Significant Accounting Policies, the retirement benefits are accounted for on cash basis. The accounting policy was in contravention of Accounting Standard 15 issued by ICAI and the Uniform Format of Account.

A.3 An amount of Rs.1496.17 lakh was lying outstanding against ‘On Account of Levy Fees’ (More than 6 months) under Schedule-6 (Current Assets, Loans, Advances etc, as Sundry Debtors) from 1990-91 to 2022-23. Out of which, an amount of Rs. 95.32 lakh pertained to the period from 1990-91 to 2017-18. These long pending advances needs to be reviewed and suitable provision be made or the amounts should be written off with the approval of the competent authority.

B. Grants-in-Aid

During the year 2022-23, PCI received Grant-in-aid of Rs. 6.23 crore from the Ministry of Information and Broadcasting. PCI had an unspent balance of Rs. 1.99 crore of previous year and internal receipts of Rs. 2.17 crore during the year. Out of total available funds of Rs. 10.39 crore, PCI utilised only Rs. 9.43 crore and returned Rs. 0.38 crore (Rs. 0.21 crore from the GIA for the year 2021-22 and Rs. 0.16 crore from the GIA of 2022-23) to Ministry, leaving an unspent balance of Rs. 0.58 crore at the end of the current year.

C. Management Letter

Deficiencies, which have not been included in the Audit Report, have been brought to the notice of the PCI through a management letter issued separately for remedial/corrective action.

v. Subject to our observations in the preceding paragraphs, we report that the Balance Sheet, Income & Expenditure Account and Receipts & Payments Account dealt with by this report are in agreement with the books of accounts.

vi. In our opinion and to the best of our information and according to the explanations given to us, the said financial statements read together with the Accounting Policies and Notes on Accounts, and subject to the significant matters stated above and other matters mentioned in

Annexure to this Audit Report, give a true and fair view in conformity with accounting principles generally accepted in India:

- a. In so far as it relates to the Balance Sheet, of the state of affairs of the Press Council of India as at 31 March 2023; and
- b. In so far as it relates to the Income & Expenditure Account of the surplus for the year ended on that date.

For and on behalf of C&AG of India



Rajiv Kumar Pandey

Director General of Audit (Central Expenditure)

Place: New Delhi

Date: 29/09/2023

Annexure

1. **Adequacy of internal audit system**
The Press Council of India does not have its own internal audit wing. The internal audit of the Council was conducted by the Office of the Chief Controller of Accounts, Ministry of Information and Broadcasting for the period 2017-18 to 2020-21. Internal audit for the years 2021-22 and 2022-23 are still pending.
2. **Adequacy of Internal Control System:**
The internal control system needs to be strengthened due to:
 - The response of the management to statutory audit objections is not effective as 21 audit paras of External Audit (C&AG) for the period 2008 to 2021-22 and 2 audit paras for the period 2017-21 of Internal Audit are still outstanding.
 - Risk Assessment and Management Information System which are necessary for smooth functioning of the Council were not in place in the Council.
 - The Assets Register was not maintained in the prescribed format.
 - Physical verification of fixed assets and inventories was not carried during the year.
3. **System of physical verification of assets**
The physical verification of fixed assets has not been conducted for the year 2022-23.
4. **System of physical verification of inventory**
The physical verification of books and publication, stationery and other consumable items has not been conducted for the year 2022-23.
5. **Regularity in payment of dues**
As per accounts, no payment over six months in respect of statutory dues was outstanding as on 31.03.2023.
6. The accounts provided had very small font size, hence was not properly legible. It is advised to print the accounts in appropriate legible font size.

BALANCE SHEET
As on 31st March 2023

PRESS COUNCIL OF INDIA

Balance Sheet as at March 31, 2023

	Schedule	Current Year	Previous Year
LIABILITIES			
CAPITAL FUND	1	21,67,42,408	21,05,28,861
C.P.F. FUND	2	7,69,22,381	7,72,91,273
CURRENT LIABILITIES AND PROVISIONS	3	2,31,69,082	3,73,03,696
TOTAL		31,68,33,871	32,51,23,830
ASSETS			
FIXED ASSETS	4	5,99,09,577	6,05,77,805
INVESTMENTS	5	8,64,78,217	7,64,34,638
CURRENT ASSETS, LOANS, ADVANCES ETC.	6	17,04,46,077	18,81,11,387
TOTAL		31,68,33,871	32,51,23,830

SIGNIFICANT ACCOUNTING POLICIES 13

CONTINGENT LIABILITIES AND NOTES ON ACCOUNTS 14



NUNGSANGLENBA AG
(SECRETARY)



RANJANA PRAKASH DESAI
(CHAIRPERSON)

"In agreement with the Books Of Accounts produced before us"

For G S R A & Associates
(Chartered Accountants)



(Ashish Garg)
Partner
M.No. - 541263

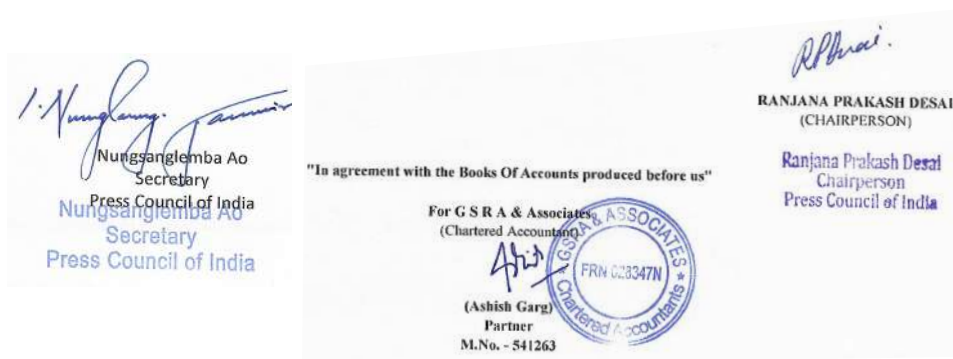


PRESS COUNCIL OF INDIA
Income and Expenditure Account for the Year Ended on
March 31, 2023

INCOME	Schedule	Current Year	Previous Year
Income from Levy Fees & Others	7	1,93,72,887	2,41,65,144
Grants from Govt	8	6,65,23,064	5,38,21,586
Interest Earned	9	48,47,026	49,84,188
TOTAL(A)		9,07,42,977	8,29,70,918
EXPENDITURE			
Establishment Expenses	10	6,45,05,085	6,67,97,278
Other Administrative Expenses	11	1,95,48,286	1,44,52,252
Finance Charges	12	678	2,986
Depreciation charges	4	16,70,576	18,01,885
TOTAL(B)		8,57,24,625	8,30,54,401
- Prior Period Adjustment Cr.(Dr.)			(5,08,129)
- Balance being excess of Income over Expenditure (A-B)		50,18,353	(83,483)
- Transfer to /from General Reserve			-
SURPLUS/(DEFICIT) CARRIED TO BALANCE SHEET	-	50,18,353	(5,91,612)

Significant Accounting Policies 13

Contingent Liabilities and Notes on Accounts 14



PRESS COUNCIL OF INDIA
Schedules Forming Part of Balance Sheet as at
March 31, 2023

SCHEDULE 1 - CAPITAL FUND

<i>Particulars</i>	<i>Current Year</i>		<i>Previous Year</i>	
A. Capital Fund:				
Balance as at the beginning of the year	7,67,40,751		2,54,03,830	
Add: Funds Capitalised During the Year	11,95,194		5,13,36,921	
	7,79,35,945		7,67,40,751	
Less: Amount written off on condemned assets	-	7,79,35,945	-	7,67,40,751
B. Income & Expenditure Account:				
Balance as at the beginning of the year	13,37,88,110		13,43,79,722	
Add/(Less): Net income/ (expenditure) transferred from Income and Expenditure Account	50,18,353		(5,91,612)	
Add/(Less): Other adjustments		13,88,06,462		13,37,88,110
TOTAL		21,67,42,408		21,05,28,861


Nungsanglamba Ao
Secretary
Press Council of India


Ranjana Prakash Desai
Chairperson
Press Council of India



SCHEDULE-2 - C.P.F. FUNDS

<i>Particulars</i>		<i>Current Year</i>		<i>Previous Year</i>	
a)	Opening balance of the funds		7,72,91,273		7,56,42,517
b)	Addition to the Funds:				
i.	Councils' Contribution to C.P.F.	17,74,320		17,59,649	
ii.	CPF Advances Recovered	-		-	
iii.	Employees' Contr. to C.P.F.	60,58,080		66,92,180	
iv.	Interest on C.P.F. Funds				
	-Employees contribution	30,16,028		31,36,981	
v.	Interest on C.P.F. Funds				
	-Council's contribution	18,58,995		19,10,689	1,34,99,499
			1,27,07,423		1,34,99,499
	TOTAL (a+b)		8,99,98,696		8,91,42,016
c)	Utilisation/Expenditure towards objectives of funds				
	C.P.F. Withdrawls	(9,04,122)		(39,46,300)	
	Final Payments to Outgoing Employees	(95,07,639)		(89,41,467)	
	CPF Advances Recovered/ (Paid)	(26,64,554)		5,74,498	
	Prior Period Adjustment Cr/(Dr)	-	-	4,62,526	
	Transfer to NPS		(1,30,76,315)		(1,18,50,743)
Net Balance of Fund as at the year end (a+b-c)			7,69,22,381		7,72,91,273

SCHEDULE-3 - CURRENT LIABILITIES AND PROVISIONS

<i>Particulars</i>		<i>Current Year</i>	<i>Previous Year</i>
1	Advance Levy of Fee	33,53,614	22,78,995
2	Levy Fee Suspense	85,20,749	85,20,749
3	Security Deposits	55,105	75,335
4	Unspent Grant	57,66,490	1,98,65,443
5	Other current Liabilities	15,918	-
6	Payable to Heir of Ex employee	-	-
7	Statutory Dues	(2,425)	29,637
8	NPS Subscription	1,05,029	1,17,681
9	Provision for expenses	53,54,602	64,15,856
TOTAL		2,31,69,082	3,73,03,696

SCHEDULE:4

SCHEDULE FORMING PART OF

PARTICULARS	GROSS BLOCK					
	COST AS ON	OPENING	ADDITION DURING THE YEAR		SALE/TRF.	COST AS
	01.04.2022	ADJUSTMENTS	UPTO 180 DAYS	AFTER 180 DAYS	DURING THE YEAR	ON 31.03.2022
Air Conditioners & Coolers	27,40,804.60	-	2,34,736.00	36,982.00	4,16,875.00	25,95,647.60
Biometric Machine	41,347.00	-	-	28,994.00	-	70,341.00
Cars & Bicycle	25,49,890.70	-	-	-	-	25,49,890.70
Computer/Peripherals	61,37,188.83	-	2,51,853.00	2,12,943.00	-	66,01,984.83
Conference Hall						
- Civil Work	21,32,836.00	-	-	-	-	21,32,836.00
- Conference System	1,97,595.00	-	-	-	-	1,97,595.00
- Electrical Fittings & Fixtures	5,09,211.00	-	-	-	-	5,09,211.00
- Furniture & Fixtures	5,00,000.00	-	-	-	-	5,00,000.00
Conference System	27,820.00	-	-	-	-	27,820.00
Epabx System	5,41,485.00	-	-	-	-	5,41,485.00
Franking Machine	67,558.00	-	-	-	-	67,558.00
Furniture & Fixture	62,75,975.86	-	82,310.00	1,01,400.00	2,81,684.50	61,78,001.36
Heat Convertor & Heaters	2,82,903.74	-	30,287.00	36,005.00	41,444.00	3,07,751.74
Lease Hold Land	5,16,76,214.00	-	-	-	-	5,16,76,214.00
Library Books	11,24,922.46	-	16,562.00	7,732.00	-	11,49,216.46
Mobile Phones	73,021.00	-	-	-	-	73,021.00
Paper Shredding Machine	64,936.00	-	-	82,000.00	-	1,46,936.00
Refrigerator	1,74,675.00	-	-	22,000.00	96,825.00	99,850.00
Solar Water Heating System	1,10,227.00	-	-	-	1,10,227.00	-
Stabilizers	46,161.76	-	7,100.00	-	-	53,261.76
Tape Recorders	18,924.00	-	-	-	-	18,924.00
Television	5,26,059.00	-	-	-	47,223.00	4,78,836.00
Water Dispenser	1,18,321.00	-	44,290.00	-	35,275.00	1,27,336.00
Inverter & Batteries	13,894.00	-	-	-	31,175.00	(17,281.00)
Juicer Mixer Grinder	7,000.00	-	-	-	-	7,000.00
Air Purifier	3,94,604.00	-	-	-	-	3,94,604.00
Cctv Camera (With Accessories)	2,45,135.00	-	-	-	-	2,45,135.00
Vacuum Cleaner	4,499.00	-	-	-	-	4,499.00
Sanitizer Dispenser	7,990.00	-	-	-	-	7,990.00
Computer Software	6,96,422.00	-	-	-	-	6,96,422.00
Total	7,73,07,620.95	-	6,67,138.00	5,28,056.00	10,60,728.50	7,74,42,086.45


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 Press Council of India

SCHEDULE:4
BALANCE SHEET AS AT MARCH 31, 2023

DEPRECIATION							NET BLOCK	
RATE OF DEPRICIA- TION	UPTO 31.03.2022	OPENING ADJUST- MENTS	FOR THE YEAR	Dep on Sold Assets as on 31.03.2023	WRITTEN BACK	TOTAL DEPRICIA- TION	W.D.V. 31.03.2023	W.D.V. 31.03.2022
15.00%	14,78,687.89	-	2,17,156.00	3,49,239.88	-	13,46,604.01	12,49,043.59	12,62,116.71
15.00%	3,101.00	-	7,911.00	-	-	11,012.00	59,329.00	38,246.00
15.00%	17,15,607.00	-	1,25,143.00	-	-	18,40,750.00	7,09,140.70	8,34,283.70
40.00%	53,43,415.36	-	4,60,839.00	-	-	58,04,254.36	7,97,730.47	7,93,773.47
15.00%	13,88,768.00	-	1,11,610.00	-	-	15,00,378.00	6,32,458.00	7,44,068.00
15.00%	1,13,726.00	-	12,580.00	-	-	1,26,306.00	71,289.00	83,869.00
10.00%	2,85,932.00	-	22,328.00	-	-	3,08,260.00	2,00,951.00	2,23,279.00
10.00%	2,47,566.00	-	25,243.00	-	-	2,72,809.00	2,27,191.00	2,52,434.00
15.00%	27,608.00	-	32.00	-	-	27,640.00	180.00	212.00
15.00%	4,33,107.00	-	16,257.00	-	-	4,49,364.00	92,121.00	1,08,378.00
15.00%	42,778.00	-	3,717.00	-	-	46,495.00	21,063.00	24,780.00
10.00%	32,01,165.52	-	3,14,628.00	2,20,146.57	-	32,95,646.95	28,82,354.41	30,74,810.34
15.00%	1,23,097.95	-	29,377.00	29,194.40	-	1,23,280.55	1,84,471.19	1,59,805.79
0.00%	-	-	-	-	-	-	5,16,76,214.00	5,16,76,214.00
40.00%	10,53,567.46	-	36,713.00	-	-	10,90,280.46	58,936.00	71,355.00
15.00%	41,812.00	-	4,681.00	-	-	46,493.00	26,528.00	31,209.00
15.00%	4,870.00	-	15,160.00	-	-	20,030.00	1,26,906.00	60,066.00
15.00%	1,19,377.00	-	5,257.00	65,573.07	-	59,060.93	40,789.07	55,298.00
40.00%	1,08,015.00	-	880.00	1,10,215.81	-	(1,320.81)	1,320.81	2,212.00
15.00%	42,072.52	-	1,678.00	-	-	43,750.52	9,511.24	4,089.24
15.00%	11,181.00	-	1,161.00	-	-	12,342.00	6,582.00	7,743.00
15.00%	3,49,898.00	-	25,239.00	39,320.55	-	3,35,816.45	1,43,019.55	1,76,161.00
15.00%	77,802.00	-	11,291.00	25,740.19	-	63,352.81	63,983.19	40,519.00
15.00%	6,874.00	-	645.00	28,451.73	-	(20,932.73)	3,651.73	7,020.00
15.00%	4,757.00	-	336.00	-	-	5,093.00	1,907.00	2,243.00
15.00%	92,616.00	-	45,298.00	-	-	1,37,914.00	2,56,690.00	3,01,988.00
15.00%	89,718.00	-	23,313.00	-	-	1,13,031.00	1,32,104.00	1,55,417.00
15.00%	1,249.00	-	488.00	-	-	1,737.00	2,762.00	3,250.00
15.00%	1,708.00	-	942.00	-	-	2,650.00	5,340.00	6,282.00
40.00%	3,19,739.00	-	1,50,673.00	-	-	4,70,412.00	2,26,010.00	3,76,683.00
	1,67,29,815.69	-	16,70,576.00	8,67,882.20	-	1,75,32,509.49	5,99,09,576.96	6,05,77,805.26

RP Desai
Ranjana Prakash Desai
Chairperson
Press Council of India



SCHEDULE- 5 INVESTMENTS

1. Nungsang, Sumir
Nungsanglemba Ao
Secretary
Press Council of India



SCHEDULE 6 - CURRENT ASSETS, LOANS, ADVANCES ETC.

	Particulars	Current Year		Previous Year	
A.	<u>CURRENT ASSETS:</u>				
1.	<u>Sundry Debtors:</u>				
	- On Account of Levy Fees (Within 6 months)	-	-	-	-
	- On Account of Levy Fees (More than 6 months)	14,96,17,480	14,96,17,480	14,57,94,061	14,57,94,061
2.	<u>Cash balances in hand</u>				
	(including Postage in Hands and imprest)				
	Imprest Account Balance	50,000		50,000	
	Postage Stamps in Hands	35,490	85,490	23,973	73,973
3.	<u>Bank Balances:</u>				
	- With Scheduled Banks:				
	TSA Account	-		-	
	- Indian Bank	20,95,141		97,61,922	
	- State Bank of India - General Account	36,21,348		1,00,53,521	
	- State Bank of India - Revolving Account	3,86,680		3,72,831	
	- State Bank of India - Levy Fee Account	-		-	
	- State Bank of India - C.P.F. Account	30,49,942	91,53,111.42	1,19,28,701	3,21,16,975.67
	Deposit Accounts				
	- State Bank of India - Revolving Account	80,62,926		75,05,487	
			80,62,926		75,05,487
	TOTAL (A)		16,69,19,007		18,54,90,497


 Nungsanglemba Ao
 Secretary
 Press Council of India


 Ranjana Prakash Desai
 Chairperson
 Press Council of India



SCHEDULE 6 - CURRENT ASSETS, LOANS, ADVANCES ETC.

	Particulars	Current Year		Previous Year	
	B. <u>LOANS, ADVANCES AND OTHER ASSETS</u>				
1	<u>Loans to Staff:</u> - Advance for Entertainment & Hospitality - Advance for Misc, Expense To Staff - Festival Advance - LTC Advance - Advance for Purchasing Stationery, Postage, etc.	- 12,100 281 1,32,984 -	 1,45,365	- 24,667 281 66,387 -	 91,335
2	<u>Advances and other amounts recoverable in cash or in kind or for value to be received:</u> - Advance for Books Periodicals - Advance to Parties - TA Advance - Tax Deducted at Source	 30,40,013 6,787 -	 30,46,800	 12,62,241 6,787 7,96,148	 20,65,176
3	<u>Income Accrued</u> a) On Deposits of Revolving Account		3,31,831		4,61,305
4	<u>Deposits with Different Departments</u>		3,074		3,074
	TOTAL (B)		35,27,070		26,20,890
	TOTAL (A +B)		17,04,46,077		18,81,11,387


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PRESS COUNCIL OF INDIA
SCHEDULES FORMING PART OF INCOME & EXPENDITURE ACCOUNT
AS AT MARCH 31, 2023

SCHEDULE 7 - INCOME FROM LEVY FEES & OTHERS

Particulars		Current Year		Previous Year	
1	Gross Levy fees received from Newspapers/ Periodicals/News Agencies	1,60,95,200		1,95,87,346	
	Add: Demand raised for Current Year	1,88,44,000		2,30,92,500	
	Less: Fees received for previous Years	(63,83,672)		(84,31,629)	
	Less: Fees received for Current year	(78,16,196)		(1,01,89,051)	
	Less: Fees received in advance /suspense / Misc	(18,95,332)	1,88,44,000	(9,66,666)	2,30,92,500
2	Others (Specify)				
	- Profit on sale of waste papers & fixed assets	9,174		1,42,395	
	- Fee for Information under Right to Information Act	700		871	
	- Income from Advertisement in Souvenir	-		-	
	- Income from balance written off	-		7,68,442	
	- Others	5,19,013		1,60,936	
			5,28,887		10,72,644
	TOTAL		1,93,72,887		2,41,65,144


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Chairperson
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SCHEDULE 8 - GRANTS

Particulars	Current Year		Previous Year	
(Irrevocable Grants & Subsidies Received)				
- Central Government (Ministry of I & B)				
- Grant Received During the Year	6,23,14,141		11,84,50,292	
- Add: Unspent Grant for the Previous Year	1,98,65,443		1,16,21,328	
	8,21,79,584		13,00,71,620	
- Less: Grant Utilised for Interest on C.P.F. Funds	48,75,023		50,47,670	
- Less: Grant Utilised for Fixed Assets	11,95,194		5,13,36,921	
- Less: Unspent Grant related to previous year returned	38,19,813		-	
- Less: Unspent Grant for the Current Year	57,66,490	6,65,23,064	1,98,65,443	5,38,21,586
TOTAL		6,65,23,064		5,38,21,586

SCHEDULE 9 - INTEREST EARNED

Particulars	Current Year		Previous Year	
1 On Term Deposits:				
a) With Scheduled Banks				
- CPF Account (TRF to General Fund)	40,43,579		39,37,759	
- Revolving Fund Account	4,27,965		5,27,820	
- General Fund Account		44,71,544	63,753	45,29,332
2 On Savings Accounts:				
a) With Scheduled Banks				
- General Fund Account	1,53,745		2,66,264	
- CPF Account (TRF. To General Fund)	2,11,488		1,80,357	
- Levy Fees Account	-		-	
- Revolving Fund (Loans & Advances)	10,249	3,75,482	8,235	4,54,856
3 On Loans:				
a) Employees/Staff				
- Housing Building Advance		-		-
TOTAL		48,47,026		49,84,188


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 Press Council of India


 Ranjana Prakash Desai
 Chairperson
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SCHEDULE 10 - ESTABLISHMENT EXPENSES

<i>Particulars</i>		<i>Current Year</i>		<i>Previous Year</i>	
1	Salaries and Wages		5,66,68,736		5,41,33,581
2	Arrear of Salaries		7,17,612		6,11,597
3	OTA		-		-
4	Tuition Fees Reimbursement		6,63,750		9,85,280
5	Medical Reimbursement		21,87,155		16,60,639
6	L.T.C.		3,49,792		5,16,276
7	Encashment of E.L.		2,21,136		20,21,831
8	Contribution to Provident Fund		39,14,123		34,39,035
9	Training to Staff		2,000		-
10	Retirement Benefits		-		35,48,178
			6,47,24,304		6,69,16,417
11	Less: Recovery from Staff		(2,19,219)		(1,19,139)
Total			6,45,05,085		6,67,97,278


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SCHEDULE 11 - OTHER ADMINISTRATIVE EXPENSES

<i>Particulars</i>		<i>Current Year</i>		<i>Previous Year</i>	
1	Electricity and Water		31,96,459		21,92,057
2	Office Expense		22,99,399		25,595
3	Repairs and maintenance		31,98,746		41,93,814
4	Vehicles Repairs and Maintenance		4,19,830		2,74,026
5	Travelling and conveyance Expenses		39,83,825		19,54,240
6	Rent, Rates and Taxes		6,39,053		6,41,672
7	Postage, Telephone and Communication Charges		5,90,372		6,64,458
8	Printing and Stationary		16,20,650		19,47,662
9	Newspapers & Periodicals		1,76,994		1,63,890
10	Hindi Protsahan Award		58,571		31,157
11	Insurance		79,615		74,430
12	Legal & Professional Charges		3,53,520		3,96,842
13	Entertainment & Hospitality		4,17,370		1,58,611
14	Exhibition, Seminar & Exam		3,94,779		9,20,019
15	Others- Sundries & Uniform expenses		1,71,267		16,300
16	Advertisement Exp.		8,648		-
17	Other Expense		5,51,846		73,504
18	AMC of Franking machines		22,066		22,066
19	Other books for different sections		46,177		11,085
20	Scanning		-		-
21	Liveries for Class IV		-		-
22	Balance Written off		-		-
23	Loss on sale of fixed assets		-		-
24	Written Off		7,96,148		-
25	Covid-19 expenses		-		19,520
26	Website devlopment charges		4,71,051		5,44,636
27	Swachh Bharat project expenses		51,900		1,26,668
	TOTAL		1,95,48,286		1,44,52,252

SCHEDULE 12 - FINANCE CHARGES

<i>Particulars</i>		<i>Current Year</i>		<i>Previous Year</i>	
a)	On Fixed Loans		-		-
b)	On Other Loans (including Bank Charges)		678		2,986
	TOTAL		678		2,986

PRESS COUNCIL OF INDIA
SCHEDULE FORMING PART OF THE ACCOUNTS FOR
THE YEAR ENDED 31.03.2023

SCHEDULE 13- SIGNIFICANT ACCOUNTING POLICIES:

1. **Accounting Convention**
The financial statements are prepared on the basis of historical cost convention unless otherwise stated.
2. **Method of Accounting**
Council is following the accrual method of accounting unless otherwise stated.
3. **Investments**
 - a. Investments against C.P.F. Fund are classified as earmarked investments.
 - b. Investments against Revolving (Loans and Advances) accounts are treated as current assets.
 - c. Investments are shown at the principal value as increased by the interest accrued thereon.
4. **Fixed Assets**
Fixed assets are stated at cost of acquisition inclusive of duties and taxes thereon. Other direct expenses related to acquisition are not capitalized.
5. **Depreciation**
Depreciation is being charged as per the rates prescribed in the Income Tax Rules. However, in case of sale of Fixed Asset the profit/ loss are booked in the year of sale itself.
6. **Government Grant**
 - a. Government Grants are accounted for the year to the extent of the amount spent. Unspent grant as certified by the management is set apart or return to the government at the end of the year as per the policy adopted year to year
 - b. Grants utilized toward the addition of fixed assets are transferred to the Capital Fund.
 - c. Grants utilized towards the interest on C.P.F. Fund are transferred to C.P.F. Account.
7. **Retirement Benefits**
 - a. Retirement benefit is accounted for on cash basis hence no provision for Gratuity payable, leave encashment etc. is made.
 - b. The council is maintaining its own C.P.F. Fund other than the employees who were transferred to NPS.

PRESS COUNCIL OF INDIA
SCHEDULE FORMING PART OF THE ACCOUNTS FOR THE
YEAR ENDED 31.03.2023

SCHEDULE 14 - CONTINGENT LIABILITIES & NOTES OF THE ACCOUNTS

A. CONTINGENT LIABILITIES

Claim against the Council not acknowledge as debts Rs. Nil (Previous Year NIL)

B. NOTES OF THE ACCOUNTS

1. Current Assets, Loan & Advances and CPF Funds

- a. Balance grouped in the Sundry Debtors, Advances for Books & Periodical, Advance to Parties, TA Advances and Loans to Staffs have not been confirmed from the respective parties/reconciled.
- b. In the opinion of the management of the Council, the other current assets, loans & advances have a realizable value equal at least to the amount shown in the Balance Sheet, in the ordinary course of business.
- c. Balance in C.P.F Fund and corresponding earmarked investment for C.P.F. is not reconciled.

2. Provision for taxation

In view of the income of the Council being exempt from tax, no provision for taxation has been made.

3. Grouping of figures

Corresponding figures for the previous year have been regrouped/ rearranged, wherever necessary.

4. Levy Fees

a. Levy Fees Suspense (Totalling to Rs. 85,20,749):

Levy Fees Suspense Account amounting to **Rs 85,20,749** pertains to the levy fees received through NEFT/ RTGS/ Direct Deposited to Bank. The Management is not in possession of any details/ documents/ to identify the same hence kept in suspense account and will be taken into levy fee only after reconciliation with Publishers as per the policy adopted in earlier years.

b. **Advance Levy Fee (Totalling to Rs. 33,53,614):**

Advance Levy Fee of **Rs. 18,95,332** recorded during the year along with Outstanding Balance of **Rs. 14,58,282** in earlier years subject to reconciliation (Outstanding balance as on 01 April 2022 of **Rs. 22,78,995** has been reduced with **Rs. 8,20,713** i.e., amount received in advance during previous financial years, adjusted during the current financial year 2022-23)

5. **Declaration of Bonus:** The Council has not declared and paid any bonus to the employees of the council in F.Y. 2022-23.
6. **Bank Balances:** Bank Balances has been taken as per the Books of Accounts (Tally) maintained by the Council. However, Reconciliation Statement has been prepared to reconcile the balance as per Bank. Management has taken the note for the entries outstanding in Reconciliation.


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Chairperson
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**PRESS COUNCIL
RECEIPTS AND PAYMENTS FOR**

RECEIPTS	CURRENT YEAR		PREVIOUS YEAR	
<u>I. Opening Balance</u>				
a) Cash in hand (Imprest Account)		50,000		50,000
b) Bank Balances				
- TSA Account	-		-	
- Indian Bank	97,61,922		53,77,174	
- General Fund	1,00,53,521		61,94,155	
- Levy of Fees Account	3,72,831		1,79,552	
- Revolving Fund (Loan & Advance)	-		-	
- C.P.F. Account	1,19,28,701	3,21,16,976	81,86,998	1,99,37,879
c) Postage Stamps in Hand		23,973		29,379
II. Grants Received				
a) From Government of India (Ministry of I & B)		6,23,14,141		11,84,50,292
III. Interest Received				
a) On Bank deposits				
- Interest Accrued on FDR	-		27,07,643	
- Term Deposits	-		9,74,978	
- Saving Accounts	3,75,482	3,75,482	4,52,188	41,34,809
b) Loans, Advances etc.		-		-
IV. Levy Fee & Other Income (specify)				
Levy fees received	1,60,95,199		1,95,87,346	
Advertisement Receipts	-		-	
Sale Proceeds of Fixed Assets	1,93,100		2,21,100	
Right to Information	700		871	
Miscellaneous Receipts	5,19,014		1,60,736	
Sale of Waste Papers	8,920		-	
Recovery -				
- Salary (Misc)	2,10,077		77,222	
- Of books	-		-	
- Of EOL	-		-	
- Income from Advertisement in Souvenir		1,70,27,010		2,00,47,275
V. Receipts from Matured Investments				
a) Encashment of FDRs				
- Revolving Fund Account	-		-	
- C.P.F. Account	-		7,28,06,403	
- General Fund	-		57,68,812	
- Towards Employee	-	-	-	7,85,75,215

OF INDIA
THE YEAR ENDED ON 31.03.2023

PAYMENTS	CURRENT YEAR		PREVIOUS YEAR	
I. Expenses				
a) Establishment Expenses (Corresponding to Schedule 10)	6,01,36,881		5,69,14,911	
b) Administrative Expenses (Correspondent to Schedule 11)	2,02,44,940		1,20,05,787	
		8,03,81,821		6,89,20,698
II. Payments made against funds				
a) Agt. Revolving Fund (Loans & Advances)				
- Disbursements of Loans	-		-	
- Festival Advance	-		-	
- House Building Advance	-		-	
- Moter Car Advance	-		-	
- CGHS advance to Hon'ble Chairman	-	-	-	-
b) Agt. C.P.F. Fund				
- Advance / Withdrawal to Staff	-		-	
- Final Payments to Outgoing Employees	-	-	-	-
III. Investments and deposits made				
a) Out Earmarked/Endowment funds				
- Agt. Revolving Fund (Loans & Advances)	-		-	
- Agt. C.P.F. Fund	1,34,36,898		1,30,35,085	
b) Out of own funds (Investments-Others)	60,00,000		7,90,18,388	
- Security Deposits	25,000		75,000	
- Towards Employee	1,71,785	1,96,33,683	1,99,890	9,23,28,363
IV. Expenditure on Fixed Assets				
a) Purchase of Fixed Assets				
- Library Books	24,294		31,454	
- Air Conditioners & Coolers	2,71,718		2,13,416	
- Computer Software	-		1,32,500	
- Furniture & Fixtures	1,83,710		4,19,830	
- Heat Convertor	66,292		28,790	
- Water Dispencer	44,290		-	
- Computer & Perpherals	4,64,796		2,46,886	
- Air Purifiers	-		45,315	
- Stabelizers	7,100		-	
- Biometric Machine	28,994		41,347	
- Lease Hold Land	-		5,01,12,447	
- Paper Shredding Machine	82,000		64,936	
-Senetizer dispenser	-	-	-	-
-Television, Audio System & Other	-	-	-	-
Refrigerator/Washing Machine	22,000	11,95,194	-	5,13,36,921
b) Capital Advance/ CWIP		-		-
V. Refund of surplus money/Loans				
a) To the Government of India				
- Grant return to govt.	38,19,812	38,19,812	-	

**PRESS COUNCIL
RECEIPTS AND PAYMENTS FOR**

RECEIPTS	CURRENT YEAR		PREVIOUS YEAR	
VI. <u>Any Other receipts</u>				
a) Enchacement of Deposits	-	-	7,75,341	7,75,341
b) Recovery of Advances				
- Housing Building Advance	-	-	-	
- From Parties	-	-	-	
- Festival Advances	-	-	-	
- TA/DA Advance from member officers	-	-	57,278	
- Staff Advance	3,30,253	-	4,32,439	
- Scooter Advances	-	-	-	
- Motor Car Advance	-	-	-	
- CPF Advance	-	-	-	
- Seminar/ National Press Day	-	-	-	
- CGHS advance to Hon'ble Chairman	-	-	-	
		3,30,253		4,89,717
c) Recovery from Employee				
- LIC Contribution	1,39,949		1,35,182	
- Travelling expense				
- Refund of CPF Advance	8,63,197		5,68,660	
- Towards sale /transfer of fixed asset				
- C.P.F. Contr.	46,77,880		49,63,150	
- NPS Subscription	22,63,804		12,61,969	
- Recovery From Officers Non-Scale	28,500	79,73,330		69,28,961
d) Amount trf from General Fund to C.P.F. Fund on account of:				
- Council's Contribution to PF	-		25,875	
- Interest on Employees' Cont.				
- Interest on Council's Cont.				
- Others				
		-		25,875
e) Other Receipts				
- Receipts of LIC	-		-	
- Security Deposits	4,770		30,214	
- Penalty Received				
- Others		4,770		30,214
f) Tax deducted at source	29,83,758	29,83,758	12,57,244	12,57,244
TOTAL		12,31,99,693		25,07,32,201


Nurgsangtamba Ao
Secretary
Press Council of India


Ranjana Prakash Desai
Chairperson
Press Council of India



OF INDIA
THE YEAR ENDED ON 31.03.2023

<u>VI. Finance Charges (Interest)</u>				-
<u>VII. Other Payments (Specify)</u>				
a) Amount trf from General Fund to C.P.F. Fund on account of:	-			-
- Interest on Employees' Cont.	-			-
- Interest on Council's Cont.	-			-
- Others	-	-		-
b) Advance				
- For Parties	-			-
- for Books & Periodicals	-			-
- for Seminar	1,35,942			
- for Booking of Auditorium				
- for purchase of Stationery				
- for Capital Assets	18,33,230		9,33,328	
- for Staff Advance	7,41,707		6,61,315	
- TA/DA Advance to member/officers	-		-	
- for Others		27,10,879		15,94,643
c) Tax deducted at source		34,72,185		24,70,628
d) Other Payments				
- NPS Subscription	27,47,518		17,99,791	
- Prior period adjustments	-		20,187	
- Provision	-		70,021	
- Levy Fees		27,47,518		18,89,999
<u>VIII. Closing Balances</u>				
a) Cash in hand (Imprest Account)		50,000		50,000
b) Bank Balances				
- TSA Account	-		-	
- Indian Bank	20,95,141		97,61,922	
- General Fund	36,21,348		1,00,53,521	
- Levy of Fees Account	3,86,680		3,72,831	
- Revolving Fund (Loan & Advance)	-		-	
- C.P.F. Account	30,49,942	91,53,111	1,19,28,701	3,21,16,976
c) Postage Stamps in Hand		35,490		23,973
		12,31,99,693		25,07,32,201

Nungtang Ao
Nungtang Ao
Secretary
Press Council of India

Ranjana
Ranjana Prakash Desai
Chairperson
Press Council of India



ANNEXURE - A

**Statement of Cases
April 1, 2022-March 31, 2023**

S. No.	Particulars	Section-13	Section-14	Total
1.	Cases Pending on 31.03.2022	345	801	1146
2.	Cases filed between April 1, 2022 to March 31, 2023	273	865	1138
3.	Cases adjudicated between April 1, 2022 to March 31, 2023	11	29	40
4.	Cases directly reported to the Council	1	-	1
5.	Cases disposed of by way of dismissal at preliminary stage between April 1, 2022 to March 31, 2023 and reported to the Council	210	693	903
6.	Total Cases Pending as on March 31, 2023	396	944	1340

ANNEXURE - B**Index of Orders of the
Press & Registration Appellate Board**

S. No.	Parties	Date of Order	Status
1	Appeal of Shri Jagdish Purohit, Bombay against the Editor, Santulit Samachar. (27/68/22-23-PRAB)	30.08.2022	Dismissed
2	Review petition received from the Editor, Lokshahi against the Sub-Divisional Magistrate, Chandrapur. (27/67/21-22-PRAB)	30.08.2022	Dismissed
3	Appeal of Shri Santosh Dhabai, Editor, Ratlam Darshan against the District Magistrate, Ratlam, MP. (27/56/19-20-PRAB)	30.08.2022	Dismissed
4	Appeal of Shri Dharmveer Kushwaha, Owner/Printer/Publisher, Rajdhani Media, Gwalior, MP. (27/70/2022-23-PRB-PCI)	30.08.2022	Disposed of
5	Appeal of Shri R. Ragavan, Selvapuram, Coimbatore for rejection of Declaration and permission to publish/print the Magazine/ Newspapers. (27/64/2022-23)	23.09.2022	Disposed of
6	Appeal of Shri Raviraj Aiwale, Editor, Printer & Publisher, Daily Apratim, Kolhapur against the Additional District Magistrate, Kolhapur. (27/66/22-23)	23.09.2022	Disposed of
7	Appeal of Shri Sharad Audichya, Printer/publisher, Semariya Express, Satna, MP against the District Collector, Satna, MP. (27/69/22-23)	19.10.2022	Disposed of
8	Appeal of Shri M. Ka. Rahumaan, Editor in Chief, Weekly Tamil Magazine Amma Express against the order dated 17.08.2022 passed by the Additional District Magistrate, Coimbatore. (27/72/22-23)	17.02.2023	Disposed of

भारत का राजपत्र
The Gazette of India

सी.जी.-डी.एल.-अ.-17062022-236667
CG-DL-E-17062022-236667

असाधारण
EXTRAORDINARY

भाग II—खण्ड 3—उप-खण्ड (ii)
PART II—Section 3—Sub-section (ii)

प्राधिकार से प्रकाशित
PUBLISHED BY AUTHORITY

सं. 2659]
No. 2659]

नई दिल्ली, शुक्रवार, जून 17, 2022/ज्येष्ठ 27, 1944
NEW DELHI, FRIDAY, JUNE 17, 2022/JYAISHTHA 27, 1944

सूचना और प्रसारण मंत्रालय
अधिसूचना

नई दिल्ली, 17 जून, 2022

का.आ. 2792(अ).—केन्द्रीय सरकार, प्रेस परिषद् अधिनियम, 1978 (1978 का 37) की धारा 6 की उप-धारा (1) के साथ पठित धारा 5 की उप-धारा (2) द्वारा प्रदत्त शक्तियों का प्रयोग करते हुए, भारत के उच्चतम न्यायालय के सेवानिवृत्त न्यायाधीश न्यायमूर्ति श्रीमती रंजना प्रकाश देसाई का नामनिर्देशन भारतीय प्रेस परिषद् के अध्यक्ष के रूप में अधिसूचित करती है।

[फा. सं. एम-22011/2/2021-प्रेस]

विक्रम सहाय, संयुक्त सचिव

MINISTRY OF INFORMATION AND BROADCASTING
NOTIFICATION

New Delhi, the 17th June, 2022

S.O. 2792(E).—In exercise of the powers conferred by sub-section (2) of section 5, read with sub-section (1) of section 6 of the Press Council Act, 1978 (37 of 1978), the Central Government hereby notifies the nomination of Smt. Justice Ranjana Prakash Desai, retired Judge of the Supreme Court of India, as the Chairperson of the Press Council of India.

[F. No. M-22011/2/2021-Press]

VIKRAM SAHAY, Jt. Secy.

ANNEXURE - D

**Index of Adjudications in Complaints Regarding
Threats to Press Freedom
(Under Section 13 of the Press Council Act, 1978)**

S. No.	Parties	Date of Order	Decision
Harassment of Newsmen			
1.	Complaint of Shri Dinesh Singh Bhadoriya, Shri Yogendra Singh Bhadoriya and Sumer Singh Narwariya, Journalists, Madhya Pradesh against Shri Mahavir Bhagel, Jail Suprinendent, Sub Jail Mehgaon Central Jail, Gwalior, Madhya Pradesh. (13/17/19-20-PCI)	15.11.2022	Upheld
2.	Complaint of Shri Yogendra Kashinath Dorkar, Editor of Dainik Nandurbar Dinank Uttar Maharashtra against Dr. Rajendra Bharud, Collector, District Nandurbar, Maharashtra. (124/2021-B)	15.11.2022	Disposed of (Complainant Censured)
3.	Complaint of Shri Jagpal Singh, Correspondent, Dainik Aaj, District General Secretary, UP Journalists Association (UPJA), Gonda, U.P. against Shri Praveen Kumar, Commander, Railway Protection Force, Eastern Railway Station, Gonda, U.P. (13/207/18-19-PCI)	28.02.2023	Disposed of (with liberty to the Complainant to approach court)
4.	Complaint of Shri Anam Ibrahim, Journalist, Shahjanabad, Bhopal, Madhya Pradesh against Director General of Police, Bhopal, Madhya Pradesh. (140/2020-B)	28.02.2023	Disposed of for being sub- judice
Facilities to the Press			
5.	Complaint of Mr. Naveen Das, Editor, Satya Ra Swara Nirbhay, Bhubaneshwar against Information and Public Relations Director, Government of Odisha, Bhubaneshwar. (13/94/19-20/PCI)	15.11.2022	Disposed of being Withdrawn

Suo-Motu Cognizance			
6.	Suo-motu cognizance w.r.t Police action on Journalist in Chandigarh. (13/74/SM/19-20-PCI)	22.09.2022	Disposed of with observation & Compensation
7.	Suo-motu cognizance with regard to attack on Shri Anil Sinha, Photo-Journalist, Rashtriya Sahara and Shri Sanjeev Verma, Photo-Journalist, Hindustan Times by Delhi Police. (13/185/SM/19-20-PCI)	22.09.2022	Disposed of
8.	Suo-Motu cognizance w.r.t Rajasthan Chief Minister's open threat to media and its right to freedom of expression. (1/2020/SM/B)	15.11.2022	Upheld
9.	Suo-Motu cognizance with regard to alleged attack and killing of Shri Sayed Adil Wahab, Reporter in Bhopal, M.P.(SM/NOV/4/2020-B)	15.11.2022	Disposed of
10.	Suo-Motu cognizance with regard to Rajkot Collector allegedly bribing the reporters for positive media coverage of state level Republic Day function. (23/SM/2020-B)	15.11.2022	Censured Newspapers and warning issued to Govt. authority
Curtailment of Press Freedom			
11.	Complaint of Shri Sanjay Kumar Singh, Bureau Chief, Prathah Kamal, Dist-East Champaran, Motihari, Bihar against Mrs. Suchita Kumari, Lady Supervisor, Bal Vikas Pariyojana Karyalaya, Paharpur, East Champaran, Bihar. (13/187/17-18-PCI)	22.09.2022	Rejected

**Index of Adjudications in Complaints
Against the Press
(Under section 14 of the Press Council Act, 1978)**

S. No.	Parties	Date of Order	Decisions
Principles and Publication			
1.	Complaint of Shri Sunil Gajanan Godbole, Mumbai, Maharashtra against the Editor, Loksatta, Mumbai. (14/531/18-19-PCI)	15.11.2022	Disposed of being infructuous
2.	Complaint of Shri Sabhajeet Yadav, Village Parakpur, Azamgarh (U.P.) against the Editor, Amar Bharati, Agra. (U.P.). (1862/2020-A)	15.11.2022	Censured
3.	Complaint of Shri Sumit Singh, Tagore Garden, New Delhi against the Editor, The Patriots of India, Weekly Magazine, New Delhi. (2076/2020A)	15.11.2022	Disposed of with time bound directions
4.	Complaint of Shri Siddharth Shankar Sharma, Civil Judge & Judicial Magistrate, Collectorate, Barmer, Rajasthan against the Editor, Dainik Bhaskar, Barmer, Rajasthan. (64/2020A)	15.11.2022	Censured
5.	Review application dated 05.11.2019 filed by the Editor, Dainik Jagran, Bhagalpur, Bihar against the decision dated 22.08.2019 of the Press Council. (14/484/18-19)	15.11.2022	Adjudication order dated 22.08.2019 withdrawn

S. No.	Parties	Date of Order	Decisions
6.	Complaint against Shri Rajeev Ranjan Dwivedi, Public Relation Officer, Bihar School Examination Board, Patna (Bihar) against the Hindustan, Patna Budha Marg, Patna (Bihar). (14/246/18-19-PCI)	15.11.2022	Disposed of with observation
7.	Complaint of Dr. Lipi Chakrabarty, Bhilai against the Editor of Dainik Bhaskar, Raipur, Chhattisgarh and Shri Peeluram Sahu, Reporter, Dainik Bhaskar, Raipur, Chhattisgarh. (14/704/2018-19-PCI)	28.02.2023	Upheld (Censured the respondent Journalist)
8.	Complaint of Shri Anand Maurya, Quality Monitor, Mid-Day Meal, Zila Panchayat Dindori, Madhya Pradesh against the Editor of Jabalpur Express, Jabalpur, Madhya Pradesh.(14/477/2018-19-PCI)	28.02.2023	Disposed of with direction
Press and Defamation			
9.	Complaint of Shri Pradeep Singh, Chief Municipal Officer, Municipal Council, Begumganj, Raisen (M.P.) against the Editor, Dainik Bhaskar, Bhopal (M.P.). (14/180/19-20-PCI)	15.11.2022	Settled and closed for non pursuance
10.	Complaint of Shri Harish Mishra, Editor, Dainik Divya Gosh, Raisen (M.P.) against the Editor, Dainik Raj Express Bhopal (M.P.). (14/289/19-20-PCI)	15.11.2022	Disposed of with observation
11.	Complaint of Shri Neeraj Chourasiya, Chhattarpur, Madhya Pradesh against the Editor, Peptech Times, Chhattarpur (M.P.). (14/321/19-20-PCI)	15.11.2022	Disposed of being personal dispute and sub-judice

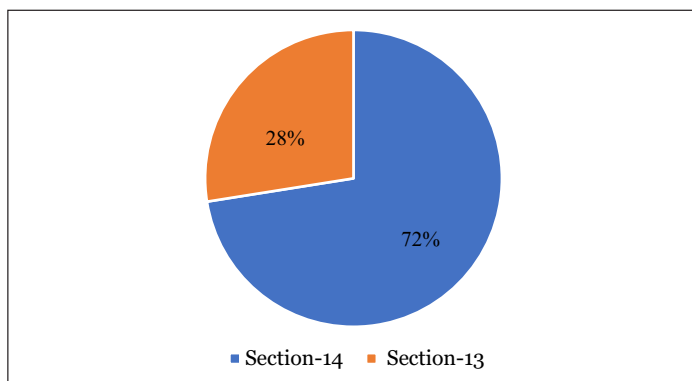
S. No.	Parties	Date of Order	Decisions
12.	Complaint of Shri N.L. Singh, Lucknow (U.P.) against the Editor, Spasht Awaz, Lucknow (U.P.). (14/12-21/17-18-PCI)	15.11.2022	Disposed of as corrigendum published by the respondent
13.	Complaint of Shri N.L. Singh, Lucknow (U.P.). against the Editor, Rahat Times, Lucknow (U.P.). (14/12-21/17-18-PCI)	15.11.2022	Disposed of as corrigendum published by the respondent
14.	Complaint of Shri N.L. Singh, Lucknow (U.P.). against the Editor, Awami Salar, Lucknow (U.P.). (14/12-21/17-18-PCI)	15.11.2022	Censured
15.	Complaint of Shri N.L. Singh, Lucknow (U.P.) against the Editor, Kanwhiz Times, Lucknow (U.P.). (14/12-21/17-18-PCI)	15.11.2022	Disposed of as corrigendum published by the respondent
16.	Complaint of Shri S. Vijay Kumar, Shri B.S. Prasanna Kumar, Shri A. Shivraj, Shri Mohan Kumar, Hasan District, Karnataka against the Editor, Arasi Varthe, Fortnightly Arsikere, Hasan District, Karnataka. (14/25-26/17-18 PCI)	15.11.2022	Disposed of being sub-judice
17.	Complaint of Shri S. Vijay Kumar, Shri B.S. Prasanna Kumar, Shri A. Shivraj, Shri Mohan Kumar, Hasan District, Karnataka against the Editor, Suvarna Times of Karnataka, Bengaluru, Karnataka. (14/25-26/17-18 PCI)	15.11.2022	Disposed of being sub-judice
18.	Complaint of Shri Rakesh Ranjan, S/o Shri Chaturbhuja Sharma, Aurangabad (Bihar) against the Editor, Rashtriya Sahara, Patna (Bihar). (170/2020-A)	15.11.2022	Disposed of being sub-judice

S. No.	Parties	Date of Order	Decisions
19.	Complaint of Shri Updesh Saxena, Mangal Nagar, Indore, Madhya Pradesh against the Editor of Dainik Bhaskar, Indore, M.P. (14/522-523/2019-20-PCI)	28.02.2023	Dismissed
20.	Complaint of Shri Updesh Saxena, Mangal Nagar, Indore, Madhya Pradesh against the Editor of Rajasthan Patrika. (14/522-523/2019-20-PCI)	28.02.2023	Disposed of with direction
21.	Complaint of Smt. Aarti Kumari, Ranchi, Jharkhand against the Editor, Dainik Bhaskar, Ranchi, Jharkhand. (48/2020-A)	28.02.2023	Disposed of with warning to respondent
Suo-Motu (Against the Press)			
22.	Suo-motu cognizance with regard to publication of telefriendship advertisements by Dainik Bhaskar. (14/50/SM/2019-20-PCI)	28.02.2023	Disposed of with undertakings filed by respondent
23.	Suo-motu cognizance with regard to publication of misleading and vulgar advertisements by Rashtriya Sahara, New Delhi. (01/SM/2020-A)	28.02.2023	Disposed of with observation
24.	Suo-motu cognizance with regard to publication of misleading advertisements by Rashtriya Sahara, New Delhi. (SM/Jan/01/2021-A)	28.02.2023	Disposed of with observation
25.	Suo-motu cognizance taken by the Council against "Vishvawani" Kannada newspaper for publishing derogatory language against the Hon'ble President, India (SM/Oct./01/2022-A)	28.02.2023	Severely Censured

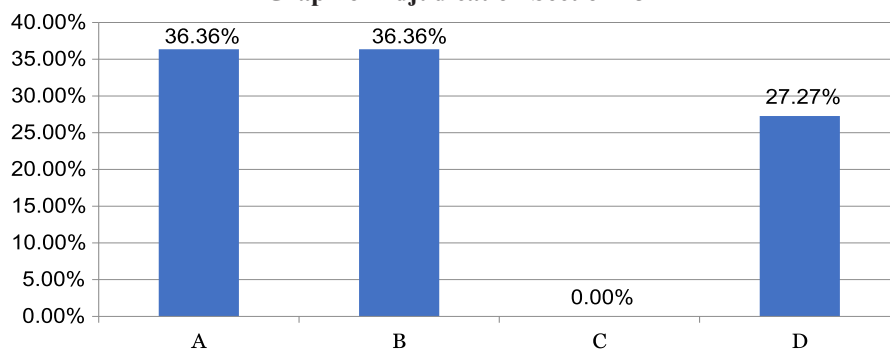
S. No.	Parties	Date of Order	Decisions
Communal, Casteist, Anti-National and Anti-Religious Writings			
26.	Complaint of Shri Siddharth K.J., Campaign against Hate Speech, Bengaluru (Karnataka) against Shri M. Govinde Gowda, Editor, Star of Mysore, Mysuru, Shri K.B. Ganapathy, Editor-in-Chief, Star of Mysore, Mysuru. (250/2020-A)	15.11.2022	Censured
27.	Complaint of Shri Siddharth K.J., Campaign against Hate Speech, Bengaluru against the Editor, Vijay Karnataka, Bengaluru, Karnataka. (1634/2020-A)	28.02.2023	Censured
Misleading Advertisements			
28.	Complaint of Shri Amarnath Chakravarty, Secretary of Sandesh, Patna, Bihar against the Editor of Hindustan, Patna, Bihar. (14/304/17-18-PCI)	22.9.2022	Censured
29.	Complaint of Shri Om Prakash Vijayvergia, Jaipur (Rajasthan) against the Editor, Dainik Bhaskar, Jaipur (Rajasthan). (09/2020-A)	15.11.2022	Censured

ANNEXURE-F

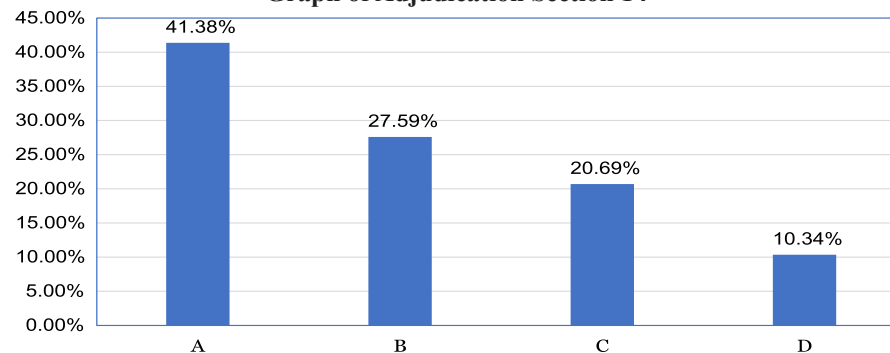
Graph of Adjudications (2022-2023)



Graph of Adjudication Section 13



Graph of Adjudication Section 14



- A Upheld
- B Dropped
- C Assurance/Settled/Amends
- D Dropped for Non-pursuance/Sub-judice/Withdrawal/Lack of Substance

**Index of Principles Recorded in Adjudications in
Complaints Filed by the Press**

1. Any injury caused to a journalist while he is reporting is a cause for concern even if the journalist is not targeted on purpose. The police should be cautious while using water cannons or other methods during protests.

(Adjudication No. 13/74/Suo-Motu/19-20-PCI dated 22.09.2022)

2. Officials holding important position of power in Government offices should not give any amount to journalists for giving coverage to Programmes of National importance like Republic Day, Independence Day, etc.

(Adjudication No. 23/SM/2020-B dated 15.11.2022)

**Index of Principles Recorded in Adjudications in
Complaints Filed Against the Press**

1. The advertisers should send their advertisements to the newspapers on their letterheads and for identity they should give their PAN Card details to save the prospective job aspirants from being deceived.
(Adjudication No. 14/304/17-18-PCI dated 22.09.2022)
2. The Press has to spread the message of brotherhood amongst people of all communities. It has to strengthen India's Unity in Diversity. It should desist from publishing inflammatory articles that can fan the flames of communalism.
(Adjudication No. 250/2020-A dated 15.11.2022)
3. Apology or expression of regret about an impugned publication targeting a particular community should not be done out of fear of mob/rioters. This is an example of journalism of the worst kind. Such an apology is not genuine.
(Adjudication No. 250/2020-A dated 15.11.2022)
4. Every Newspaper should have an internal mechanism by which there can be periodical interaction between Editors and news reporters so that the importance of Norms of Journalistic Conduct could be impressed upon them.
(Adjudication No. 1862/2020-A dated 15.11.2022)
5. The Press should have a machinery in place to scan properly all the advertisements which they receive and then segregate such advertisements which are not permissible as per the norms.
(Adjudication No. 14/50/SM/2019-20 dated 28.02.2023)
6. The newspaper should refrain from writing such editorials which can create discord among people and fan the flames of communalism. The

Editor holds the highest position in a newspaper and is responsible for selection of news. He should not write articles derogatory to a particular religion. Such irresponsible behaviour is not expected from the Editor.

(Adjudication No. 1634/2020-A dated 28.02.2023)

